

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Child Care and Development Fund (CCDF) Plan  
for  
State/Territory Wyoming**

**FFY 2025 – 2027**

**Version: Initial Plan**

**Plan Status: Approved as of 2024-11-09 00:34:15 GMT**

This Plan describes the Child Care and Development Fund program to be administered by the State or Territory for the period from 10/01/2024 to 9/30/2027, as provided for in the applicable statutes and regulations. The Lead Agency has the flexibility to modify this program at any time, including amending the options selected or described.

For purposes of simplicity and clarity, the specific provisions of applicable laws printed herein are sometimes paraphrases of, or excerpts and incomplete quotations from, the full text. The Lead Agency acknowledges its responsibility to adhere to the applicable laws regardless of these modifications.

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## Overview

### *Introduction*

The Child Care and Development Block Grant Act (CCDBG) (42 U.S.C. 9857 *et seq.*), together with section 418 of the Social Security Act (42 U.S.C. 618), authorize the Child Care and Development Fund (CCDF), the primary federal funding source devoted to supporting families with low incomes afford child care and increasing the quality of child care for all children. The CCDF program is administered by the Office of Child Care (OCC) within the Administration for Children and Families (ACF) at the U.S. Department of Health and Human Services and provides resources to State, Territory, and Tribal governments via their designated CCDF Lead Agency.

CCDF plays a vital role in supporting family well-being and child development; facilitating parental employment, training, and education; improving the economic well-being of participating families; and promoting safe high-quality care and learning environments for children when out of their parents' care.

As required by CCDBG, this CCDF Plan serves as the State/Territory Lead Agency's application for a three-year cycle of CCDF funds and is the primary mechanism OCC uses to determine Lead Agency compliance with the requirements of the statute and regulations. CCDF Lead Agencies must comply with the rules set forth in CCDBG and corresponding ACF-issued rules and regulations. The CCDF Plan is a fundamental part of OCC's oversight of CCDF and is designed to align with and complement other oversight mechanisms including administrative and financial data reporting, the monitoring process, error rate reporting, audits, and the annual Quality Progress Report.

### *Organization of Plan*

In their CCDF Plans, State/Territory Lead Agencies must describe how they implement the CCDF program. The Plan is organized into the following sections:

1. CCDF Program Administration
2. Child and Family Eligibility and Enrollment and Continuity of Care
3. Child Care Affordability
4. Parental Choice, Equal Access, Payment Rates, and Payment Practices
5. Health and Safety of Child Care Settings
6. Support for a Skilled, Qualified, and Compensated Child Care Workforce
7. Quality Improvement Activities
8. Lead Agency Coordination and Partnerships to Support Service Delivery
9. Family Outreach and Consumer Education
10. Program Integrity and Accountability

### *Completing the Plan*

This revised Plan aims to capture the most accurate and up-to-date information about how a State/Territory is implementing its CCDF program in compliance with the requirements of CCDF. In responding to plan questions, Lead Agencies should provide concise and specific summaries and/or bullet points as appropriate to the question. Do not insert tables or charts, add attachments, or copy manuals into the Plan. A State/Territory's CCDF Plan is intended to stand on its own with sufficient information to describe how the Lead Agency is implementing its CCDF program without need for added attachments, tables, charts, or State manuals.

OCC recognizes that Lead Agencies use different mechanisms to establish CCDF policies, such as State statute, regulations, administrative rules, policy manuals, or policy issuances. Lead Agencies must submit their CCDF Plan no later than July 1, 2024.

#### *Review and Amendment Process*

OCC will review submitted CCDF Plans for completeness and compliance with federal policies. Each Lead Agency will receive a letter approximately 90 days after the Plan is due that includes all Plan non-compliances to be addressed. OCC recognizes that Lead Agencies continue to modify and adapt their programs to address evolving needs and priorities. Lead Agencies must submit amendments to their Plans as they make substantial policy and program changes during the three-year plan cycle, including when addressing non-compliances.

#### *Appendix 1: Implementation Plan*

As part of the Plan review process, if OCC identifies any CCDF requirements that are not fully implemented, OCC will communicate a preliminary notice of non-compliance for those requirements via an emailed letter. OCC has created a standardized template for Lead Agencies to submit as their 60-day response to that preliminary notice. This template is found at Appendix 1: Lead Agency Implementation Plan. This required response via the Appendix will help create a shared understanding between OCC and the Lead Agency on which elements of a requirement are unmet, how they are unmet, and the Lead Agency's steps and associated timelines needed to fully implement those unmet elements.

#### *CCDF Plan Submission*

CCDF Lead Agencies will submit their Plans electronically through the Child Care Automated Reporting System (CARS). CARS will include all language and questions included in the final CCDF Plan template approved by the Office of Management and Budget (OMB). Note that the format of the questions in CARS could be modified from the Word version of the document to ensure compliance with Section 508 policies regarding accessibility to electronic and information technology for individuals with disabilities.

## 1 CCDF Program Administration

Strong organizational structures, operational capacity, and partnerships position States and Territories to administer CCDF efficiently, effectively, and collaboratively.

This section identifies the CCDF Lead Agency, CCDF Lead Agency leadership, and the entities and individuals who will participate in the implementation of the program. It also identifies the partners who were consulted to develop the Plan.

## 1.1 CCDF Leadership

The governor of a State or Territory must designate an agency (which may be an appropriate collaborative agency) or establish a joint interagency office to represent the State or Territory as the Lead Agency. The Lead Agency agrees to administer the program in accordance with applicable federal laws and regulations and the provisions of this Plan, including the assurances and certifications.

### 1.1.1 Designated Lead Agency

Identify the Lead Agency or joint interagency office designated by the State or Territory. OCC will send official grant correspondence, such as grant awards, grant adjustments, Plan approvals, and disallowance notifications, to the designated contact identified here.

- a. Lead Agency or Joint Interagency Office Information:
  - i. Name of Lead Agency: **Wyoming Department of Family Services**
  - ii. Street Address: **2300 Capitol Avenue, 3rd Floor**
  - iii. City: **Cheyenne**
  - iv. State: **Wyoming**
  - v. ZIP Code: **82002**
  - vi. Web Address for Lead Agency: **<http://dfsweb.wyo.gov/>**
- b. Lead Agency or Joint Interagency Official contact information:
  - i. Lead Agency Official First Name: **Korin A.**
  - ii. Lead Agency Official Last Name: **Schmidt**
  - iii. Title: **Director**
  - iv. Phone Number: **307-777-7564**
  - v. Email Address: **[korin.schmidt1@wyo.gov](mailto:korin.schmidt1@wyo.gov)**

### 1.1.2 CCDF Administrator

Identify the CCDF Administrator designated by the Lead Agency, the day-to-day contact, or the person with responsibility for administering the State's or Territory's CCDF program. The OCC will send programmatic communications, such as program announcements, program instructions, and data collection instructions, to the designated contact identified here. If there is more than one designated contact with equal or shared responsibility for administering the CCDF program, identify the Co-Administrator or the person with administrative responsibilities and include their contact information.

- a. CCDF Administrator contact information:
  - i. CCDF Administrator First Name: **Nichole**

- ii. CCDF Administrator Last Name: **Anderson**
- iii. Title of the CCDF Administrator: **Early Care and Education Unit Manager**
- iv. Phone Number: **307-777-8539**
- v. Email Address: **nichole.anderson@wyo.gov**
- b. CCDF Co-Administrator contact information (if applicable):
  - i. CCDF Co-Administrator First Name:
  - ii. CCDF Co-Administrator Last Name:
  - iii. Title of the CCDF Co-Administrator:
  - iv. Phone Number:
  - v. Email Address:
  - vi. Description of the Role of the Co-Administrator:

## 1.2 CCDF Policy Decision Authority

The Lead Agency has broad authority to administer (i.e., establish rules) and operate (i.e., implement activities) the CCDF program through other governmental, non-governmental, or public or private local agencies as long as the Lead Agency retains overall responsibility for the administration of the program. Administrative and implementation responsibilities undertaken by agencies other than the Lead Agency must be governed by written agreements that specify the mutual roles and responsibilities of the Lead Agency and other agencies in meeting the program requirements.

### 1.2.1 Entity establishing CCDF program rules

Which of the following CCDF program rules and policies are administered (i.e., set or established) at the State or Territory level or local level? Identify whether CCDF program rules and policies are established by the State or Territory (even if operated locally) or whether the CCDF policies or rules are established by local entities, such as counties or workforce boards.

Check one of the following:

- a. ☒ All program rules and policies are set or established by the State or Territory. (If checked, skip to question 1.2.2.)
- b. ☐ Some or all program rules and policies are set or established by local entities or agencies. If checked, indicate which entities establish the following policies. Check all that apply:
  - i. Eligibility rules and policies (e.g., income limits) are set by the:
    - ☐ State or Territory.
    - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
    - ☐ Other. Identify the entity and describe the policies the entity can set:
  - ii. Sliding-fee scale is set by the:
    - ☐ State or Territory.

- ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
- ☐ Other. Identify the entity and describe the policies the entity can set:
- iii. Payment rates and payment policies are set by the:
  - ☐ State or Territory.
  - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
  - ☐ Other. Identify the entity and describe the policies the entity can set:
- iv. Licensing standards and processes are set by the:
  - ☐ State or Territory.
  - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
  - ☐ Other. Identify the entity and describe the policies the entity can set:
- v. Standards and monitoring processes for license-exempt providers are set by the:
  - ☐ State or Territory.
  - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
  - ☐ Other. Identify the entity and describe the policies the entity can set:
- vi. Quality improvement activities, including QIS, are set by the:
  - ☐ State or Territory.
  - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
  - ☐ Other. Identify the entity and describe the policies the entity can set:
- vii. Other. List and describe any other program rules and policies that are set at a level other than the State or Territory level:

#### 1.2.2 Entities implementing CCDF services

The Lead Agency has broad authority to operate (i.e., implement activities) through other agencies, as long as it retains overall responsibility for CCDF. Complete the table below to identify which entity(ies) implements or performs CCDF services.

Check the box(es) to indicate which entity(ies) implement or perform CCDF services.

| CCDF Activity                                                    | CCDF Lead Agency                    | TANF Agency              | Local Government Agencies | CCR&R                    | Other                              |
|------------------------------------------------------------------|-------------------------------------|--------------------------|---------------------------|--------------------------|------------------------------------|
| Who conducts eligibility determinations?                         | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |
| Who assists parents in locating child care (consumer education)? | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |

| CCDF Activity                                    | CCDF Lead Agency                    | TANF Agency              | Local Government Agencies | CCR&R                    | Other                              |
|--------------------------------------------------|-------------------------------------|--------------------------|---------------------------|--------------------------|------------------------------------|
| Who issues payments?                             | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |
| Who monitors licensed providers?                 | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |
| Who monitors license-exempt providers?           | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |
| Who operates the quality improvement activities? | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/>  | <input type="checkbox"/> | <input type="checkbox"/> Describe: |

### 1.2.3 Information systems availability

For any activities performed by agencies other than the Lead Agency as reported above in 1.2.1 and 1.2.2, identify the processes the Lead Agency uses to oversee and monitor CCDF administration and implementation activities to retain overall responsibility for the CCDF program.

Check and describe how the Lead Agency includes in its written agreements the required elements. Note: The contents of the written agreement may vary based on the role the agency is asked to assume or type of project but must include, at a minimum, the elements below.

a. Tasks to be performed.

☐ Yes. If yes, describe:

☒ No. If no, describe: **The Department conducts all activities related to CCDF and does not use other agencies to administer or implement activities as identified in 1.2.1 and 1.2.2.**

b. Schedule for completing tasks.

☐ Yes. If yes, describe:

☒ No. If no, describe: **The Department conducts all activities related to CCDF and does not use other agencies to administer or implement activities as identified in 1.2.1 and 1.2.2.**

c. Budget which itemizes categorical expenditures in accordance with CCDF requirements.

☐ Yes. If yes, describe:

☒ No. If no, describe: **The Department conducts all activities related to CCDF and does not use other agencies to administer or implement activities as identified in 1.2.1 and 1.2.2.**

d. Indicators or measures to assess performance of those agencies.

☐ Yes. If yes, describe:

☒ No. If no, describe: **The Department conducts all activities related to CCDF and does not use other agencies to administer or implement activities as identified in 1.2.1 and 1.2.2.**

- e. In addition to the written agreements identified above, describe any other monitoring and auditing processes used to oversee CCDF administration.

#### 1.2.4 Certification of shareable information systems.

Does the Lead Agency certify that to the extent practicable and appropriate, any code or software for child care information systems or information technology for which a Lead Agency or other agency expends CCDF funds to develop is made available to other public agencies? This includes public agencies in other States for their use in administering child care or related programs.

☒ Yes.

☐ No. If no, describe:

#### 1.2.5 Confidential and personally identifiable information

Certification of policies to protect confidential and personally identifiable information

Does the Lead Agency certify that it has policies in place related to the use and disclosure of confidential and personally identifiable information about children and families receiving CCDF assistance and child care providers receiving CCDF funds?

☒ Yes.

☐ No. If no, describe:

### 1.3 Consultation in the Development of the CCDF Plan

The Lead Agency is responsible for developing the CCDF Plan, and consultation with and meaningful input and feedback from a wide range of representatives is critical for CCDF programs to continually adapt to the changing needs of families, child care programs, and the workforce. Consultation involves meeting with or otherwise obtaining input from an appropriate agency in the development of the State or Territory CCDF Plan. As part of the Plan development process, Lead Agencies must consult with the following:

- (1) Appropriate representatives of general-purpose local government. General purpose local governments are defined by the U.S. Census at [https://www2.census.gov/govs/cog/g12\\_org.pdf](https://www2.census.gov/govs/cog/g12_org.pdf).
- (2) The State Advisory Council (SAC) on Early Childhood Education and Care (pursuant to 642B(b)(1)(A)(i) of the Head Start Act) or similar coordinating body pursuant to 98.14(a)(1)(vii).
- (3) Tribe(s) or Tribal organization(s) within the State. This consultation should be done in a timely manner and at the option of the Tribe(s) or Tribal organization(s).

#### 1.3.1 Consultation efforts in CCDF Plan development

Describe the Lead Agency's consultation efforts in the development of the CCDF Plan, including how and how often the consultation occurred.

- a. Describe how the Lead Agency consulted with appropriate representatives of general-purpose local government: **The Councils and Boards referenced below are made up of representatives from across the State including representatives from local governments. The Department has an ongoing relationship with local governments across the state who were invited to provide feedback regarding the development of the Wyoming CCDF 3-Year Plan, however the Department did not receive interest from the parties to participate.**
- a. Describe how the Lead Agency consulted with the State Advisory Council or similar coordinating body: **Members of the Wyoming Early Childhood State Advisory Council were identified by expertise to focus on specific areas of the State Plan and were provided the opportunity to contribute to the content and review the final draft. Communication on the development of the Plan was via email and we received written recommendations from several individuals. In addition, the Department hosted two (2) teleconferences to review and take comments from Council members and received numerous comments of which many suggestions and changes were implemented in the CCDF.**
- b. Describe, if applicable, how the Lead Agency consulted with Indian Tribes(s) or Tribal organizations(s) within the State: **The Department makes its plan available to the Eastern Shoshone and the Northern Arapaho Tribes and solicits input to the plan. Both tribal entities were contacted via email and telephone on two occasions to discuss and review the Plan. The Department did not receive any response from either Tribe with regard to the state plan.**
- c. Identify other entities, agencies, or organizations consulted on the development of the CCDF Plan (e.g., representatives from the child care workforce, or statewide afterschool networks) and describe those consultation efforts:

### 1.3.2 Public hearing process

Lead Agencies must hold at least one public hearing in the State or Territory, with sufficient Statewide or Territory-wide distribution of notice prior to such a hearing to enable the public to comment on the provision of child care services under the CCDF Plan.

Describe the Statewide or Territory-wide public hearing process held to provide the public with an opportunity to comment on the provision of child care services under this Plan.

- i. Date of the public hearing: **6/18/2024**  
Reminder: Must be no earlier than January 1, 2024. If more than one public hearing was held, enter one date (e.g., the date of the first hearing, the most recent hearing date, or any hearing date that demonstrates this requirement).
- ii. Date of notice of public hearing: **5/29/2024**
- iii. Was the notice of public hearing posted publicly at least 20 calendar days prior to the date of the public hearing?  
**[x]** Yes.  
**[ ]** No. If no, describe:
- iv. Describe how the public was notified about the public hearing, including outreach

in other languages, information on interpretation services being available, etc. Include specific website links if used to provide notice **The Department sent an e-blast to all providers. The Department also emailed notification to all providers, stakeholders, parents, other State agencies and public/private entities. Finally, the Department posted notification in the statewide newspaper and on the Department's website. The statewide newspaper also publishes public notices online which can be translated into other languages as needed. Additionally, the language line is always available to the public for interpretation services.**

- v. Describe how the approach to the public hearing was inclusive of all geographic regions of the State or Territory: **The Department set up a call-in line for conference calls on June 18, 2024. Due to the conference call format for the hearings, all geographic regions were included.**
- vi. Describe how the content of the Plan was made available to the public in advance of the public hearing (e.g., the Plan was made available in other languages, in multiple formats, etc.): **The State Plan was sent electronically to providers, stakeholders, parents, other State agencies, and public/private entities and posted on the Department's website. The option of obtaining a written draft State Plan and submitting copies via hard copy mail was given with all notices and on the Department's website.**
- vii. Describe how the information provided by the public was taken into consideration regarding the provision of child care services under this Plan: **The Department works collaboratively with partners on an ongoing basis. In addition, the Department reviewed all comments submitted and thoughtfully considered changes to the State Plan. The State Plan is a reflection of the work within the State's Early Childhood industry and public opinion.**

### 1.3.3 Public availability of final Plan, amendments, and waivers

Lead Agencies must make the submitted and approved final Plan, any approved Plan amendments, and any approved requests for temporary waivers publicly available on a website.

- a. Provide the website link to where the Plan, any Plan amendments, and waivers (if applicable) are available. Note: A Plan amendment is required if the website address where the Plan is posted changes. **<https://dfs.wyo.gov/services/family-services/child-care/>**
- b. Describe any other strategies that the Lead Agency uses to make submitted and approved CCDF Plan and approved Plan amendments available to the public. Check all that apply and describe the strategies below, including any relevant website links as examples.
  - i. ☒ Working with advisory committees. Describe: **The Department has administrative staff who provide support to the Wyoming Early Childhood State Advisory Council and has an appointed member on the advisory council. The Department coordinates with the elected chairperson to ensure any CCDF Plan amendments are an agenda topic at an advisory council meeting. The Department ensures that the members of the Wyoming Early Childhood State Advisory Council receives, via email, a copy of the CCDF Plan and any amendments for review prior**

to the scheduled advisory council meeting.

- ii. ☐ Working with child care resource and referral agencies. Describe:
- iii. ☐ Providing translation in other languages. Describe:
- iv. ☒ Sharing through social media (e.g., Facebook, Instagram, email). Describe: **The Department shall post a link to the DRAFT CCDF Plan to the Department's Facebook page.**
- v. ☒ Providing notification to key constituents (e.g., parent and family groups, provider groups, advocacy groups, foundations, and businesses). Describe: **The Department uses different formats to notify stakeholders of the CCDF Plan and amendments including email e-blast, the Department website, and the WY Quality Counts! newsletter. In addition, partner agencies (including Wyoming Department of Health, Wyoming Department of Education, Head Start Collaboration office) share the information with their stakeholder groups.**
- vi. ☐ Working with Statewide afterschool networks or similar coordinating entities for out-of-school time. Describe:
- vii. ☐ Direct communication with the child care workforce. Describe:
- viii. ☐ Other. Describe:

## 2 Child and Family Eligibility and Enrollment and Continuity of Care

Stable and reliable child care arrangements facilitate job stability for parents and healthy development of children. CCDF eligibility and enrollment policies can contribute to these goals. Policies and procedures that create barriers to families accessing CCDF, like inaccessible subsidy applications and onerous reporting requirements, interrupt a parent's ability to work and may deter eligible families from participating in CCDF.

To address these concerns, Lead Agencies must provide children with a minimum of 12 months between eligibility determinations, limit reporting requirements during the 12-month period, and ensure eligibility determination and redetermination processes do not interrupt a parent's work or school.

In this section, Lead Agencies will identify how they define eligible children and families and how the Lead Agency's eligibility and enrollment policies support access for eligible children and families.

### 2.1 Reducing Barriers to Family Enrollment and Redetermination

Lead Agency enrollment and redetermination policies may not unduly disrupt parents' employment, education, or job training activities to comply with the Lead Agency's or designated local entity's requirements. Lead Agencies have broad flexibility to design and implement the eligibility practices that reduce barriers to enrollment and redetermination.

Examples include developing strategies to inform families and their providers of an upcoming redetermination and the information that will be required of the family, pre-populating subsidy renewal forms, having parents confirm that the information is accurate, and/or asking only for the information necessary to make an eligibility redetermination. In addition, Lead Agencies can offer

a variety of family-friendly methods for submitting documentation for eligibility redetermination that considers the range of needs for families in accessing support (e.g., use of languages other than English, access to transportation, accommodation of parents working non-traditional hours).

#### 2.1.1 Eligibility practices to reduce barriers to enrollment

- a. Does the Lead Agency implement any of the following eligibility practices to reduce barriers at the time of initial eligibility determination? Check all that apply and describe those elements checked.
- i. ☒ Establishing presumptive eligibility while eligibility is being determined. Describe the policy, including the populations benefiting from the policy, and identify how long the period of presumptive eligibility is: **Presumptive eligibility is the assurance of payment for 30 days of child care services when the assistance unit appears eligible due to the parent(s)/caretaker(s)'s statements on the initial application.**
  - ii. ☐ Leveraging eligibility from other public assistance programs. Describe:
  - iii. ☐ Coordinating determinations for children in the same household (while still ensuring each child receives 12 months of eligibility). Describe:
  - iv. ☐ Self-assessment screening tools for families. Describe:
  - v. ☐ Extended office hours (evenings and/or weekends).
  - vi. ☒ Consultation available via phone.
  - vii. ☐ Other. Describe the Lead Agency policies to process applications efficiently and make timely eligibility determinations:
  - viii. ☐ None.
- b. Does the Lead Agency use an online subsidy application?
- ☒ Yes.
- ☐ No. If no, describe why an online application is impracticable.
- c. Does the Lead Agency use different policies for families receiving TANF assistance?
- ☐ Yes. If yes, describe the policies:
- ☒ No.

#### 2.1.2 Preventing disruption of eligibility activities

- a. Identify, where applicable, the Lead Agency's procedures and policies to ensure that parents do not have their employment, education, or job training unduly disrupted to comply with the State's/Territory's or designated local entity's requirements for the redetermination of eligibility. Check all that apply.
- i. ☒ Advance notice to parents of pending redetermination.
  - ii. ☐ Advance notice to providers of pending redetermination.
  - iii. ☒ Pre-populated subsidy renewal form.
  - iv. ☒ Online documentation submission.

- v. ☐ Cross-program redeterminations.
  - vi. ☒ Extended office hours (evenings and/or weekends).
  - vii. ☒ Consultation available via phone.
  - viii. ☐ Leveraging eligibility from other public assistance programs.
  - ix. ☒ Other. Describe: **The Department's Child Care Assistance Workers conduct interviews over the phone at the convenience of the parent. Applications, verifications, and all other necessary information can be emailed, faxed, scanned or mailed to the Department's Child Care Assistance Worker.**
- b. Does the Lead Agency use different policies for families receiving TANF assistance?
- ☐ Yes. If yes, describe the policies:
- ☒ No.

## 2.2 Eligible Children and Families

At eligibility determination or redetermination, children must (1) be younger than age 13; (2) reside with a family whose income does not exceed 85 percent of the State's median income (SMI) for a family of the same size and whose family assets do not exceed \$1,000,000; and (3)(a) reside with a parent or parents who are working or attending a job training or educational program (which can include job search) or (b) receive, or need to receive, protective services as defined by the Lead Agency.

### 2.2.1 Eligibility criteria: age of children served

Lead Agencies may provide child care assistance for children less than 13 years of age, including continuing to provide assistance to children if they turn 13 during the eligibility period. In addition, Lead Agencies can choose to serve children up to age 19 if those children are unable to care for themselves.

- a. Does your Lead Agency serve the full federally allowable age range of children through age 12?
- ☒ Yes.
- ☐ No. If no, describe the age range of children served and the reason why you made that decision to serve less than the full range of allowable children.
- Note:* Do not include children incapable of self-care or under court supervision, who are reported below in 2.2.1b and 2.2.1c.
- b. Does the Lead Agency extend eligibility for CCDF-funded child care to children ages 13 and older but below age 19 who are physically and/or mentally incapable of self-care?
- ☐ No.
- ☒ Yes.
- i. If yes, the upper age is (may not equal or exceed age 19): **18.00**
  - ii. If yes, provide the Lead Agency definition of physical and/or mental incapacity: **A child who is less than 18 years old who is developmentally disabled or has a**

mental or physical incapacity which limits her/his ability to care for herself/himself. Developmentally Delayed (DD) is a child who is experiencing developmental delays in one or more of the following areas: (i) Cognitive development; (ii) Physical development including hearing and vision, language and speech development; (iii) Psychosocial development; or (iv) Self-help skills.

- c. Does the Lead Agency extend eligibility for CCDF-funded child care to children ages 13 and older but below age 19 who are under court supervision?

☐ No.

☒ Yes. If yes, and the upper age is (may not equal or exceed age 19): **18.00**

- d. How does the Lead Agency define the following eligibility terms?

- i. “residing with”: **The people occupying one (1) or more rooms of a house, apartment or mobile home, hotel, motel, etc., and may include one (1) or more assistance units and/or ineligible person(s).**
- ii. “in loco parentis”: **is a child's parent (as defined herein) or other adult who has a court order giving legal responsibilities and/or legal guardianship and who is exercising the care and control of the child(ren). This includes foster parents and the spouse of the caretaker.**

#### 2.2.2 Eligibility criteria: reason for care

Lead Agencies have broad flexibility on the work, training, and educational activities required to qualify for child care assistance. Lead Agencies do not have to set a minimum number of hours for families to qualify for work, training, or educational activities, and there is no requirement to limit authorized child care services strictly based on the work, training, or educational schedule/hours of the parent(s). For example, the Lead Agency can include travel or study time in calculating the amount of needed services.

How does the Lead Agency define the following terms for the purposes of determining CCDF eligibility?

- a. Identify which of the following activities are included in your definition of “working” by checking the boxes below:

- i. ☒ An activity for which a wage or salary is paid.
- ii. ☒ Being self-employed.
- iii. ☐ During a time of emergency or disaster, partnering in essential services.
- iv. ☒ Participating in unpaid activities like student teaching, internships, or practicums.
- v. ☒ Time for meals or breaks.
- vi. ☒ Time for travel.
- vii. ☒ Seeking employment or job search.
- viii. ☐ Other. Describe:

- b. Identify which of the following activities are included in your definition of “attending job training” by checking the boxes below:

- i. ☒ Vocational/technical job skills training.
  - ii. ☒ Apprenticeship or internship program or other on-the-job training.
  - iii. ☐ English as a Second Language training.
  - iv. ☐ Adult Basic Education preparation.
  - v. ☒ Participation in employment service activities.
  - vi. ☒ Time for meals and breaks.
  - vii. ☒ Time for travel.
  - viii. ☐ Hours required for associated activities such as study groups, lab experiences.
  - ix. ☐ Time for outside class study or completion of homework.
  - x. ☐ Other. Describe:
- c. Identify which of the following diplomas, certificates, degrees, or activities are included in your definition of “attending an educational program” by checking the boxes below:
- i. ☒ Adult High School Diploma or GED.
  - ii. ☒ Certificate programs (12-18 credit hours).
  - iii. ☒ One-year diploma (36 credit hours).
  - iv. ☒ Two-year degree.
  - v. ☒ Four-year degree.
  - vi. ☒ Travel to and from classrooms, labs, or study groups.
  - vii. ☐ Study time.
  - viii. ☒ Hours required for associated activities such as study groups, lab experiences.
  - ix. ☐ Time for outside class study or completion of homework.
  - x. ☒ Applicable meal and break times.
  - xi. ☐ Other. Describe:
- d. Does the Lead Agency impose a Lead Agency-defined minimum number of hours of activity for eligibility?
- ☐ No.
  - ☒ Yes.
- If yes, describe any Lead Agency-imposed minimum requirement for the following:
- ☐ Work. Describe:
  - ☐ Job training. Describe:
  - ☐ Education. Describe:
  - ☐ Combination of allowable activities. Describe:
  - ☒ Other. Describe: **Initial job search is an approved activity with a 20 hour limit**

per week.

- e. Does the Lead Agency allow parents to qualify for CCDF assistance based on education and training without additional work requirements?

☒ Yes.

☐ No. If no, describe the additional work requirements:

- f. Does the Lead Agency extend eligibility to specific populations of children otherwise not eligible by including them in its definition of “children who receive or need to receive protective services?”

Note: A Lead Agency may elect to provide CCDF-funded child care to children in foster care when foster care parents are *not* working or are *not* in education/training activities, but this provision should be included in the Lead Agency’s protective services definition.

☐ No. If no, skip to question 2.2.3.

☒ Yes. If yes, answer the questions below:

Provide the Lead Agency’s definition of “protective services” by checking below the sub-populations of children that are included:

☒ Children in foster care.

☒ Children in kinship care.

☒ Children who are in families under court supervision.

☐ Children who are in families receiving supports or otherwise engaged with a child welfare agency.

☐ Children participating in a Lead Agency’s Early Head Start - Child Care Partnerships program.

☐ Children whose family members are deemed essential workers under a governor-declared state of emergency.

☒ Children experiencing homelessness.

☐ Children whose family has been affected by a natural disaster.

☐ Other. Describe:

- g. Does the Lead Agency waive the income eligibility requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis?

☐ No.

☒ Yes.

- h. Does the Lead Agency waive the eligible activity (e.g., work, job training, education, etc.) requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis?

☒ No.

☐ Yes.

- i. Does the Lead Agency use CCDF funds to provide respite care to custodial parents of children in protective services?

☒ No.

☐ Yes.

#### 2.2.3 Eligibility criteria: deciding entity on family income limits

How are income eligibility limits established?

☒ There is a statewide limit with no local variation.

☐ There is a statewide limit with local variation. Provide the number of income eligibility tables and describe who sets the limits:

☐ Eligibility limits are established locally only. Provide the number of income eligibility tables and describe who sets the limits:

☐ Other. Describe:

#### 2.2.4 Initial eligibility: income limits

- a. Complete the appropriate table to describe family income limits.

- i. Complete the table below to provide the statewide maximum income eligibility percent and dollar limit or threshold:

| Family Size | 100% of SMI (\$/Month) | Maximum Initial Eligibility Limit (or Threshold) % | Maximum Initial Eligibility Limit (or Threshold) \$ |
|-------------|------------------------|----------------------------------------------------|-----------------------------------------------------|
| 1           | 4511.00                | 49.00                                              | 2196.00                                             |
| 2           | 5900.00                | 51.00                                              | 2981.00                                             |
| 3           | 7288.00                | 52.00                                              | 3765.00                                             |
| 4           | 8676.00                | 52.00                                              | 4550.00                                             |
| 5           | 10064.00               | 53.00                                              | 5335.00                                             |

- ii. Does the Lead Agency certify that they use other funds if the income eligibility limit percent exceeds 85% SMI?

☒ Not applicable. The Lead Agency does not allow income eligibility limits above 85% SMI.

☐ Yes, the Lead Agency certifies that they use other funds (non-CCDF funds) for families with income that exceeds 85% SMI.

☐ No. The Lead Agency establishes income eligibility limits above SMI and includes CCDF funds to pay for families with income that exceeds 85% SMI. If checked, describe:

- b. Complete the table below if the Lead Agency has local variation in the maximum income eligibility limit. Complete the table for the region/locality with the highest eligibility limit, region/locality with the lowest eligibility limit, and the region/locality that is most

populous:

i. Region/locality with the highest eligibility limit:

| Family Size | 100% of SMI (\$/Month) | Maximum Initial Eligibility Limit (or Threshold) % | Maximum Initial Eligibility Limit (or Threshold) \$ |
|-------------|------------------------|----------------------------------------------------|-----------------------------------------------------|
| 1           |                        |                                                    |                                                     |
| 2           |                        |                                                    |                                                     |
| 3           |                        |                                                    |                                                     |
| 4           |                        |                                                    |                                                     |
| 5           |                        |                                                    |                                                     |

ii. Region/locality with the lowest eligibility limit:

| Family Size | 100% of SMI (\$/Month) | Maximum Initial Eligibility Limit (or Threshold) % | Maximum Initial Eligibility Limit (or Threshold) \$ |
|-------------|------------------------|----------------------------------------------------|-----------------------------------------------------|
| 1           |                        |                                                    |                                                     |
| 2           |                        |                                                    |                                                     |
| 3           |                        |                                                    |                                                     |
| 4           |                        |                                                    |                                                     |
| 5           |                        |                                                    |                                                     |

iii. Region/locality that is most populous:

| Family Size | 100% of SMI (\$/Month) | Maximum Initial Eligibility Limit (or Threshold) % | Maximum Initial Eligibility Limit (or Threshold) \$ |
|-------------|------------------------|----------------------------------------------------|-----------------------------------------------------|
| 1           |                        |                                                    |                                                     |
| 2           |                        |                                                    |                                                     |
| 3           |                        |                                                    |                                                     |
| 4           |                        |                                                    |                                                     |
| 5           |                        |                                                    |                                                     |

iv. Does the Lead Agency certify that they use other funds if the income eligibility limit percent exceeds 85% SMI?

[ ] Not applicable. The Lead Agency does not allow income eligibility limits above 85% SMI.

☐ Yes, the Lead Agency certifies that they use other funds (not CCDF funds) for families with income that exceeds 85% SMI.

☐ No. The Lead Agency establishes income eligibility limits above 85% SMI and includes CCDF funds to pay for families with income that exceeds 85% SMI. If checked, describe:

c. How does the Lead Agency define “income” for the purposes of eligibility at the point of initial determination? Check all that apply:

- i. ☒ Gross wages or salary.
- ii. ☒ Disability or unemployment compensation.
- iii. ☒ Workers’ compensation.
- iv. ☒ Spousal support, child support.
- v. ☒ Survivor and retirement benefits.
- vi. ☐ Rent for room within the family’s residence.
- vii. ☒ Pensions or annuities.
- viii. ☒ Inheritance.
- ix. ☐ Public assistance.
- x. ☐ Other. Describe:

d. What is the effective date for these income eligibility limits? **April 1, 2024**

e. Income limits must be established and reported in terms of current SMI based on the most recent data published by the Bureau of the Census, even if the federal poverty level is used in implementing the program.

What federal data does the Lead Agency use when reporting the income eligibility limits?

☒ LIHEAP. If checked, provide the publication year of the LIHEAP guideline estimates used by the Lead Agency: **2024**

☐ Other. Describe:

f. Provide the direct URL/website link, if available, for the income eligibility limits.  
**<https://drive.google.com/file/d/1rG1a7x4V5KKLiipNUwMVmemHBLWZS5MZ/view?usp=sharing>**

#### 2.2.5 Income eligibility: irregular fluctuations in earnings

Lead Agencies must take into account irregular fluctuations in earnings in initial eligibility determination and redetermination processes. The Lead Agency must ensure that temporary increases in income, including temporary increases that can result in a monthly income exceeding 85 percent of SMI from seasonal employment or other temporary work schedules, do not affect eligibility or family co-payments.

Check the processes that the Lead Agency uses to take into account irregular fluctuations in earnings.

- i. ☒ Average the family’s earnings over a period of time (e.g., 12 months).

Identify the period of time **12 months**

- ii. ☒ Request earning statements that are most representative of the family's monthly income.
- iii. ☒ Deduct temporary or irregular increases in wages from the family's standard income level.
- iv. ☒ Other. Describe the other ways the Lead Agency takes into account irregular fluctuations in earnings: **The Department takes into account fluctuation of earnings. From Section 200 of the Child Care Policy Manual, the definition of fluctuating income is "monthly income that varies in frequency of receipt or amount each month due to working overtime, hourly pay with varying hours, receipt of tips or commissions, changes of hours or pay rate or decreases or increase in hours of work due to vacations, sick leave or seasonal employment."** The Department's policy on handling fluctuating income, per section 905 D of the Child Care Policy Manual is as follows: **Best Estimate For Cases With Fluctuation of Earnings Due to Seasonal or Migrant Employment. Review the income documents and information obtained during the interview to determine what income is best reflective of future circumstances.**

#### 2.2.6 Family asset limit

- a. When calculating income eligibility, does the Lead Agency ensure each eligible family does not have assets that exceed \$1,000,000?  
☒ Yes.  
☐ No. If no, describe:
- b. Does the Lead Agency waive the asset limit on a case-by-case basis for families defined as receiving, or in need of, protective services?  
☒ No.  
☐ Yes. If yes, describe the policy or procedure:

#### 2.2.7 Additional eligibility criteria

Aside from the eligibility conditions or rules which have been described in 2.2.1 – 2.2.6, is any additional eligibility criteria applied during:

- a. ☐ Eligibility determination? If checked, describe:
- b. ☐ Eligibility redetermination? If checked, describe:

#### 2.2.8 Documentation of eligibility determination

Lead Agencies must document and verify that children receiving CCDF funds meet eligibility criteria at the time of eligibility determination and redetermination.

Check the information that the Lead Agency documents and verifies at initial determination and redetermination and describe what information is required and how often.

| Required at Initial Determination | Required at Redetermination | Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-----------------------------------|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| [x]                               | [ ]                         | Applicant identity. Describe how you verify: <b>Verification of identity must be submitted by the applicant using one of the allowed pieces of evidence including, but not limited to: driver's license, birth certificate, state issued identification or passport. This information is only required at the initial application.</b>                                                                                                                                                                                                                              |
| [x]                               | [ ]                         | Applicant's relationship to the child. Describe how you verify: <b>Verification of relationship to the child must be submitted by the applicant using one (1) of the allowed pieces of evidence including, but not limited to: birth certificate, adoption papers, divorce decrees, hospital records of birth, or vital statistics.</b>                                                                                                                                                                                                                             |
| [x]                               | [ ]                         | Child's information for determining eligibility (e.g., identity, age, citizen/immigration status). Describe how you verify: <b>Age, citizenship and identity for the child are all verified by the birth certificate or vital statistics.</b>                                                                                                                                                                                                                                                                                                                       |
| [x]                               | [x]                         | Work. Describe how you verify: <b>An employer's statement or pay stubs are required to document work participation.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| [x]                               | [x]                         | Job training or educational program. Describe how you verify: <b>Education must be verified by a class schedule or by a statement from the educational/training institution.</b>                                                                                                                                                                                                                                                                                                                                                                                    |
| [x]                               | [x]                         | Family income. Describe how you verify: <b>Income must be verified by wage stubs for existing employment or an employer's statement for new or changed employment. Self-employment must be verified by income tax returns or business ledgers. Child support may be verified by information from the Child Support Program, Clerk of Court or divorce or separation decree. If the client participates in a program that interfaces with another agency for verification, the Child Care program will use this information to determine child care eligibility.</b> |
| [x]                               | [x]                         | Household composition. Describe how you verify: <b>Household composition is verified by the child care assistance worker based on the circumstances of the household. Hard copy verification such as marriage certificates, school records, or property owner statements may be necessary to document the circumstances. This information is required at the initial application and subsequent redeterminations.</b>                                                                                                                                               |

| Required at Initial Determination   | Required at Redetermination         | Description                                                                                                                                                            |
|-------------------------------------|-------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Applicant residence. Describe how you verify: <b>Based on client's statement. This information is required at initial application and subsequent redeterminations.</b> |
| <input type="checkbox"/>            | <input type="checkbox"/>            | Other. Describe how you verify: <b>n/a</b>                                                                                                                             |

### 2.2.9 Exception to TANF work requirements

Lead Agencies must ensure that families with young children participating in TANF will be informed of their right not to be sanctioned under the TANF work requirement if the custodial parent has a demonstrated inability to obtain child care for a child under age six, in accordance with Section 407(e)(2) of the Social Security Act.

- a. Identify the TANF agency that established these criteria or definitions: **Wyoming Department of Family Services**
- b. Provide the following definitions established by the TANF agency:
  - i. "Appropriate child care": **Child care meeting Wyoming licensing standards or if legally exempt from child care licensing requirements meeting minimum health and safety requirements as outlined by the CCDF. All providers must also receive a favorable Central Registry and full fingerprint based national criminal check.**
  - ii. "Reasonable distance": **The distance from home to work does not exceed two (2) hours per day not including the transportation of a child(ren) to and from a child care facility.**
  - iii. "Unsuitability of informal child care": **Care provided by unlicensed or non-certified child care providers that is not safe or fit to ensure the child's health and safety.**
  - iv. "Affordable child care arrangements": **An available child care provider in the community whose charges for services do not exceed the local market rate established at the 75th percentile.**
- c. How are parents who receive TANF benefits informed about the exception to the individual penalties associated with the TANF work requirements?
  - i. ☒ In writing
  - ii. ☒ Verbally
  - iii. ☐ Other. Describe:

## 2.3 Prioritizing Services for Vulnerable Children and Families

Lead Agencies must give priority for child care assistance to children with special needs, families with very low incomes (considering family size), and children experiencing homelessness. A Lead Agency has the flexibility to prioritize other populations of children.

Note: Statute defines children with disabilities, and CCDF rule gives flexibility to Lead Agencies to include vulnerable populations in their definition of children with special needs.

CCDF defines “child experiencing homelessness” as a child who is homeless, as defined in Section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a).

### 2.3.1 Lead Agency definition of priority groups

Describe how the Lead Agency defines:

- d. “Children with special needs.” **A child who is less than 18 years old who is developmentally disabled or has a mental or physical incapacity which limits her/his ability to care for herself/himself.**
- e. “Families with very low incomes.” **A family whose income is at or below 100% of the federal Poverty level.**

### 2.3.2 Prioritization of child care services

Identify how the Lead Agency will prioritize child care services for the following children and families.

- a. Complete the table below to indicate how the identified populations are prioritized.

| Population Prioritized                                 | Prioritize for enrollment in child care services | Serve without placing on waiting list | Waive co-payments as described in 3.3.1 | Pay higher rate for access to higher quality care | Use grants or contracts to reserve spots | Other                                                                                                                                                    |
|--------------------------------------------------------|--------------------------------------------------|---------------------------------------|-----------------------------------------|---------------------------------------------------|------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|
| Children with special needs                            | <input type="checkbox"/>                         | <input checked="" type="checkbox"/>   | <input type="checkbox"/>                | <input type="checkbox"/>                          | <input type="checkbox"/>                 | <input checked="" type="checkbox"/> Describe: Wyoming pays a higher rate for special needs children but not necessary for access to higher quality care. |
| Families with very low incomes                         | <input type="checkbox"/>                         | <input checked="" type="checkbox"/>   | <input checked="" type="checkbox"/>     | <input type="checkbox"/>                          | <input type="checkbox"/>                 | <input type="checkbox"/> Describe:                                                                                                                       |
| Children experiencing homelessness, as defined by CCDF | <input type="checkbox"/>                         | <input checked="" type="checkbox"/>   | <input type="checkbox"/>                | <input type="checkbox"/>                          | <input type="checkbox"/>                 | <input type="checkbox"/> Describe:                                                                                                                       |

| Population Prioritized                                                                                                       | Prioritize for enrollment in child care services | Serve without placing on waiting list | Waive co-payments as described in 3.3.1 | Pay higher rate for access to higher quality care | Use grants or contracts to reserve spots | Other                              |
|------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------|---------------------------------------|-----------------------------------------|---------------------------------------------------|------------------------------------------|------------------------------------|
| (Optional) Families receiving TANF, those attempting to transition off TANF, and those at risk of becoming dependent on TANF | <input type="checkbox"/>                         | <input checked="" type="checkbox"/>   | <input checked="" type="checkbox"/>     | <input type="checkbox"/>                          | <input type="checkbox"/>                 | <input type="checkbox"/> Describe: |

a. Does the Lead Agency define any other priority groups?

☐ No.

☒ Yes. If yes, identify the populations prioritized and describe how the Lead Agency prioritizes services: **Foster Care**

### 2.3.3 Enrollment and grace period for children experiencing homelessness

Lead Agencies must allow (after an initial eligibility determination) children experiencing homelessness to receive CCDF services while required eligibility documentation is obtained.

Lead Agencies must establish a grace period that allows children experiencing homelessness and children in foster care to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with State, Territory, or local immunization and other health and safety requirements. The length of such a grace period must be established in consultation with the State, Territorial, or Tribal public health agency.

Note: Any payment for such a child during the grace period may not be considered an error or improper payment.

- a. Describe the strategies to allow CCDF enrollment of children experiencing homelessness while required eligibility documentation is obtained: **From the date of application, a 30 day grace period is given to families identified as homeless to provide necessary documentation. The Department assists in collecting required documentation as they are able. If required verification is not received, care is no longer available past the 30 day grace period. The Department does not recover payment from families. Child Care Licensing accepts immunization exemptions for homeless families from their child care provider.**
- b. Describe the grace period for each population below and how it allows them to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunization and other health and safety requirements.
  - i. Provide the policy for a grace period for:

Children experiencing homelessness: **30 days from date of application**

Children who are in foster care: **30 days from date of application**

- ii. Does the Lead Agency certify that the length of the grace period was established in consultation with the State, Territorial, or Tribal public health agency?  
☒ Yes.  
☐ No. If no, describe:
- c. Describe how the Lead Agency coordinates with licensing agencies and other relevant State, Territorial, Tribal, and local agencies to provide referrals and support to help families with children receiving services during a grace period comply with immunization and other health and safety requirements: **The Department is responsible for Child Care Licensing. Consequently, Child Care Licensing accepts immunization and other health and safety requirement exemptions for homeless families from their child care provider. Child care eligibility workers refer families with children receiving services to local community health departments for access to immunization and other health related information. In addition, the Department's Family Resource page includes information for parents, providers and other caregivers identifying how and where to access important information related to compliance with immunization and other health and safety requirements.**

## 2.4 Lead Agency Outreach to Families Experiencing Homelessness, Families with Limited English Proficiency, and Persons with Disabilities

The Lead Agency must conduct outreach and provide services to families with limited English proficiency, families experiencing homelessness, and persons with disabilities.

### 2.4.1 Families with limited English proficiency and persons with disabilities: outreach and services

- a. Check the strategies the Lead Agency or partners utilize to conduct outreach and provide services to eligible families with limited English proficiency. Check all that apply.
  - i. ☒ Application in languages other than English (application and related documents, brochures, provider notices).
  - ii. ☐ Informational materials in languages other than English.
  - iii. ☒ Website in languages other than English.
  - iv. ☐ Lead Agency accepts applications at local community-based locations.
  - v. ☒ Bilingual caseworkers or translators available.
  - vi. ☐ Bilingual outreach workers.
  - vii. ☐ Partnerships with community-based organizations.
  - viii. ☐ Collaboration with Head Start, Early Head Start, or Migrant and Seasonal Head Start.
  - ix. ☐ Home visiting programs.
  - x. ☐ Other. Describe:
- b. Check the strategies the Lead Agency or partners utilize to conduct outreach and provide

services to eligible families with a person(s) with a disability. Check all that apply.

- i. ☐ Applications and public informational materials available in braille and other communication formats for access by individuals with disabilities.
- ii. ☒ Websites that are accessible (e.g., Section 508 of the Rehabilitation Act).
- iii. ☐ Caseworkers with specialized training/experience in working with individuals with disabilities.
- iv. ☐ Ensuring accessibility of environments and activities for all children.
- v. ☐ Partnerships with State and local programs and associations focused on disability- related topics and issues.
- vi. ☒ Partnerships with parent associations, support groups, and parent-to-parent support groups, including the Individuals with Disabilities Education Act (IDEA) federally funded Parent Training and Information Centers.
- vii. ☒ Partnerships with State and local IDEA Part B, Section 619 and Part C providers and agencies.
- viii. ☒ Availability and/or access to specialized services (e.g., mental health, behavioral specialists, therapists) to address the needs of all children.
- ix. ☐ Other. Describe:

#### 2.4.2 Families experiencing homelessness: Outreach and technical assistance efforts

- a. Check, where applicable, the procedures used to conduct outreach for children experiencing homelessness and their families.
  - i. ☐ Lead Agency accepts applications at local community-based locations.
  - ii. ☒ Partnerships with community-based organizations.
  - iii. ☒ Partnering with homeless service providers, McKinney-Vento liaisons, and others who work with families experiencing homelessness to provide referrals to child care.
  - iv. ☐ Other. Describe:
- b. The Lead Agency must provide training and technical assistance (TA) to providers and appropriate Lead Agency (or designated entity) staff on identifying and serving children and families experiencing homelessness.
  - i. Describe the Lead Agency's training and TA efforts for providers in identifying and serving children and their families experiencing homelessness. **The Department, in collaboration with the Department of Education, McKinney-Vento Coordinator, provides statewide training and technical assistance to providers. The training is delivered at statewide conferences, provider meetings, provider and parent newsletters. The McKinney-Vento Coordinator provides technical assistance to individual providers and the Department on an as-needed basis.**
  - ii. Describe the Lead Agency's training and TA efforts for Lead Agency (or designated entity) staff in identifying and serving children and their families experiencing homelessness. **The Department, in collaboration with the Department of**

Education, McKinney-Vento Coordinator, provides statewide training and technical assistance to Department staff. The training is delivered at statewide conferences, staff meetings. The McKinney-Vento Coordinator provides technical assistance to the Department on an as-needed basis.

## 2.5 Promoting Continuity of Care

Lead Agencies must consider children’s development and promote continuity of care when authorizing child care services and must establish a minimum 12-month period for each child, both at the initial eligibility determination and redetermination.

### 2.5.1 Children’s development

Describe how the Lead Agency’s eligibility, enrollment, reporting, and redetermination policies promote continuity of care in order to support children’s development. **Wyoming has established a minimum 12-month eligibility period for each child, both at the initial determination and at redetermination. Additionally, Wyoming only requires families to report changes to income in excess of 85% of SMI. However, if other changes are reported, the department will take appropriate action based on the reported change. Redetermination of benefits only requires verification of income, eligible activities and Wyoming residency. These policy decisions support continuity of care for children receiving assistance and reduce barriers to families retaining eligibility.**

### 2.5.2 Minimum 12-month eligibility

Lead Agencies must establish a minimum 12-month eligibility period for each child, both at the initial eligibility determination and at redetermination to support continuity in child care assistance and reduce barriers to families retaining eligibility. This requirement is:

- Regardless of changes in income, Lead Agencies may not terminate CCDF assistance during the minimum 12-month period if a family has an increase in income that exceeds the Lead Agency’s income eligibility threshold but not the federal threshold of 85 percent of SMI; and
- Regardless of temporary changes in participation in work, training, or educational activities.
  - a. Does the Lead Agency certify that their policies or procedures provide a minimum 12-month eligibility period for each child at initial eligibility determination?  
☒ Yes.  
☐ No. If no, describe:
  - b. Does the Lead Agency certify that its definition of “temporary change” includes each of the minimum required elements?
    1. Any time-limited absence from work for an employed parent due to such reasons as the need to care for a family member or an illness.
    2. Any interruption in work for a seasonal worker who is not working between regular industry work seasons.
    3. Any student holiday or break for a parent participating in a training or educational program.

4. Any reduction in work, training, or education hours, as long as the parent is still working or attending a training or educational program.
5. Any cessation of work or attendance at a training or educational program not listed above. In these cases only, Lead Agencies may establish a period of 3 months or longer.
6. Any change in age, including a child turning 13 years old during the minimum 12-month eligibility period.
7. Any changes in residency within the State or Territory.

☒ Yes.

☐ No. If no, describe:

- c. Are the policies different for redetermination?

☒ No.

☐ Yes. If yes, provide the additional/varying policies for redetermination:

### 2.5.3 Job search and continued assistance

- a. Does the Lead Agency consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination and/or at the minimum 12-month eligibility redetermination? (Note: If yes, Lead Agencies must provide a minimum of 3 months of job search.) Check all that apply:

i. ☒ Yes. The Lead Agency does consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination. If yes, describe: **Initial job search is allowed up to 3 months.**

ii. ☒ Yes. The Lead Agency does consider seeking employment (engaging in a job search) as an eligible activity at redetermination. If yes, describe: **Job search is allowed up to 3 months.**

iii. ☐ No. The Lead Agency does not consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination or redetermination.

- b. Does the Lead Agency continue assistance during the minimum 12-month eligibility period when a parent has a non-temporary loss or cessation of eligible activity?

☐ Yes. The Lead Agency continues assistance.

☒ No, the Lead Agency discontinues assistance.

i. If no, describe the Lead Agency's policies for discontinuing assistance due to a parent's non-temporary change: **Families are not required to report a non-temporary loss or cessation in eligible activity; however, if families choose to report a non-temporary change, they are allowed three (3) months to engage in another eligible activity to receive continued assistance. For the purposes of this, a non-temporary change is a change exceeding three (3) months.**

ii. If no, describe what specific actions/changes trigger the job-search period after each such loss or cessation: **If families choose to report a non-temporary change, they are allowed three (3) months to engage in another eligible activity to receive continued assistance**

- iii. If no, how long is the job-search period where a family can continue assistance (must be at least 3 months)? **3 months**
  - c. The Lead Agency may discontinue assistance prior to the next minimum 12-month redetermination in the limited circumstances listed below. Check and provide the policy for all circumstances in which the Lead Agency chooses to discontinue assistance prior to the next minimum 12-month redetermination:
    - i. ☐ Not applicable.
    - ii. ☐ Excessive unexplained absences despite multiple attempts by the Lead Agency or designated entity to contact the family and provider, including the prior notification of a possible discontinuation of assistance.  
 Provide the Lead Agency's policy defining the number of unexplained absences identified as excessive:
    - iii. ☐ A change in residency outside of the State or Territory.  
 Provide the Lead Agency's policy for a change in residency outside the State or Territory:
    - iv. ☒ Substantiated fraud or intentional program violations that invalidate prior determinations of eligibility.  
 Provide the Lead Agency's definition of fraud/intentional program violations that lead to discontinued assistance: **The Wyoming Purchase of Service rules define the standard for fraud/intentional program violations that lead to discontinued assistance as: Child care assistance shall not be available to an assistance unit if fraud against DFS has been established in a court of law or by a DFS hearing officer. The assistance unit is ineligible until all penalties have been served and full restitution has been made.**

#### 2.5.4 Reporting changes during the minimum 12-month eligibility period

Lead Agencies may only require families to report changes that impact a family's eligibility, including only if the family's income exceeds 85 percent of the SMI, taking into account irregular fluctuations in income, or there is a non-temporary change in the parent's work, training, or education status, during the 12-month eligibility period. Lead Agencies may also require families to report that enable the lead agency to contact the family or pay providers, such as a new telephone number or address.

Note: The response below should exclude reporting requirements for a graduated phase-out, which are described in question 2.5.5.

Does the Lead Agency limit what families must report during the 12-month eligibility period to the changes described above?

☒ Yes.

☐ No. If no, describe:

#### 2.5.5 Policies and procedures for graduated phase-out of assistance at redetermination

Lead Agencies that establish initial family income eligibility below 85 percent of SMI must provide a graduated phase-out of assistance for families whose income has increased above the Lead Agency's initial income threshold at the time of redetermination but remains below the federal threshold of 85 percent of SMI.

Lead Agencies that provide a graduated phase-out must implement a two-tiered eligibility threshold, with the second tier of eligibility (used at the time of eligibility redetermination) to be set at:

- (i) 85 percent of SMI for a family of the same size; or,
- (ii) An amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold that:
  - (A) Takes into account the typical household budget of a family with a low income
  - (B) Provides justification that the second eligibility threshold is:
    - (1) Sufficient to accommodate increases in family income over time that are typical for workers with low incomes and that promote and support family economic stability
    - (2) Reasonably allows a family to continue accessing child care services without unnecessary disruption

At redetermination, a child must be considered eligible if their parents are participating in an eligible activity even if their income exceeds the Lead Agency's initial eligibility income limit as long as their income does not exceed the second tier of eligibility. Note that once determined eligible, the child must be considered eligible for a full minimum 12-month eligibility period, even if the parents' income exceeds the second tier of eligibility during the eligibility period, as long as it does not exceed 85 percent of SMI.

A child eligible for services via the graduated phase-out of assistance is considered eligible under the same conditions as other eligible children with the exception of the co-payment restrictions, which do not apply to a graduated phase-out. To help families transition from child care assistance, Lead Agencies may gradually adjust co-payment amounts in proportion to a family's income growth for families whose children are determined eligible under a graduated phase-out. Lead Agencies may require additional reporting on changes in family income but must still ensure that any additional reporting requirements do not constitute an undue burden on families.

Check and describe the option that best identifies the Lead Agency's policies and procedures regarding the graduated phase-out of assistance.

- a. ☐ Not applicable. The Lead Agency sets its initial eligibility threshold at 85 percent of SMI and therefore is not required to provide a graduated phase-out period. (If checked, skip to question 3.1.1.)
- b. ☐ The Lead Agency sets the second tier of eligibility at 85 percent of SMI. If checked, describe the policies and procedures:
  - i. ☐ Lead Agency adjusts the family's co-pay during the graduated phase-out period. If checked, describe how the Lead Agency gradually adjusts co-payment for families under a graduated phase-out period in proportion to a family's income growth. Include information on the percentage or amount of change made in the co-payment during graduated phase-out:
  - ii. ☐ Lead Agency requires additional reporting requirements during the graduated

phase-out period. If checked, describe:

- c. ☒ The Lead Agency sets the second tier of eligibility at an amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold. If checked, provide the following information:
- i. Provide the income level (\$/month) and the percent of SMI for the second tier of eligibility for a family of three: **\$4,841 (225% of FPL).**
  - ii. Describe how the second eligibility threshold takes into account the typical household budget of a low-income family: **Using the example of a family of three, our graduated phase out allows an increase of gross monthly income of \$1076 a month, \$12,912 a year. This allows for a gradual increase of wages for a family while remaining below 85% SMI.**
  - iii. Describe how the second eligibility threshold is sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability: **Wyoming's second eligibility threshold for a family of three allows an increase of income of \$12,912 a year, which is sufficient to accommodate increases of family income over time. This increase is above average for a typical low income worker and would promote and support economic stability. According to Wyoming Self Sufficiency Standard (<https://wywf.org/self-sufficiency-calculator/>), a household of three with one preschooler and one school aged child living in Laramie County, requires a monthly wage of \$5,268 per month to be self sufficient.**
  - iv. Describe how the second eligibility threshold reasonably allows a family to continue accessing child care services without unnecessary disruption: **With an increase in income of \$12,912 per year for a household size of three, which is above average for a low income family, Wyoming's second eligibility threshold allows families to continue accessing child care services at re-determination. In addition, a family's income can increase up to 85% SMI during the 12 month eligibility period.**
  - v. ☒ Lead Agency adjusts the family's co-pay during the graduated phase-out period. If checked, describe how the Lead Agency gradually adjusts co-payment for families under a graduated phase-out period in proportion to a family's income growth. Include information on the percentage or amount of change made in the co-payment during graduated phase-out: **The client needs to meet steps 1-4 in the initial application process and then can phase out in steps 5-6 at redetermination. This gradual phase-out slowly decreases the amount of assistance the participant is eligible to receive while simultaneously slowly increasing the amount of copays. The co-payments increase \$2.96 per day for full day care from step 4 to step 5 and \$4.32 per day for full day care from step 5 to step 6.**
  - vi. ☐ Lead Agency requires additional reporting requirements during the graduated

phase-out period. If checked, describe:

### 3 Child Care Affordability

CCDF subsidies make child care more affordable for eligible families, providing access to a greater range of child care options that allow parents to work, go to school, or enroll in training and they allow parents to access higher quality care options that better support children's development. CCDF requires some families participating in CCDF to pay an affordable co-payment set by the Lead Agency to cover a part of their care. But co-payments can be a significant and destabilizing financial strain on family budgets and a barrier to parent employment, and the CCDBG Act requires that the co-payment amount not be a barrier to families participating in CCDF. Lead Agencies may not set parent co-payments above 7% of family income regardless of gradual phase-out policies and regardless of the number of children receiving assistance. Lead Agencies are encouraged to set co-payments much lower than 7% to make child care more affordable for more families and have broad flexibility to waive co-payments for too many participants. Lead Agencies must ensure that the total payment to a child care provider is not reduced because of family's lowered or waived co-payment.

In this section, Lead Agencies will identify how they determine an eligible family's co-payment, the policies in place to waive or ensure co-payments are affordable for families, and how the Lead Agency improves access for children and families in economically and/or socially marginalized communities.

#### 3.1 Family Co-payments

Lead Agencies must establish and periodically revise a sliding-fee scale for families receiving CCDF services that varies based on income and the size of the family to determine each family's contribution (i.e., co-payment) and does not create a barrier to receiving CCDF assistance. In addition to income and the size of the family, the Lead Agency may use other factors as appropriate when determining family contributions/co-payments. Lead Agencies may not use price of care or amount of subsidy payment in determining co-payments. Lead Agencies must ensure that the total payment to a child care provider is not reduced because of family's lowered or waived co-payment.

##### 3.1.1 Family co-payment

Lead Agencies may not charge any family more than 7% of a family's gross income, regardless of the number of children participating in CCDF.

- a. What is the maximum percent of a family's gross income any family could be charged as a co-payment? **A family will not be charged more than 7% as a copayment.**
- b. Does the Lead Agency certify that their sliding fee scales are always based on income and family size (regardless of how many different scales they may use)?

☒ Yes.

☐ No. If no, describe:

##### 3.1.2 Sliding fee scale

Provide the CCDF co-payments for eligible families in the table(s) below according to family size for one child in care.

- a. Is the sliding fee scale set statewide?

☒ Yes.

☐ No. If no, describe how the sliding fee scale is set:

- b. Complete the table below. If the sliding fee scale is not set statewide, complete the table for the most populous locality:

|             | <i>A</i>                                                                                                    | <i>B</i>                                                                                   | <i>C</i>                                            | <i>D</i>                                                                                                                | <i>E</i>                                                                                   | <i>F</i>                                             |
|-------------|-------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|-----------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|------------------------------------------------------|
| Family Size | Lowest monthly income at initial eligibility where the family is first charged a co-pay (greater than \$0). | What is the monthly co-payment for a family of this size based on the income level in (A)? | What percentage of income is the co-payment in (B)? | Highest monthly income at initial eligibility where a family is charged a co-pay before a family is no longer eligible. | What is the monthly co-payment for a family of this size based on the income level in (D)? | What percentage of income is this co-payment in (E)? |
| 1           | 1256.00                                                                                                     | 20.24                                                                                      | 1.61                                                | 2196.00                                                                                                                 | 147.20                                                                                     | 6.70                                                 |
| 2           | 1704.00                                                                                                     | 20.24                                                                                      | 1.19                                                | 2981.00                                                                                                                 | 147.20                                                                                     | 4.94                                                 |
| 3           | 2153.00                                                                                                     | 20.24                                                                                      | 0.94                                                | 3765.00                                                                                                                 | 147.20                                                                                     | 3.91                                                 |
| 4           | 2601.00                                                                                                     | 20.24                                                                                      | 0.78                                                | 4550.00                                                                                                                 | 147.20                                                                                     | 3.24                                                 |
| 5           | 3049.00                                                                                                     | 20.24                                                                                      | 0.66                                                | 5335.00                                                                                                                 | 147.20                                                                                     | 2.76                                                 |

- c. What is the effective date of the sliding-fee scale(s)? **April 1, 2024**

- d. Provide the link(s) to the sliding-fee scale(s):

<https://drive.google.com/file/d/1rG1a7x4V5KKLiipNUwMVmemHBLWZS5MZ/view>

- e. Does the Lead Agency allow providers to charge families additional amounts above the required co-payment in instances where the provider's price exceeds the subsidy payment?

☐ No.

☒ Yes.

If yes:

- Provide the rationale for the Lead Agency's policy to allow providers to charge families additional amounts above the required co-payment, including a demonstration of how the policy does not provide a barrier and promotes affordability and access for families: **DFS is cognizant of the fact that child care providers are small businesses and consequently do not prescribe rates. Additionally, DFS' funding does not allow for paying the overage.**
- Provide data (including data on the size and frequency of such amounts) on the

extent to which CCDF providers charge additional amounts to families: **When examining current production data of CCDF provider rates compared to the DFS maximum full day rate, it was determined that approximately 69% of those providers charge more than the DFS maximum. The overage ranged from \$0.21 to \$75.80; however, the higher overage amounts were for providers located in higher cost counties.**

## 3.2 Calculation of Co-Payment

Lead agencies must calculate a family's contribution (or co-payment), taking into account income and family size, and Lead Agencies may choose to consider other factors in their calculation.

### 3.2.1 Family co-payment calculation

- a. How is the family's contribution calculated, and to whom is it applied? Check if the fee is a dollar amount or if the fee is a percent of income below, and then check all that apply under the selection, as appropriate.
  - i. ☒ The fee is a dollar amount and (check all that apply):
    - ☐ The fee is per child, with the same fee for each child.
    - ☐ The fee is per child and is discounted for two or more children.
    - ☒ The fee is per child up to a maximum per family.
    - ☐ No additional fee is charged after a certain number of children.
    - ☐ The fee is per family.
    - ☐ The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1). Describe:
    - ☐ Other. Describe:
  - ii. ☐ The fee is a percent of income and (check all that apply):
    - ☐ The fee is per child, with the same percentage applied for each child.
    - ☐ The fee is per child, and a discounted percentage is applied for two or more children.
    - ☐ The fee is per child up to a maximum per family.
    - ☐ No additional percentage is charged after a certain number of children.
    - ☐ The fee is per family.
    - ☐ The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1). Describe:
    - ☐ Other. Describe:
- b. Does the Lead Agency use other factors in addition to income and family size to determine each family's co-payment? (Lead Agencies may not use price of care or amount of subsidy payment in determining co-payments).  
☒ No.

☐ Yes.

If yes, check and describe those additional factors below:

- i. ☐ Number of hours the child is in care. Describe:
- ii. ☐ Quality of care (as defined by the Lead Agency). Describe:
- iii. ☐ Other. Describe:

c. Describe any other policies the Lead Agency uses in the calculation of family co-payment to ensure it does not create a barrier to access. Check all that apply:

- i. ☐ Base co-payments on only a portion of the family's income. For instance, only consider the family income over the federal poverty level.
- ii. ☐ Base co-payments on the number of children in the family and reduce a portion of the co-payments as the number of children being served increases.
- iii. ☐ Other. Describe:

### 3.3 Waiving Family Co-payment

#### 3.3.1 Waiving family co-payment

The Lead Agency may waive family contributions/co-payments for many families to lower their costs and maximize affordability for families. Lead Agencies have broad flexibility in determining for which families they will waive co-payments.

Does the Lead Agency waive family contributions/co-payments?

☐ No, the Lead Agency does not waive any family contributions/co-payments. (Skip to question 4.1.1.)

☒ Yes. If yes, identify and describe which family contributions/co-payments waived.

- i. ☒ Families with an income at or below 100% of the Federal Poverty Level for families of the same size.
- ii. ☐ Families with an income above 100% but at or below 150% of the Federal Poverty Level for families of the same size.
- iii. ☐ Families experiencing homelessness.
- iv. ☐ Families with children with disabilities.
- v. ☐ Families enrolled in Head Start or Early Head Start.
- vi. ☒ Children in foster care or kinship care, or otherwise receiving or needing to receive protective services. Describe the policy: **Income is not a consideration for determining eligibility, so foster children are considered to be at or below 100% of the federal poverty level for families of the same size. Co-payments are waived for families at or below 100% of FPL.**
- vii. ☐ Families meeting other criteria established by the Lead Agency. Describe the policy:

## 4 Parental Choice, Equal Access, Payment Rates, and Payment Practices

Core purposes of CCDF are to provide participating parents choice in their child care arrangements and provide their children with equal access to child care compared to those children not participating in CCDF. CCDF requirements approach equal access and parental choice comprehensively to meet these foundational program goals. Providing access to a full range of child care providers helps ensure that families can choose a child care provider that meets their family's needs. CCDF payment rates and practices must be sufficient to support equal access by allowing child care providers to recruit and retain skilled staff, provide high-quality care, and operate in a sustainable way. Supply-building strategies are also essential.

This section addresses many of the CCDF provisions related to equal access, including access to the full range of providers, payment rates for providers, co-payments for families, payment practices, differential payment rates, and other strategies that support parental choice and access by helping to ensure that child care providers are available to serve children participating in CCDF.

In responding to questions in this section, OCC recognizes that each Lead Agency identifies and defines its own categories and types of care. OCC does not expect Lead Agencies to change their definitions to fit the CCDF-defined categories and types of care. For these questions, provide responses that closely match the CCDF categories of care.

#### 4.1 Access to Full Range of Provider Options

Lead Agencies must provide parents a choice of providers and offer assistance with child care services through a child care certificate (or voucher) or with a child care provider that has a grant or contract for the provision of child care services. Lead Agencies are reminded that policies and procedures should not restrict parental access to any type or category of care or provider (e.g., center care, home care, in-home care, for-profit provider, non-profit provider, or faith-based provider, etc.).

##### 4.1.1 Parent choice

- a. Identify any barriers to provider participation, including barriers related to payment rates and practices, (including for family child care and in-home providers), based on provider feedback, public comment, and reports to the Lead Agency: **Our current eligibility, payment system and practices are antiquated which can create barriers. The department surveyed providers in 2023 to garner feedback on its pilot initiatives using COVID-19 funding which included increased payment rates and payments based on enrollment. Feedback from providers indicated that the department's current payment practices requiring paper attendance tracking and invoicing and physical submissions deterred providers from participating in the CCDF subsidy program. The department currently pays at the 50th percentile of its 2022 Market Rate Survey, which is not sufficient to meet all statewide provider private pay rates. The modernization of our systems and processes should help resolve these challenges as it will allow for electronic submission of invoices and attendance records and allow for faster payments to providers.**
- b. Does the Lead Agency offer child care assistance through vouchers or certificates?  
☒ Yes.  
☐ No.
- c. Does the Lead Agency offer child care assistance through grants or contracts?

☐ Yes.

☒ No.

- d. Describe how the parent is informed that the child care certificate allows the option to choose from a variety of child care categories, such as private, not-for-profit, faith-based providers; centers; family child care homes; or in-home providers: **The parent(s) are informed of their care options via the following methods: Consumer education materials are provided on choosing child care; Referrals provided to child care resource and referral; Verbal communication at the time of the application, Wyoming Child Care Marketplace, Community outreach, workshops, or other in-person activities.**
- e. Describe what information is included on the child care certificate: **The child care certificate is issued to parents once the case has been processed and provider has been selected. The child care certificate contains the name of the facility, facility type, case number, child's number, child's name, time and dates authorized, state payment rate and parental co-pay.**

## 4.2 Assess Market Rates and Analyze the Cost of Child Care

To establish subsidy payment rates that ensure equal access, Lead Agencies must collect and analyze statistically valid and reliable data and have the option to conduct either a (1) market rate survey (MRS) reflecting variations in the price to parents of child care services by geographic area, type of provider, and age of child, or (2) an ACF pre-approved alternative methodology, such as a cost estimation model, which estimates the cost of care by incorporating both data and assumptions to estimate what expected costs would be incurred by child care providers and parents under different scenarios. All Lead Agencies must analyze the cost of providing child care through a narrow cost analysis or pre-approved alternative methodology.

Prior to conducting the MRS or pre-approved alternative, Lead Agencies must consult with the State Advisory Council on Early Childhood Education and Care (designated or established pursuant to the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i)) or similar coordinating body, local child care program administrators, local child care resource and referral agencies, and other appropriate entities; and organizations representing child care caregivers, teachers, and directors. Prior to conducting the MRS or pre-approved alternative methodology, Lead Agencies must consult with the State Advisory Council on Early Childhood Education and Care (designated or established pursuant to the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i)) or similar coordinating body, local child care program administrators, local child care resource and referral agencies, and other appropriate entities; and organizations representing child care caregivers, teachers, and directors.

Note: Any Lead Agency considering using an alternative methodology instead of a market rate survey to set payment rates, is required to submit a description of its proposed approach to OCC for pre-approval in advance of developing and conducting the alternative methodology. Advance approval is not required if the Lead Agency plans to implement both an MRS and an alternative methodology to set rates at a percentile of the market rate, but a Lead Agency conducting a limited market rate survey and using it to inform their cost model would need pre-approval for this approach. In its request for ACF pre-approval, a Lead Agency must provide details on the following elements of their proposed alternative methodology:

- Overall approach and rationale for using proposed methodology

- Description of stakeholder engagement
- Data collection timeframe (if applicable)
- Description of the data and assumptions included in the methodology, including how these elements will yield valid and reliable results from the model
- Description of how the methodology will capture the universe of providers, and reflect variations by provider type, age of children, geographic location, and quality

#### 4.2.1 Completion of the market rate survey or ACF pre-approved alternative methodology

Did the Lead Agency conduct a statistically valid and reliable MRS or ACF pre-approved alternative methodology to meet the CCDF requirements to assess child care prices and/or costs and determine payment rates? Check only one based on which methodology was used to determine your payment rates.

- a. ☒ Market rate survey.
- i. When were the data gathered (provide a date range; for instance, September – December 2023)? **Data was gathered between March 20, 2022 through May 9, 2022.**
- b. ☐ ACF pre-approved alternative methodology.
- i. ☐ The alternative methodology was completed.
- ii. ☐ The alternative methodology is in process.

*If the alternative methodology was completed:*

When were the data gathered and when was the study completed?

Describe any major differences between the pre-approved methodology and the final methodology used to inform payment rates. Include any major changes to stakeholder engagement, data, assumptions or proposed scenarios.

*If the alternative methodology is in progress:*

Provide a status on the alternative methodology and timeline (i.e., dates when the alternative methodology activities will be conducted, any completed steps to date, anticipated date of completion, and expected date new rates will be in effect using the alternative methodology).

- c. Consultation on data collection methodology.

Describe when and how the Lead Agency engaged the following partners and how the consultation informed the development and execution of the MRS or alternative methodology, as appropriate.

- iii. State Advisory Council or similar coordinating body: **For the Market Rate Survey completed in 2022 the Department consulted with the Wyoming Early Childhood State Advisory Council (SAC) to inform the scope of the project and process for gathering market price data. The Department incorporated the feedback, regarding verbiage of the questions and order of the questions, provided into the scope of work and process for the market price survey.**

- iv. Local child care program administrators: **For the Market Rate Survey completed in 2022, the Department consulted with local child care program administrators to inform the scope of the project and the process for gathering market price data. The Department incorporated the feedback, regarding verbiage of the questions and order of the questions, provided into the scope of work and process for the market price survey.**
  - v. Local child care resource and referral agencies: **For the Market Rate Survey completed in 2022, the Department is the statewide Child Care Resource and Referral agency and consequently the Child Care Resource and Referral staff was a member of the survey development team, to develop the scope of the project and the process for gathering market price data. The Department incorporated the feedback provided into the scope of work and process for the market price survey.**
  - vi. Organizations representing child care caregivers, teachers, and directors from all settings and serving all ages: **For the Market Rate Survey completed in 2022, the Department consulted with other stakeholders including caregivers, teachers and directors, to develop the scope of the project and the process for gathering market price data. The Department incorporated the feedback provided into the scope of work and process for the market price survey.**
  - vii. Other. Describe: **n/a**
- d. An MRS must be statistically valid and reliable.
- An MRS can use administrative data, such as child care resource and referral data, if it is representative of the market. Please provide the following information about the market rate survey:
- i. When was the market rate survey completed? **5/9/2022**
  - ii. What was the time period for collecting the information (e.g., all of the prices in the survey are collected within a three-month time period)? **Data was gathered between March 20, 2022 through May 9, 2022.**
  - iii. Describe how it represented the child care market, including what types of providers were included in the survey: **PCG contacted all licensed child care providers across the State from all zip codes and categories of licensed care and asked uniform questions to each respondent, which ensured consistency. The solicited responses were gathered from multiple ways of sending emails to providers, employing an outbound call to contact providers, providing a toll free number to providers to call in themselves to take the survey over the phone, and posting information about the survey on the Department's website. The response rate was 55.80% of all providers in the state. PCG estimated with the number of responses that there was a 3.897% percent of error in data assuming 95% confidence level.**
  - iv. What databases are used in the survey? Are they from multiple sources, including licensing, resource and referral, and the subsidy program? **Wyoming Child Care Licensing System**

- v. How does the survey use good data collection procedures, regardless of the method for collection (mail, telephone, or web-based survey)? **These surveys were drafted by DFS and PCG and after receiving final approval, the surveys were built into an online survey collection tool which served as the primary portal for gathering completed surveys. Once the surveys were built into the online tool, DFS distributed an initial email announcement to the statewide provider community with a URL link to access the survey beginning March 28, 2022. Between March 28 through May 9, 2022. PCG and DFS promoted the survey through various means, including:**
    - Sending emails to providers who had not yet completed the survey.
    - Employing an outbound call team to contact providers who had not yet completed the survey and offering them the opportunity to take the survey over the phone. During this time, the call team made over 1,000 calls to the provider community. Other correspondence provided a toll-free number for providers to call-in themselves to take the survey over the phone.
    - Offering all providers a \$50 Visa gift card for the completion of their Market Rate Survey, and an additional \$50 gift card for completion of the Cost of Care survey. Gift cards were distributed in June 2022.
    - Posting information about the survey and the survey link on the DFS website and other mediums.
  - vi. What is the percent of licensed or regulated child care centers responding to the survey? **58.20**
  - vii. What is the percent of licensed or regulated family child care homes responding to the survey? **53.70**
  - viii. Describe if the survey conducted in any languages other than English: **n/a**
  - ix. Describe if data were analyzed in a manner to determine price of care per child: **n/a**
  - x. Describe if data were analyzed from a sample of providers and if so, how the sample was weighted: **n/a**
- e. Price variations reflected.
- The market rate survey data or ACF pre-approved alternative methodology data must reflect variations in child care prices or cost of child care services in specific categories.
- i. Describe how the market rate survey or pre-approved alternative methodology reflected variation in geographic area (e.g., county, region, urban, rural). Include information on whether parts of the State or Territory were not represented by respondents and include information on how prices or costs could be linked to local geographic areas. **The 2022 Market Rate Survey was conducted statewide and included all zip codes to reflect all geographic areas of the state.**
  - ii. Describe how the market rate survey or pre-approved alternative methodology reflected variation in type of provider (e.g., licensed providers, license-exempt providers, center-based providers, family child care home providers, home based providers). **The 2022 Market Rate Survey targeted all types of licensed child care providers across the state.**

- iii. Describe how the market rate survey or pre-approved alternative methodology reflected age of child (e.g., infant, toddler, preschool, school-age): **The 2022 Market Rate Survey solicited information from licensed child care providers serving children birth to 13 years.**
- iv. Describe any other key variations examined by the market rate survey or ACF pre-approved alternative methodology, such as quality level: **n/a**

#### 4.2.2 Cost analysis

If a Lead Agency does not complete a cost-based pre-approved alternative methodology, they must analyze the cost of providing child care services through a narrow cost analysis. A narrow cost analysis is a study of what it costs providers to deliver child care at two or more levels of quality: (1) a base level of quality that meets health, safety, staffing, and quality requirements, and (2) one or more higher levels of quality as defined by the Lead Agency. The narrow cost analysis must estimate costs by levels of quality; include relevant variation by provider type, child's age, or location; and analyze the gaps between estimated costs and payment rates to inform payment rate setting. Lead agencies are not required to complete a separate narrow cost analysis if their pre-approved alternative methodology addresses all of the components required in the narrow cost analysis.

Describe how the Lead Agency analyzed the cost of child care through a narrow cost analysis or pre-approved alternative methodology for the FFY 2025–2027 CCDF Plan, including:

- a. How did the Lead Agency conduct a narrow cost analysis (e.g., a cost model, a cost study, existing data or data from the Provider Cost of Quality Calculator)? **As a separate vehicle for collecting data, a cost of care form was developed and associated with the main, licensed provider survey for providers to take separately and provide additional cost information to the state on the provision of child care. PCG contacted all licensed child care providers across the State from all zip codes and categories of licensed care and asked uniform questions to each respondent, which ensured consistency. The solicited responses were gathered from multiple ways of sending emails to providers, employing an outbound call to contact providers, providing a toll free number to providers to call in themselves to take the survey over the phone, and posting information about the survey on the Department's website.**
- b. In the Lead Agency's analysis, were there any relevant variations by geographic location, category of provider, or age of child? **Public Consulting Group contacted all licensed child care providers across the State from all zip codes and categories of licensed care and asked uniform questions to each respondent, which ensured consistency. A total of 341 providers responded to the market rate survey. However, only 133 Providers, 63 Center Based, 28 Family Child Care Centers, and 41 Family Child Care Home Based completed the optional Cost of Care Form. This represents only 39% of the survey responses. It was insufficient to accurately reflect the statewide average cost of care.**
- c. What assumptions and data did the Lead Agency use to determine the cost of care at the base level of quality (e.g., ratios, group size, staff compensations, staff training, etc.)? **The Department does not have a QRIS or quality rating system, so every provider was considered to be providing the base level of quality; however, the Department did not use the cost of care in determining rates. Rates were based on the Market Rate Study.**
- d. How does the Lead Agency define higher quality and what assumptions and data did the

Lead Agency use to determine cost at higher levels of quality (e.g., ratio, group size, staffing levels, staff compensation, professional development requirements)? A Lead Agency can use a quality improvement system or other system of quality indicators (e.g., accreditation, pre-Kindergarten standards, Head Start Program Performance Standards, or State-defined quality measures). **Wyoming does not have a QRIS, but Wyoming identifies professional development as a measure for quality. The Wyoming STARS vendor spends significant time identifying, reviewing and approving many different options for providers, directors and staff to meet the health and safety requirements and are frequently updating the information available to providers, directors and staff. Educators are regularly offered individual as well as group facilitation to determine specific professional learning goals which leads to quality programs which offer authentic, intentional and developmentally appropriate learning environments for children. Direction and support are offered to those who are seeking furthering their education through higher education. Educators were also offered access to a training calendar which provided information on training access to relevant core knowledge areas in areas that support the CDA. The Lead Agency also provides information to educators about financial assistance available to them to further their professional development and career pathway. Educators are regularly offered infant toddler credentials through the funding and direction of the Lead Agency.**

The Department in conjunction with Wyoming STARS and Wyoming Department of Workforce Services partner to provide quality professional development opportunities for child care providers which includes provision of face-to-face training, identification of on-line training opportunities and financial support for participation in approved training.

- e. What is the gap between cost and price, and how did the Lead Agency consider this while setting payment rates? Did the Lead Agency target any rate increases where gaps were the largest or develop any long-term plans to increase rates based on this information? **Department did not use the cost of care in determining rates. Rates were based on the Market Rate Study. Additionally, the narrow cost analysis response rate was too low to accurately reflect the statewide true cost of care.**

#### 4.2.3 Publicly available report on the cost and price of child care

The Lead Agency must prepare a detailed report containing the results of the MRS or ACF pre-approved alternative methodology and include the Narrow Cost Analysis if an ACF pre-approved alternative methodology was not conducted.

The Lead Agency must make this report widely available no later than 30 days after completion of the report, including posting the results on the Lead Agency website. The Lead Agency must describe in the detailed report how the Lead Agency took into consideration the views and comments of the public or stakeholders prior to conducting the MRS or ACF pre-approved alternative methodology.

- a. Describe how the Lead Agency made the results of the market rate survey or ACF pre-approved alternative methodology report widely available to the public by responding to the questions below.

- i. Provide the date the report was completed: **6/27/2022**
- ii. Provide the date the report containing results was made widely available (no later

than 30 days after the completion of the report): **6/27/2022**

- iii. Provide a link to the website where the report is posted and describe any other strategies the Lead Agency uses to make the detailed report widely available:  
**<https://dfs.wyo.gov/services/family-services/child-care/>**
- iv. Describe how the Lead Agency considered partner views and comments in the detailed report. Responses should include which partners were engaged and how partner input influenced the market rate survey or alternative methodology:  
**Following the initial analysis of the data collected from the 2022 Market Rate Survey, revisions were made after the Department reviewed the report and the Market Rate Survey was released within 60 days of the revisions. In addition, the Department received feedback from other stakeholders, including providers and early childhood advocates, which was used to make technical adjustments to the survey before and during implementation of the survey. These same entities did not provide feedback regarding the detailed report.**

### 4.3 Adequate Payment Rates

The Lead Agency must set CCDF subsidy payment rates in accordance with the results of the current MRS or ACF pre-approved alternative methodology and at a level to ensure equal access for eligible families to child care services comparable with those provided to families not receiving CCDF assistance. Lead Agencies are also required to provide a summary of data and facts to demonstrate how payment rates ensure equal access, which means the Lead Agency must also consider the costs of base level care and higher quality care as part of its rate setting. Finally, the Lead Agency must re-evaluate its payment rates at least every 3 years.

The ages and types of care listed in the base payment rate tables are meant to provide a snapshot of the categories of rates and are not intended to be comprehensive of all categories that might exist or to reflect the terms used by the Lead Agency for particular ages. If rates are not statewide, please provide all variations of payment rates when reporting base payment rates below.

Base rates are the lowest, foundational rates before any differentials are added (e.g., for higher quality or other purposes) and must be sufficient to ensure that minimum health, safety, quality, and staffing requirements are covered. These are the rates that will be used to determine compliance with equal access requirements.

#### 4.3.1 Payment rates

- a. Are the payment rates that the Lead Agency is reporting in 4.3.2 set statewide by the Lead Agency?  
**[x]** Yes.
  - i. If yes, check if the Lead Agency:  
**[x]** Sets the same payment rates for the entire State or Territory.  
**[ ]** Sets different payment rates for different regions in the State or Territory.  
**[ ]** No.
  - ii. If no, identify how many jurisdictions set their own payment rates:

- b. Provide the date the current payment rates became effective (i.e., date of last payment rate update based on most recent MRS or ACF pre-approved alternative methodology as reported in 4.2.1). **10/1/2023**
- c. If the Lead Agency does not publish weekly rates, then how were the rates reported in 4.3.2 or 4.3.3 calculated (e.g., were daily rates multiplied by 5 or monthly rates divided by 4.3)? **Daily rates were multiplied by 5.**

#### 4.3.2 Base payment rates

- a. Provide the base payment rates in the tables below. If the Lead Agency completed a market rate survey (MRS), provide the percentiles based on the most recent MRS for the identified categories. If the Lead Agency sets different payment rates for different regions in the State or Territory (and checked 4.3.1a), provide the rates for the most populous region as well as the region with payment rates set at the lowest percentile. Percentiles are not required if the Lead Agency also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an MRS only.

The preamble to the 2016 final rule states that a benchmark for adequate payment rates is the 75<sup>th</sup> percentile of the most recent MRS. The 75<sup>th</sup> percentile benchmark applies to the base rates. The 75<sup>th</sup> percentile is the number separating the lowest 75 percent of rates from the highest 25 percent. Setting rates at the 75<sup>th</sup> percentile, while not a requirement, would ensure that eligible families can afford three out of four child care providers. In addition to reporting the 75<sup>th</sup> percentile in the tables below, the Lead Agency must also report the 50<sup>th</sup> percentile and 60<sup>th</sup> percentile for each identified category.

If the Lead Agency conducted an ACF pre-approved alternative methodology, provide the estimated cost of care for the identified categories, as well as the percentage of the cost of care covered by the established payment rate. If the Lead Agency indicated it sets different payment rates for different regions in the State or Territory in 4.3.1.a, provide the estimated cost of care and the percentage of the cost of care covered by the established payment rate for the most populous region as well as the region with rates established at the lowest percent of the cost of care.

For each identified category below, provide the percentage of providers who are receiving the base rate without any add-ons or differential payments.

Provide the full-time weekly base payment rates in the table below. If weekly payment rates are not published, then the Lead Agency will need to calculate its equivalent.

- i. Table 1: Complete if rates are set statewide. If rates are not set statewide, provide rates for most populous region. Percentiles are not required if the Lead Agency also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an MRS only.

| Care Type                                    | Base payment rate (specify unit, e.g., per day, per week, per month) | % of providers receiving Base rate | Full-Time Weekly Base Payment Rate | What is the percentile of the rate? (MRS) | What is the 50th percentile of the rate? (MRS) | What is the 60th percentile of the rate? (MRS) | What is the 75th percentile of the rate? (MRS) | What is the estimated cost of care? (Alternative Methodology) | What percent of the estimated cost of care is the rate? |
|----------------------------------------------|----------------------------------------------------------------------|------------------------------------|------------------------------------|-------------------------------------------|------------------------------------------------|------------------------------------------------|------------------------------------------------|---------------------------------------------------------------|---------------------------------------------------------|
| Center Care for Infants (6 months)           | <b>36.36 Per Day</b>                                                 | 100.00                             | 181.80                             | 50.00                                     | 36.36                                          | 37.60                                          | 40.91                                          |                                                               |                                                         |
| Family Child Care for Infants (6 months)     | <b>31.57 Per Day</b>                                                 | 100.00                             | 157.85                             | 57.00                                     | 30.00                                          | 31.82                                          | 35.00                                          |                                                               |                                                         |
| Center Care for Toddlers (18 months)         | <b>34.44 Per Day</b>                                                 | 100.00                             | 172.20                             | 51.00                                     | 34.09                                          | 36.36                                          | 40.00                                          |                                                               |                                                         |
| Family Child Care for Toddlers (18 months)   | <b>30.00 Per Day</b>                                                 | 100.00                             | 150.00                             | 50.00                                     | 30.00                                          | 30.00                                          | 33.88                                          |                                                               |                                                         |
| Center Care for Preschoolers (4 years)       | <b>31.33 Per Day</b>                                                 | 100.00                             | 156.65                             | 50.00                                     | 31.33                                          | 32.53                                          | 36.00                                          |                                                               |                                                         |
| Family Child Care for Preschoolers (4 years) | <b>29.42 Per Day</b>                                                 | 100.00                             | 147.10                             | 57.00                                     | 27.27                                          | 30.00                                          | 30.00                                          |                                                               |                                                         |
| Center Care for School-Age (6 years)         | <b>29.00 Per Day</b>                                                 | 100.00                             | 140.00                             | 62.00                                     | 25.00                                          | 27.11                                          | 30.00                                          |                                                               |                                                         |
| Family Child Care for School-Age (6 years)   | <b>28.00 Per Day</b>                                                 | 100.00                             | 140.00                             | 62.00                                     | 25.00                                          | 27.11                                          | 30.00                                          |                                                               |                                                         |

- ii. Table 2: Do not complete if rates are set statewide. If rates are not set statewide, provide rates for region with payment rates set at the lowest percentile. Percentiles are not required if the Lead Agency

also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an MRS only.

| Care Type                                    | Base payment rate (specify unit, e.g., per day, per week, per month) | % of providers receiving Base rate | Full-Time Weekly Base Payment Rate | What is the percentile of the rate? (MRS) | What is the 50th percentile of the rate? (MRS) | What is the 60th percentile of the rate? (MRS) | What is the 75th percentile of the rate? (MRS) | What is the estimated cost of care? (Alternative Methodology) | What percent of the estimated cost of care is the rate? |
|----------------------------------------------|----------------------------------------------------------------------|------------------------------------|------------------------------------|-------------------------------------------|------------------------------------------------|------------------------------------------------|------------------------------------------------|---------------------------------------------------------------|---------------------------------------------------------|
| Center Care for Infants (6 months)           |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Family Child Care for Infants (6 months)     |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Center Care for Toddlers (18 months)         |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Family Child Care for Toddlers (18 months)   |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Center Care for Preschoolers (4 years)       |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Family Child Care for Preschoolers (4 years) |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Center Care for School-Age (6 years)         |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |
| Family Child Care for School-Age (6 years)   |                                                                      |                                    |                                    |                                           |                                                |                                                |                                                |                                                               |                                                         |

- b. Does the Lead Agency certify that the percentiles reported in the table above are calculated based on their most recent MRS or ACF pre-approved Alternative Methodology?

☒ Yes.

☐ No. If no, what is the year of the MRS or ACF pre-approved alternative methodology that the Lead Agency used? What was the reason for not using the most recent MRS or ACF pre-approved alternative methodology? Describe:

#### 4.3.3 Tiered rates, differential rates, and add-ons

Lead Agencies may establish tiered rates, differential rates, or add-ons on top of their base rates as a way to increase payment rates for targeted needs (e.g., a higher rate for serving children with special needs).

a. Does the Lead Agency provide any rate add-ons above the base rate?

☒ Yes. If yes, describe the add-ons, including what they are, who is eligible to receive the add-ons, and how often are they paid: **DFS provides an add-on of \$250.00 for children identified as special needs. All CCDF-eligible providers may receive this add-on when providing care for a special needs child and are paid monthly in addition to the maximum daily rates. Additionally, DFS provides an add-on for registration fees up to \$50 which is also paid to CCDF-eligible providers. The registration fee add-ons are paid once per child per 365 days. The Department is unable to provide the methodology used to determine the amount of the add-ons as they have been in effect for more than a decade.**

☐ No.

b. Has the Lead Agency chosen to implement tiered reimbursement or differential rates?

☐ Yes.

☒ No. Tiered or differential rates are not implemented.

If yes, identify below any tiered or differential rates, and, at a minimum, indicate the process and basis used for determining the tiered rates, including if the rates were based on the MRS or an ACF pre-approved alternative methodology. Check and describe all that apply:

i. ☐ Differential rate for non-traditional hours. Describe:

ii. ☐ Differential rate for children with special needs, as defined by the Lead Agency. Describe:

iii. ☐ Differential rate for infants and toddlers. Note: Do not check if the Lead Agency has a different base rate for infants/toddlers with no separate bonus or add-on. Describe:

iv. ☐ Differential rate for school-age programs. Note: Do not check if the Lead Agency has a different base rate for school-age children with no separate bonus or add-on. Describe:

v. ☐ Differential rate for higher quality, as defined by the Lead Agency. Describe:

vi. ☐ Other differential rates or tiered rates. For example, differential rates for geographic area or for type of provider. Describe:

vii. If applicable, describe any additional add-on rates that you have besides those identified above.

Does the Lead Agency reduce provider payments if the price the provider charges to private-pay families not participating in CCDF is below the Lead Agency's established payment rate?

☒ Yes. If yes, describe: **When the provider's rate is lower than the DFS established payment rate, DFS pays the provider's rate.**

☐ No.

#### 4.3.4 Establishing payment rates

Describe how the Lead Agency established payment rates:

- a. What was the Lead Agency's methodology or process for setting the rates or how did the Lead Agency use their data to set rates? **The Department implemented a temporary increase in provider rates to the 40th (based on the 2022 Market Rate Survey data) percentile beginning October 1, 2021, utilizing CRRSA and ARPA funds. The increased rates have allowed providers to recover from COVID impacts and to make other investments in their programs, meet the health and safety requirements, help stabilize the workforce, and to increase access to quality programs. In focusing on long term strategies to increase rates to an appropriate and sustainable level, the Department's Early Childhood Unit and Department fiscal staff have done significant work looking at the CCDBG budget. In addition to the internal work, the Department has taken advantage of federal technical assistance around using the rate calculator to help determine the possible impacts to the budget might be in different rate scenarios. The internal work and the work with the federal technical assistance team has culminated in a Wyoming Subsidy Rate Increase Strategic Plan which we have begun to implement with the goal to maintain rate increases in the future after the CRRSA and ARPA funding have been expended. The Department later raised rates that were not currently at the 50th percentile to the 50th percentile as required by notice of noncompliance received from the Office of Child Care in April 2023 and continues to pay at the 50th percentile.**
- b. How did the Lead Agency determine that the rates are adequate to meet health, safety, quality, and staffing requirements under CCDF? **The Department increased payment rates to the 25th percentile based on the 2017 MRS in 2020. This adjustment resulted in increased payments to: licensed family child care homes and licensed family child care centers, part day 0-5 years; licensed family child care homes, licensed family child care centers, and child care centers, full day 0-5 years. The Department implemented a temporary increase in provider rates to the 40th (based on the 2022 Market Rate Survey data) percentile beginning October 1, 2021, utilizing CRRSA and ARPA funds. The increased rates have allowed providers to recover from COVID impacts and to make other investments in their programs, meet the health and safety requirements, help stabilize the workforce, and to increase access to quality programs. In focusing on long term strategies to increase rates to an appropriate and sustainable level, the Department Early Childhood Unit and Department fiscal staff have done significant work looking at the CCDBG budget. In addition to the internal work, the Department has taken advantage of federal technical assistance around using the rate calculator to help determine the possible impacts to the budget might be in different rate scenarios. The internal work and the work with the federal technical assistance team has culminated in a Wyoming Subsidy Rate Increase Strategic Plan which we have begun to implement with the goal to maintain rate increases**

in the future after the CRRSA and ARPA funding have been expended. The Department later raised rates that were not currently at the 50th percentile to the 50th percentile as required by notice of noncompliance received from the Office of Child Care in April 2023.

- c. How did the Lead Agency use the cost of care, either from the narrow cost analysis or the ACF pre-approved alternative methodology to inform rate setting, including how using the cost of care promotes the stabilization of child care providers? **The Department's 2022 Cost of Care Survey that accompanied the Market Rate Survey did not receive sufficient responses to be considered statistically significant. As such, the Department did not use the results to inform rate setting.**
- d. How did the Lead Agency account for the cost of higher quality while setting payment rates? **The Department's 2022 Cost of Care Survey that accompanied the Market Rate Survey did not receive sufficient responses to be considered statistically significant. As such, the Department did not use the results to inform rate setting.**
- e. Identify and describe any additional facts (not covered in responses to 4.3.1 – 4.3.3) that the Lead Agency considered in determining its payment rates to ensure equal access. **n/a**

#### 4.4 Payment Practices to Providers

Lead Agencies must use subsidy payment practices that reflect practices that are generally accepted in the private pay child care market. The Lead Agency must ensure timeliness of payment to child care providers by paying in advance or at the beginning of delivery of child care services. Lead Agencies must also support the fixed cost of child care services based on paying by the child's authorized enrollment, or if impracticable, an alternative approach that will not undermine the stability of child care programs as justified and approved through this Plan.

Lead Agencies must also (1) pay providers based on established part-time or full-time rates rather than paying for hours of service or smaller increments of time, and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents. These policies apply to all provider types unless the Lead Agency can demonstrate that in limited circumstances the policies would not be considered generally-accepted payment practices.

In addition, Lead Agencies must ensure that child care providers receive payment for any services in accordance with a payment agreement or an authorization for services, ensure that child care providers receive prompt notice of changes to a family's eligibility status that could impact payment, and have timely appeal and resolution processes for any payment inaccuracies and disputes.

##### 4.4.1 Prospective and enrollment-based payment practices

Lead Agencies must use payment practices for all CCDF child care providers that reflect generally-accepted payment practices of providers serving private-pay families, including paying providers in advance or at the beginning of the delivery of child care services and paying based on a child's authorized enrollment or an alternative approach for which the Lead Agency must demonstrate paying for a child's authorized enrollment is not practicable and it will not undermine the stability of child care programs. Lead Agencies may only use alternate approaches for subsets of provider types if they can demonstrate that prospective payments and authorized enrollment-based payment are not generally-accepted for a type of child care setting. Describe the Lead Agency payment practices for all CCDF child care providers:

- a. Does the Lead Agency pay all provider types prospectively (i.e., in advance of or at the beginning of the delivery of child care services)?  
☐ Yes. If yes, describe:  
☒ No, it is not a generally-accepted payment practice for each provider type. If no, describe the provider type not paid prospectively and the data demonstrating it is not a generally-accepted payment practice for that provider type, and describe the Lead Agency's payment practice that ensures timely payment for that provider type: **The Department is currently researching and exploring how to implement this requirement and will be submitting a waiver request. The Department will conduct research, review data and develop a plan to implement paying all provider types prospectively. Federal Technical Assistance may be required for successful implementation of this requirement.**
- b. Does the Lead Agency pay based on authorized enrollment for all provider types?  
☒ Yes. The Lead Agency pays all providers by authorized enrollment and payment is not altered based on a child's attendance or the number of absences a child has.  
☐ No, it is not a generally-accepted practice for each provider type. If no, describe the provider types not paid by authorized enrollment, including the data showing it is not a generally-accepted payment practice for that provider type, and describe how the payment policy accounts for fixed costs:  
☐ It is impracticable. Describe provider type(s) for which it is impracticable, why it is impracticable, and the alternative approach the Lead Agency uses to delink provider payments from occasional absences, including evidence that the alternative approach will not undermine the stability of child care programs, and thereby accounts for fixed costs:

#### 4.4.2 Other payment practices

Lead Agencies must (1) pay providers based on established part-time or full-time rates rather than paying for hours of service or smaller increments of time, and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents, unless the Lead Agency provides evidence that such practices are not generally-accepted for providers caring for children not participating in CCDF in its State or Territory.

- a. Does the Lead Agency pay all providers on a part-time or full-time basis (rather than paying for hours of service or smaller increments of time)?  
☒ Yes.  
☐ No. If no, describe the policies or procedures that are different than paying on a part-time or full-time basis and the Lead Agency's rationale for not paying on a part-time or full-time basis:
- b. Does the Lead Agency pay for reasonable mandatory registration fees that the provider charges to private-paying parents?  
☒ Yes. If yes, identify the fees the Lead Agency pays for: **The Department pays up to \$50.00 per child, per certification year, for a registration fee to the chosen provider. The child care provider completes the Registration for Licensed Provider form (DFS 203A), the Department's fiscal staff enters the registration fee into the child care subsidy eligibility system, and the system will auto-generate payment up to \$50 per child, per certification**

year. Only one provider per child, per certification year, will receive the registration fee.

☐ No. If no, identify the data and how data were collected to show that paying for fees is not a generally-accepted payment practice:

- c. Describe how the Lead Agency ensures that providers are paid in accordance with a written payment agreement or an authorization for services that includes, at a minimum, information regarding provider payment policies, including rates, schedules, any fees charged to providers, and the dispute-resolution process: **The Department's authorization for services includes information regarding provider payment policies including payment rates, the state maximum payment, schedules, and parent co-pay and the dispute-resolution process.**
- d. Describe how the Lead Agency provides prompt notice to providers regarding any changes to the family's eligibility status that could impact payments, and such a notice is sent no later than the day that the Lead Agency becomes aware that such a change will occur: **Currently, a notice of a change to the family's eligibility status is generated and mailed to the provider on the same day the Department becomes aware of the change. When the Department's ECARES system is live, these notices will then be provided to the child care provider electronically and instantaneously upon the eligibility worker making the change in the system.**
- e. Describe the Lead Agency's timely appeal and resolution process for payment inaccuracies and disputes: **The Department allows for a parent or provider to submit an appeal for payment discrepancies either in writing or via telephone. The child care assistance worker and the Department's fiscal staff will evaluate the time and payment in question, which may include interviews with the parent and/or provider. The appeal and resolution process is required to be concluded within 30 days of receipt of the appeal request.**
- f. Other. Describe any other payment practices established by the Lead Agency:

#### 4.4.3 Payment practices and parent choice

How do the Lead Agency's payment practices facilitate provider participation in all categories of care? **The Department's payment practices reflect the generally accepted practices of providers who care for children not receiving subsidy. This supports equal access for CCDF families to a full range of providers.**

## 4.5 Supply Building

Building a supply of high-quality child care that meets the needs and preferences of parents participating in CCDF is necessary to meet CCDF's core purposes. Lead Agencies must support parent choice by providing some portion of direct services via grants or contracts, including at a minimum for children in underserved geographic areas, infants and toddlers, and children with disabilities.

#### 4.5.1 Child care services available through grants or contracts

Does the Lead Agency provide direct child care services through grants or contracts for child care slots?

☐ Yes, statewide. Describe how the Lead Agency ensures that parents who enroll with a

provider who has a grant or contract have choices when selecting a provider:

☐ Yes, in some jurisdictions, but not statewide. Describe how many jurisdictions use grants or contracts for child care slots and how the Lead Agency ensures that parents who enroll with a provider who has a grant or contract have choices when selecting a provider:

☒ No. If no, describe any Lead Agency plans to provide direct child care services through grants and contracts for child care slots: **DFS is currently researching and exploring how to implement this requirement and will be submitting a waiver request. The Department will conduct research, review data identifying underserved geographic areas, number of CCDF eligible children with disabilities, number of CCDF eligible infants and toddlers, licensed capacity for infants and toddlers (including # of licensed slots, # of occupied slots, and identification of waitlists), and develop a plan to implement some contract or grants for the identified populations. Federal Technical Assistance may be required for successful implementation of this requirement.**

If no, skip to question 4.5.2.

i. If yes, identify the populations of children served through grants or contracts for child care slots (check all that apply). For each population selected, identify the number of slots allocated through grants or contracts for direct service of children receiving CCDF.

☐ Children with disabilities. Number of slots allocated through grants or contracts:

☐ Infants and toddlers. Number of slots allocated through grants or contracts:

☐ Children in underserved geographic areas. Number of slots allocated through grants or contracts:

☐ Children needing non-traditional hour care. Number of slots allocated through grants or contracts:

☐ School-age children. Number of slots allocated through grants or contracts:

☐ Children experiencing homelessness. Number of slots allocated through grants or contracts:

☐ Children in urban areas. Percent of CCDF children served in an average month:

☐ Children in rural areas. Percent of CCDF children served in an average month:

☐ Other populations. If checked, describe:

ii. If yes, how are rates for slots funded by grants and contracts determined by the Lead Agency?

#### 4.5.2 Care in the child's home (in-home care)

The Lead Agency must allow for in-home care (i.e., care provided in the child's own home) but may limit its use.

Will the Lead Agency limit the use of in-home care in any way?

☒ Yes.

☐ No.

*If yes, what limits will the Lead Agency set on the use of in-home care? Check all that apply.*

- i. ☐ Restricted based on the minimum number of children in the care of the in-home provider to meet the Fair Labor Standards Act (minimum wage) requirements. Describe:
- ii. ☒ Restricted based on the in-home provider meeting a minimum age requirement. Describe: **Minimum age of 18 years.**
- iii. ☐ Restricted based on the hours of care (i.e., certain number of hours, non-traditional work hours). Describe:
- iv. ☐ Restricted to care by relatives. (A relative provider must be at least 18 years of age based on the definition of eligible child care provider.) Describe:
- v. ☐ Restricted to care for children with special needs or a medical condition. Describe:
- vi. ☐ Restricted to in-home providers that meet additional health and safety requirements beyond those required by CCDF. Describe:
- vii. ☐ Other. Describe:

#### 4.5.3 Shortages in the supply of child care

Lead Agencies must identify shortages in the supply of child care providers that meet parents' needs and preferences.

What child care shortages has the Lead Agency identified in the State or Territory, and what is the plan to address the child care shortages?

- a. In infant and toddler programs:
  - i. Data sources used to identify shortages: **The Department participated in a 25 state study conducted by the BiPartisan Policy Center focused on child care gaps. This valuable data provides a starting point for the Department and its many partners to work to close the child care gap. In addition to participation in this project, the Department has been actively engaged with ALIGN, WY Kids First, the Wyoming Early Childhood State Advisory Council and many other partners on the Preschool Development Grant Birth through 5 (Implementation). The Wyoming Early Childhood Statewide Strategic Plan identifies strategies to increase the availability of affordable quality early childhood education and birth through 5 services, including development of a centralized information hub with comprehensive information for families seeking early care and education and other services. The Department and the Wyoming Early Childhood State Advisory Council via the Preschool Development Grant Birth through 5 will track progress by monitoring the increased number of families reporting knowledge of the information hub and easier access to available services and supports (family surveys, family and provider focus groups). Additionally, the Department's ECARES**

system will allow data analysts to identify the ages of children parents are seeking care for.

Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

- ii. Method of tracking progress: **The Department will use its monthly licensing reports to monitor progress regarding increasing the number and capacity of child care providers.**
  - iii. What is the plan to address the child care shortages using family child care homes **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**
  - iv. What is the plan to address the child care shortages using child care centers? **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**
- b. In different regions of the State or Territory:
- i. Data sources used to identify shortages: **The Department participated in a 25 state study conducted by the BiPartisan Policy Center focused on child care gaps. This valuable data provides a starting point for the Department and its many partners to work to close the child care gap. In addition to participation in this project, the Department has been actively engaged with ALIGN, WY Kids First, the Wyoming Early Childhood State Advisory Council and many other partners on the Preschool Development Grant Birth through 5 (Implementation). The Wyoming Early Childhood Statewide Strategic Plan identifies strategies to increase the availability of affordable quality early childhood education and birth through 5 services, including development of a centralized information hub with comprehensive information for families seeking early care and education and other services. The Department and the Wyoming Early Childhood State Advisory Council via the Preschool Development Grant Birth through 5 will track progress by monitoring the increased number of families reporting knowledge of the information hub and easier access to available services and supports (family surveys, family and provider focus groups). Additionally, the Department's ECARES system will allow data analysts to identify the ages of children parents are seeking**

care for.

Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

- ii. Method of tracking progress: **The Department will use its monthly licensing reports to monitor progress regarding increasing the number and capacity of child care providers.**
- iii. What is the plan to address the child care shortages using family child care homes? **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**
- iv. What is the plan to address the child care shortages using child care centers? **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**
- c. In care for special populations:
  - i. Data sources used to identify shortages: **The Department participated in a 25 state study conducted by the BiPartisan Policy Center focused on child care gaps. This valuable data provides a starting point for the Department and its many partners to work to close the child care gap. In addition to participation in this project, the Department has been actively engaged with ALIGN, WY Kids First, the Wyoming Early Childhood State Advisory Council and many other partners on the Preschool Development Grant Birth through 5 (Implementation). The Wyoming Early Childhood Statewide Strategic Plan identifies strategies to increase the availability of affordable quality early childhood education and birth through 5 services, including development of a centralized information hub with comprehensive information for families seeking early care and education and other services. The Department and the Wyoming Early Childhood State Advisory Council via the Preschool Development Grant Birth through 5 will track progress by monitoring the increased number of families reporting knowledge of the information hub and easier access to available services and supports (family surveys, family and provider focus groups). Additionally, the Department's ECARES system will allow data analysts to identify the ages of children parents are seeking**

care for.

Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

- ii. Method of tracking progress: **The Department will use its monthly licensing reports to monitor progress regarding increasing the number and capacity of child care providers.**
- iii. What is the plan to address the child care shortages using family child care homes? **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**
- iv. What is the plan to address the child care shortages using child care centers? **The Department is a recipient of the State Capacity Building Center Impact Project Grant and is utilizing the funds to create a provider toolkit to help providers become and continue being licensed in Wyoming to increase the number of providers and increase child care capacity.**

#### 4.5.4 Strategies to increase the supply of and improve quality of child care

Lead Agencies must develop and implement strategies to increase the supply of and improve the quality of child care services. These strategies must address child care in underserved geographic areas; infants and toddlers; children with disabilities, as defined by the Lead Agency; and children who receive care during non-traditional hours.

How does the Lead Agency identify any gaps in the supply and quality of child care services and what strategies are used to address those gaps for:

- a. Underserved geographic areas. Describe: **The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.**  
**Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and**

reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

- b. Infants and toddlers. Describe: The Department may provide Infant and Toddler set aside funds for targeted grants to improve the supply and quality of early care and education for infants and toddlers in Wyoming. Grants may be available to provide financial support and technical assistance for the planning and development of viable, quality infant and toddler programs; the expansion of quality services for infants and toddlers; and/or improvement or sustainability of the quality of infant and toddler programs.

Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.

Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

- c. Children with disabilities. Describe: The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.

Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.

The Department may reimburse up to \$250.00 more per month for children with special

needs

- d. Children who receive care during non-traditional hours. Describe: **The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider. Family Resource Centers (FRCs) have been established in 22 of Wyoming's 23 counties and are being supported with ARPA Discretionary funds. The FRCs will provide multiple services and resources to diverse families and children, increase protective factors, and reduce the likelihood of child abuse and neglect. FRCs are required to collaborate with local child care licensers to share information regarding child care subsidies with their community partners, develop an understanding of the Child Care Licensing requirements and community implementation, and understanding of the child care availability in the community. DFS is developing a Child Care Provider toolkit, which will guide a prospective child care provider on how to become licensed as well as how to continue to be licensed; this tool will be utilized by the FRCs.**
- e. Other. Specify what population is being focused on to increase supply or improve quality. Describe:

#### 4.5.5 Prioritization of investments in areas of concentrated poverty and unemployment

Lead Agencies must prioritize investments for increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and do not currently have sufficient numbers of such programs.

Describe how the Lead Agency prioritizes increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and that do not have access to high-quality programs. **Wyoming as a state does not experience concentrated areas of poverty and unemployment. The poverty rate for Wyoming in the most recent data (2022) is 11.8% and the unemployment rate is 3.6% (2022). Based on the low poverty and unemployment rates in Wyoming, the Department does not prioritize access to care in a particular area.**

## 5 Health and Safety of Child Care Settings

Child care health and safety standards and enforcement practices are essential to protect the health and safety of children while out of their parents' care. CCDF provides a minimum threshold for child care health and safety policies and practices but leaves authority to **Lead Agencies** to design standards that appropriately protect children's safety and promote nurturing environments that support their healthy growth and development. Lead Agencies should set standards for ratios, group size limits, and provider qualifications that help ensure that the child care environment is conducive to safety and learning and enable caregivers to promote all domains of children's development.

CCDF health and safety standards help set clear expectations for CCDF providers, form the foundation for health and safety training for child care workers, and establish the baseline for monitoring to ensure compliance with health and safety requirements. These health and safety requirements apply to all providers serving children receiving CCDF services – whether the providers are licensed or license-exempt, must be appropriate to the provider setting and age of the children served, must include specific topics and training on those topics, and are subject to monitoring and enforcement procedures by the [Lead Agency](#). CCDF-required annual monitoring and enforcement actions help ensure that CCDF providers are adopting and implementing health and safety requirements.

Through child care licensing, [Lead Agencies](#) set minimum requirements, including health and safety requirements, that child care providers must meet to legally operate in that State or Territory. In some cases, CCDF health and safety requirements may be integrated within the licensing system for licensed providers and may be separate for CCDF providers who are license-exempt.

This section addresses CCDF health and safety requirements, [Lead Agency](#) licensing requirements and exemptions, and comprehensive background checks.

When responding to questions in this section, OCC recognizes that each [Lead Agency](#) identifies and defines its own categories of care. OCC does not expect [Lead Agencies](#) to change their definitions to fit the CCDF-defined categories of care. For these questions, provide responses that best match the CCDF categories of care.

## 5.1 Licensing Requirements

Each Lead Agency must ensure it has in effect licensing requirements applicable to all child care services provided within the State/Territory (not restricted to providers receiving CCDF funds).

### 5.1.1 Providers subject to licensing

For each category of care listed below, identify the type of providers subject to licensing and describe the licensing requirements.

- a. Identify the center-based provider types subject to child care licensing: **Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency or providing only before and after school care of school age children.**
- The only type of center-based providers subject to licensing are Child Care Centers (CCC): facility for 16 children or more, shall not be located in any person's residence.

Are there other categories of licensed, regulated, or registered center providers the Lead Agency does not categorize as license-exempt?

☐ Yes. If yes, describe:

☒ No.

- b. Identify the family child care providers subject to licensing: **Any individual who provides**

**care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111.**

Are there other categories of regulated or registered family child care providers the Lead Agency does not categorize as license-exempt?

☐ Yes. If yes, describe:

☒ No.

- c. Identify the in-home providers subject to licensing: **N/A**

Are there other categories of regulated or registered in-home providers the Lead Agency does not categorize as license-exempt?

☒ Yes. If yes, describe: **In-home providers are license exempt.**

☐ No.

#### 5.1.2 CCDF-eligible providers exempt from licensing

Identify the categories of CCDF-eligible providers who are exempt from licensing requirements, the types of exemptions, and describe how these exemptions do not endanger the health, safety, and development of children. -Relative providers, as defined in CCDF, are addressed in subsection 5.8.

- a. License-exempt center-based child care. Describe by answering the questions below.

- i. Identify the categories of CCDF-eligible center-based child care providers who are exempt from licensing requirements. **In Wyoming, Child Care programs may be exempt if they fall under one or more of the following categories: Before- and after-school programs for school-aged children, Programs overseen by governmental entities or school districts, Part-time daycares who: Limit the age and number of children served; Do not administer medications, prepare food or perform diapering; and operate 10 or less hours per week. This statute has been updated since the CY2 Monitoring and went into effect on July 1, 2023.**
- ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the exemption. **In Wyoming, Child Care Centers may be exempt if they offer part-time day care with a limited number of children ages 3 & 4 and do not administer medications, food, or diapering and operate 10 or less hours per week. This provision was added to the above-referenced after the CY2 Monitoring and went into effect on July 1, 2023.**
- iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. The Department, in an attempt to protect the safety of children, requires all exempt providers to receive the same background checks as licensed providers. Providers or household members with negative**

background results are ineligible to receive assistance payments. In addition, all exempt CCDF providers complete First Aid and CPR training and the other 12 federally required training and are required to meet minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. In addition, all exempt providers (except relative) are required to have an annual inspection to assess minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. The background checks, annual inspections and training will help ensure children are not in danger.

- b. License-exempt family child care. Describe by answering the questions below.
  - i. Identify the categories of CCDF-eligible family child care providers who are exempt from licensing requirements. **In Wyoming, Child Care programs may be exempt if they fall under one or more of the following categories: Small programs caring for two unrelated children or one sibling group, Before- and after-school programs for school-aged children, Part-time daycares who: Limit the age and number of children served; Do not administer medications, prepare food or perform diapering; and operate 10 or less hours per week This statute has been updated since the CY2 Monitoring and went into effect on July 1, 2023.**
  - ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the exemption. **In Wyoming, Child Care programs may be exempt if they fall under one or more of the following categories: Small programs caring for two unrelated children or one sibling group, Before- and after-school programs for school-aged children, Part-time daycares who: Limit the age and number of children served; Do not administer medications, prepare food or perform diapering; and operate 10 or less hours per week. This provision was added to the above-referenced after the CY2 Monitoring and went into effect on July 1, 2023.**
  - iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. The Department, in an attempt to protect the safety of children, requires all exempt providers to receive the same background checks as licensed providers. Providers or household members with negative background results are ineligible to receive assistance payments. In addition, all exempt CCDF providers complete First Aid and CPR training and the other 12 federally required training and are required to meet minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. In addition, all exempt providers (except relatives) are required to have an annual inspection to assess minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. The background checks, annual inspections and training will help ensure children are not in danger.**
- c. In-home care (care in the child's own home by a non-relative). Describe by answering the

questions below.

- i. Identify the categories of CCDF-eligible in-home care (care in the child's own home by a non- relative) providers who are exempt from licensing requirements. **Any individual who is employed to come to the home of the child's parent or guardian is exempt from licensure per Wyoming State Statutes 14-4-101 through 14-4-111 .14-4-102. Certification required; exceptions. (a) All child caring facilities except those excluded in subsection (b) of this section, are required to be certified by the certifying authority before exercising care, custody or control of any minor. (b) W.S. 14-4-101 through 14-4-111 do not apply to: (i) A legal parent's or legal relative's care of a minor; (ii) Occasional care of a neighbor's or friend's child if the caretaking person does not regularly engage in this activity; (iii) Parents exchanging child care on a mutually cooperative basis; (iv) Child care by a person employed to come to the home of the child's parent or guardian;**
- ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the exemption. **Any individual who is employed to come to the home of the child's parent or guardian is exempt from licensure per Wyoming State Statutes 14-4-101 through 14-4-11114-4-102. Certification required; exceptions. (a) All child caring facilities except those excluded in subsection (b) of this section, are required to be certified by the certifying authority before exercising care, custody or control of any minor. (b) W.S. 14-4-101 through 14-4-111 do not apply to: (i) A legal parent's or legal relative's care of a minor; (ii) Occasional care of a neighbor's or friend's child if the caretaking person does not regularly engage in this activity; (iii) Parents exchanging child care on a mutually cooperative basis; (iv) Child care by a person employed to come to the home of the child's parent or guardian;**
- iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. The Department, in an attempt to protect the safety of children, requires all exempt providers to receive the same background checks as licensed providers. Providers or household members with negative background results are ineligible to receive assistance payments. In addition, all exempt CCDF providers complete First Aid and CPR training and the other 12 federally required training and are required to meet minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. In addition, all exempt providers (except relatives) are required to have an annual inspection to assess minimum health and safety requirements as stated on the DFS-203 (a)and (b) registration contract. The background checks, annual inspections and training will help ensure children are not in danger.**

## 5.2 Ratios, Group Size, and Qualifications for CCDF Providers

Lead Agencies must have child care standards for providers receiving CCDF funds, appropriate to the type of child care setting involved, that address appropriate staff:child ratios, group size limits for specific age populations, and the required qualifications for providers. Lead Agencies should map their categories of care to the CCDF categories. Exemptions for relative providers will be addressed in subsection 5.8.

#### 5.2.1 Age classifications

Describe how the **Lead Agency** defines the following age classifications (e.g., Infant: 0 – 18 months).

- a. Infant. Describe: **Infant means any child from birth to 12 months of age.**
- b. Toddler. Describe: **Toddler means any child in care from 12 to 36 months of age.**
- c. Preschool. Describe: **Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) do not provide a definition of preschool. For general purposes, the approximate age range is 3 years old through 5 years old.**
- d. School-Age. Describe: **The Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC): school age children means children who have completed kindergarten or are enrolled in the first grade or are six (6) years old or older.**

#### 5.2.2 Ratio and group size limits

Provide the ratio and group size limits for settings and age groups below.

- a. Licensed CCDF center-based care:

- i. Infant.

Ratio: **Children ages 0-11 months: 1:3; 2:8; and 3:10** Note: the 1:3 ratio is only enforced when this staff is the only staff on the premises. As soon as there is a second staff on the premise the ratio is 1:4

Group size: **Maximum of 10**

- ii. Toddler.

Ratio: **2:10; and 3:12 for 12-24 months. 1:8, 2:16; and 3:18 for 24-36 months.**

Group size: **Maximum of 12 for ages 12-24 months; Maximum of 18 for ages 24-36 months.**

- iii. Preschool.

Ratio: **1:10; 2:20; and 3:24 for 3 year olds. 1:12; 2:24; and 3:30 for 4 and 5 year olds.**

Group size: **Maximum of 24 for 3 year olds; Maximum of 30 for 4 and 5 year olds.**

- iv. School-Age.
    - Ratio: **1:18; 2:32; and 3:40** for children ages 6-13 years.
    - Group size: **The maximum group size is 40.**
  - v. Mixed-Age Groups (if applicable).
    - Ratio: **see below**
    - Group size: **(e) When age groups are combined the following staff:child ratios and group sizes for the youngest age group present shall apply. These options represent maximum numbers of children per youngest age group and total. (i) When one (1) staff person is present caring for up to six (6) children under the age of 36 months there shall be no more than two (2) under the age of 12 months, no more than two (2), one (1) year to 24 months, and no more than two (2), two (2) years to 36 months, with a maximum group size of eight (8) children; or (ii) When one (1) staff person is present, if there are only two (2) children under the age of two (2), the maximum group size can be increased to ten (10) children and no more than five (5) children shall be present in the 24-36 month age group. (iii) When two (2) staff persons are present and caring for a mixed age group there shall be no more than four (4) children under the age of 12 months, no more than four (4), one (1) year to 24 months, and no more than four (4), two (2) years to 36 months, with a maximum group size of 15 children.**
- b. If different, provide the ratios and group size requirements for the license-exempt center-based providers who receive CCDF funds under the following age groups:
- i. ☐ Not applicable. There are no differences in ratios and group size requirements.
  - ii. Infant: **N/A**
  - iii. Toddler: **N/A**
  - iv. Preschool: **N/A**
  - v. School-Age: **N/A**
  - vi. Mixed-Age Groups: **The Wyoming Child Care Purchase of Service Rules defines group size and staff:child ratios. Centers are limited to 1 adult to 30 children; however, there is no maximum group size. A change to the maximum group size requires a change to the Purchase of Service rules and will not be completed by October 1, 2024.**
- c. Licensed CCDF family child care home providers:
- i. Infant (if applicable)
    - Ratio: **1:3; 2:8; and 3:10** for children birth to 12 months. Note: the 1:3 ratio is only enforced when this staff is the only staff on the premises. As soon as there is a second staff on the premise the ratio is 1:4
    - Group size: **Maximum of 10**

ii. Toddler (if applicable)

Ratio: 1:5; 2:10 (12-24 months) or 1:8; 2:15 (24-36 months)

Group size: **No more than five (5) 24-36 month olds for a maximum of eight (8) or ten (10) children in a mixed age group.**

iii. Preschool (if applicable)

Ratio: 1:10 (3 years); 1:12 (4 years); 2:15 or in a mixed age group of 3 and 4 year olds the maximum capacity is 15 children with a staff person present.

Group size: **Maximums of: 10 (3 years); 12 (4 years); or 15 (3 & 4 years combined)**

iv. School-Age (if applicable)

Ratio: 2:15 (6-13 years) or in a mixed age group the maximum capacity is 15 children.

Group size: **Maximum of 15**

v. Mixed-Age Groups

Ratio: (i) When one (1) staff person is present caring for up to six (6) children under the age of 36 months there shall be no more than two (2) under the age of 12 months, no more than two (2), one (1) year to 24 months, and no more than two (2), two (2) years to 36 months

(ii) When one (1) staff person is present, if there are only two (2) children under the age of two (2)

(iii) When two (2) staff persons are present and caring for a mixed age group there shall be no more than four (4) children under the age of 12 months, no more than four (4), one (1) year to 24 months, and no more than four (4), two (2) years to 36 months

Group size: (i) maximum group size of eight (8) children

(ii) maximum group size can be increased to ten (10) children and no more than five (5) children shall be present in the 24-36-month age group

(iii) maximum group size of 15 children

d. Are any of the responses above different for license-exempt family child care homes?

☐ No.

☒ Yes. If yes, describe how the ratio and group size requirements for license-exempt providers vary by age of children served. **In order to receive child care assistance payments, legally exempt home providers shall not provide child care for more than ten children under school age in an immediate family unit. The ten**

**(10) child limit in the home shall include the provider's own children under school age. In the case of grandparents, the total number of children shall never exceed six (6).**

**[ ] Not applicable. The Lead Agency does not have license-exempt family child care homes.**

**e. Licensed in-home care (care in the child's own home):**

**i. Infant (if applicable)**

**Ratio: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**Group size: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**ii. Toddler (if applicable)**

**Ratio: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**Group size: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**iii. Preschool (if applicable)**

**Ratio: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**Group size: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**iv. School-Age (if applicable)**

**Ratio: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**Group size: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**v. Mixed-Age Groups (if applicable)**

**Ratio: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

**Group size: Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

f. Are any of the responses above different for license-exempt in-home care?

☒ No.

☐ Yes. If yes, describe how the ratio and group size requirements for license-exempt in-home care vary by age of children served.

### 5.2.3 Teacher/caregiver qualifications for licensed, regulated, or registered care

Provide the teacher/caregiver qualifications for each category of care.

a. Licensed center-based care

- i. Describe the teacher qualifications for licensed CCDF center-based care (e.g., degrees, credentials, etc.), including any variations based on the ages of children in care: **For Infants: Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times. When four (4) or more infants are enrolled, an infant director/lead teacher must obtain the Infant/Toddler Director credential and at least one (1) staff person must obtain at least eight (8) credits of specialized infant/toddler training. In addition, both must maintain 16 training credits per year. The assistant teacher is required to maintain four (4) or eight (8) infant/toddler training hours and maintain 32 training credits biannually. For all other age children: Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times. The 32 training credits requirement is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department is revising its rules to convert this to a 16 hour per year annual requirement; however, these rules will not be in effect until after October 1, 2024 so the Department will need additional time to meet this requirement**
- ii. Describe the director qualification for licensed CCDF center-based care, including any variations based on the ages of children in care or the number of staff employed: **The director shall: (i) Be at least 21 years old; (ii) Have a high school diploma or an equivalent certificate; (iii) Have a combination of education and experience equivalent to two (2) years in the areas of management, early childhood education, child development, nursing or other; (iv) Shall have completed six (6) clock hours of childcare training in addition to pre-service training prior to licensing; (v) Shall have received a professional credential from an organization recognized by the Department; and (vi) Directors shall meet all training requirements as outlined in Chapter 4.**

b. Licensed family child care

Describe the provider qualifications for licensed family child care homes, including any variations based on the ages of children in care: **For Infants: Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times. When four (4) or more infants are enrolled, an infant director/lead teacher must obtain the Infant/Toddler Director credential and at least one (1) staff person working directly with infants must obtain at least eight (8) hours of specialized infant/toddler training. In addition, both must maintain 32 training credits**

biannually. The assistant teacher is required to maintain four (4) or eight (8) infant/toddler training hours and maintain 16 training credits per year. For all other age children: Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times. The 32 training credits requirement is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department is revising its rules to convert this to a 16 hour per year annual requirement; however, these rules will not be in effect until after October 1, 2024 so the Department will need additional time to meet this requirement.

- c. Licensed, regulated, or registered in-home care (care in the child's own home by a non-relative)

Describe the provider qualifications for licensed, regulated, or registered in-home care providers (care in the child's own home) including any variations based on the ages of children in care: **Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute.**

#### 5.2.4 Teacher/caregiver qualifications for license-exempt providers

Provide the teacher/provider qualification requirements (for instance, age, high school diploma, specific training, etc.) for the license-exempt providers under the following categories of care:

- a. License-exempt center-based child care. **For license-exempt child care centers, the minimum age of a director and staff is 18 years of age or older.**
- b. License-exempt home-based child care. **For license-exempt child care homes, the minimum age of a provider and staff is 18 years of age or older.**
- c. License-exempt in-home care (care in the child's own home). **For license-exempt child in home care, the minimum age of a provider and staff is 18 years of age or older.**

### 5.3 Health and Safety Standards for CCDF Providers

**Lead Agencies** must have health and safety standards for providers serving children receiving CCDF assistance relating to the required health and safety topics as appropriate to the provider setting and age of the children served. This requirement is applicable to all child care programs receiving CCDF funds regardless of licensing status (i.e., licensed or license-exempt). The only exception to this requirement is for relative providers, as defined by CCDF. Lead Agencies have the option of exempting certain relatives from any or all CCDF health and safety requirements.

Exemptions for relative providers' standards requirements will be addressed in question 5.8.1.

Describe the following health and safety standards for programs serving children receiving CCDF assistance on the following topics (note that monitoring and enforcement will be addressed in subsection 5.5):

#### 5.3.1 Prevention and control of infectious diseases (including immunizations) health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that

address the prevention and control of infectious diseases for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Current TB test results and risk assessment in accordance with Wyoming Department of Health recommendations required for all child care staff and household members. Immunization records are required by Wyoming Statute, Child Care Licensing Rules And the Wyoming Department of Health, Immunization Program, except for school age children who are attending public schools. Toys, Phone, doorknobs, door casings, handles and railings shall be cleaned and sanitized once a week or whenever visibly soiled. Table tops, high chairs or food serving surfaces shall be sanitized before and after each use. Diaper changing areas shall be sanitized after each diaper change. Bedding materials (unless laundered) shall be stored so that the bedding is not touching to prevent possible cross-contamination. Cot and bedding shall be cleaned and sanitized on a weekly basis. Hand washing required after use of the toilet or helping a child use a toilet, diaper changing, handling bodily fluid, handling pets, cleaning or handling garbage or handling food. Hand washing is required before diaper changing, handling food, eating and giving medication. No person with a communicable disease, or being a carrier of such, that is listed on the Wyoming Department of Health Reportable Disease and Condition List shall work in a childcare facility unless they have been declared non-infectious to others by a licensed physician, physician assistant or nurse practitioner OR approval has been given by the local or State Department of Health. The same precautions are needed for children enrolled in the program. Limitations to ability to work if experiencing certain afflictions. Children shall be excluded from care when they have any of the following illnesses/symptoms of illness: a communicable disease; diarrhea; severe pain or discomfort; two (2) or more episodes of acute vomiting within a period of 24 hours; difficult or rapid breathing ;head lice; scabies; children suspected of being in contagious stages of hepatitis A, chicken pox, pertussis, measles, mumps, rubella or diphtheria; skin infection or rash(excluding diaper rash); purulent conjunctivitis; swollen joints or visibly enlarged lymph nodes; elevated oral temperature of 101 degrees or over; blood in the urine; mouth sores; or other as determined by a health consultant on an individual basis.**
- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Current TB test results and risk assessment in accordance with Wyoming Department of Health recommendations required for all child care staff and household members. Immunization records are required by Wyoming Statute, Child Care Licensing Rules And the Wyoming Department of Health, Immunization Program, except for school age children who are attending public schools. Toys, Phone, doorknobs, door casings, handles and railings shall be cleaned and sanitized once a week or whenever visibly soiled. Table tops, high chairs or food serving surfaces shall be sanitized before and after each use. Diaper changing areas shall be sanitized after each diaper change. Bedding materials (unless laundered) shall be stored so that the bedding is not touching to prevent possible cross-contamination. Cot and bedding shall be cleaned and sanitized on a weekly basis. Hand washing required after use of the toilet or helping a child use a toilet, diaper changing, handling bodily fluid, handling pets, cleaning or handling garbage or**

handling food. Hand washing is required before diaper changing, handling food, eating and giving medication. No person with a communicable disease, or being a carrier of such, that is listed on the Wyoming Department of Health Reportable Disease and Condition List shall work in a childcare facility unless they have been declared non-infectious to others by a licensed physician, physician assistant or nurse practitioner OR approval has been given by the local or State Department of Health. The same precautions are needed for children enrolled in the program. Limitations to ability to work if experiencing certain afflictions. Children shall be excluded from care when they have any of the following illnesses/symptoms of illness: a communicable disease; diarrhea; severe pain or discomfort; two (2) or more episodes of acute vomiting within a period of 24 hours; difficult or rapid breathing; head lice; scabies; children suspected of being in contagious stages of hepatitis A, chicken pox, pertussis, measles, mumps, rubella or diphtheria; skin infection or rash (excluding diaper rash); purulent conjunctivitis; swollen joints or visibly enlarged lymph nodes; elevated oral temperature of 101 degrees or over; blood in the urine; mouth sores; or other as determined by a health consultant on an individual basis.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **Prevention and control of infectious disease standards help reduce the risk of transmitting diseases and infectious germs from body fluids or environmental surfaces. Standards included are: medication administration including documentation and storage requirements; staff and child hand washing after using the restroom as well as before and after food handling; and immunization requirements as a condition of enrollment except for homeless and foster children who are allowed more time when needed.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **Prevention and control of infectious disease standards help reduce the risk of transmitting diseases and infectious germs from body fluids or environmental surfaces. Standards included are: medication administration including documentation and storage requirements; staff and child hand washing after using the restroom as well as before and after food handling; and immunization requirements as a condition of enrollment except for homeless and foster children who are allowed more time when needed.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **Prevention and control of infectious disease standards help reduce the risk of transmitting diseases and infectious germs from body fluids or environmental surfaces. Standards included are: medication administration including documentation and storage requirements; staff and child hand washing after using the restroom as well as before and after food handling; and immunization requirements as a condition of enrollment except for homeless and foster children who are allowed more time when needed.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **Prevention and control of infectious**

disease standards help reduce the risk of transmitting diseases and infectious germs from body fluids or environmental surfaces. Standards included are: medication administration including documentation and storage requirements; staff and child hand washing after using the restroom as well as before and after food handling; and immunization requirements as a condition of enrollment except for homeless and foster children who are allowed more time when needed.

- b. Provide the standards, appropriate to the provider setting and age of children, that address that children attending child care programs under CCDF are age-appropriately immunized, according to the latest recommendation for childhood immunizations of the respective State public health agency, for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **Immunization records are required by Wyoming Statute, Child Care Licensing Rules And the Wyoming Department of Health, Immunization Program, except for school age children who are attending public schools. Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time. Within 30 days of starting school, children must provide written proof of immunization. This proof must include:  
The month, day, and year of each required immunization  
Written certification from a licensed physician or their representative  
Written certification from a public health authority**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Immunization records are required by Wyoming Statute, Child Care Licensing Rules And the Wyoming Department of Health, Immunization Program, except for school age children who are attending public schools. Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time. Within 30 days of starting school, children must provide written proof of immunization. This proof must include:  
The month, day, and year of each required immunization  
Written certification from a licensed physician or their representative  
Written certification from a public health authority**
  - iii. All CCDF-eligible licensed in-home care. Provide the standard:  
**[x] Not applicable.**
  - iv. All CCDF-eligible license-exempt center care. Provide the standard: **Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and**

child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time.

Within 30 days of starting school, children must provide written proof of immunization. This proof must include:

The month, day, and year of each required immunization

Written certification from a licensed physician or their representative

Written certification from a public health authority

Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(F)

states: (F) The provider shall keep attendance, immunization and health information including special dietary needs and/or food allergy records of the child. Special dietary needs and/or food allergies shall be posted in food preparation and eating areas. Immunization records as required by Wyoming law and the Department of Health shall be on file for all children;

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard:

Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time.

Within 30 days of starting school, children must provide written proof of immunization. This proof must include:

The month, day, and year of each required immunization

Written certification from a licensed physician or their representative

Written certification from a public health authority

Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(F)

states: (F) The provider shall keep attendance, immunization and health information including special dietary needs and/or food allergy records of the child. Special dietary needs and/or food allergies shall be posted in food preparation and eating areas. Immunization records as required by Wyoming law and the Department of Health shall be on file for all children;

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time.

Within 30 days of starting school, children must provide written proof of immunization. This proof must include:

The month, day, and year of each required immunization

Written certification from a licensed physician or their representative

Written certification from a public health authority

Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(F)

states: (F) The provider shall keep attendance, immunization and health information including special dietary needs and/or food allergy records of the child. Special dietary needs and/or food allergies shall be posted in food preparation and eating areas. Immunization records as required by Wyoming law and the Department of Health shall be on file for all children;

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **Wyoming Statute 21-4-309 and the Wyoming Immunization Rules establish immunization requirements for children attending public or private schools, preschools, and child care facilities in Wyoming. These requirements apply to all children, whether they attend full-time or part-time.**  
**Within 30 days of starting school, children must provide written proof of immunization. This proof must include:**  
**The month, day, and year of each required immunization**  
**Written certification from a licensed physician or their representative**  
**Written certification from a public health authority**  
**Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(F) states: (F) The provider shall keep attendance, immunization and health information including special dietary needs and/or food allergy records of the child. Special dietary needs and/or food allergies shall be posted in food preparation and eating areas. Immunization records as required by Wyoming law and the Department of Health shall be on file for all children;**

5.3.2 Prevention of sudden infant death syndrome and the use of safe-sleep practices health and safety standard

Provide the standards, appropriate to the provider setting and age of children, that address the prevention of sudden infant death syndrome and use of safe sleeping practices for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standards related to sleeping infants: Sleeping infants shall: (i) Be placed on their backs for sleeping, unless a licensed health care provider signs a waiver. If the infant has not been observed turning repeatedly from stomach to back and back to stomach by the provider, the infant shall be returned to his/her back for sleeping; (ii) Be placed on a firm, flat surface for sleeping; (iii) Have nothing placed in or over the crib, bassinet, or playpen; (iv) Pacifiers shall only be used when provided by the parent(s); (v) Have nothing placed over his/her head or face while sleeping; (vi) Be placed in the same or adjacent room with enough light to see each infant's face, to view the color of the infant's skin and to check on the infant's breathing; (vii) Be actively supervised by staff in an ongoing manner by checking on them for the above every five (5) minutes; (viii) Not be swaddled without a licensed healthcare professional statement, including instructions and a time frame for swaddling an infant, on file. Swaddling is prohibited for infants that have the ability to roll over independently. A one-piece sleeper or sack equipped with an attached system that fastens securely only across the upper torso may be used; however shall not restrict the arms, hips, or legs of the infant. The sleeper or sack shall be used to manufacturer's guidelines and shall not slide up around the infant's face; and (ix) Be moved as soon as possible if he/she falls asleep in any piece of infant**

equipment other than a crib.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standards related to sleeping infants: Sleeping infants shall: (i) Be placed on their backs for sleeping, unless a licensed health care provider signs a waiver. If the infant has not been observed turning repeatedly from stomach to back and back to stomach by the provider, the infant shall be returned to his/her back for sleeping; (ii) Be placed on a firm, flat surface for sleeping; (iii) Have nothing placed in or over the crib, bassinet, or playpen; (iv) Pacifiers shall only be used when provided by the parent(s); (v) Have nothing placed over his/her head or face while sleeping; (vi) Be placed in the same or adjacent room with enough light to see each infant's face, to view the color of the infant's skin and to check on the infant's breathing; (vii) Be actively supervised by staff in an ongoing manner by checking on them for the above every five (5) minutes; (viii) Not be swaddled without a licensed healthcare professional statement, including instructions and a time frame for swaddling an infant, on file. Swaddling is prohibited for infants that have the ability to roll over independently. A one-piece sleeper or sack equipped with an attached system that fastens securely only across the upper torso may be used; however shall not restrict the arms, hips, or legs of the infant. The sleeper or sack shall be used to manufacturer's guidelines and shall not slide up around the infant's face; and (ix) Be moved as soon as possible if he/she falls asleep in any piece of infant equipment other than a crib.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
[x] Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(M) states: (M) Infants shall be placed on a firm flat surface, on their back to sleep, without anything over their head or face. Lighting in the sleep area shall be sufficient;**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(M) states: (M) Infants shall be placed on a firm flat surface, on their back to sleep, without anything over their head or face. Lighting in the sleep area shall be sufficient;**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **Wyoming Child Care Assistance Purchase of Service Rules, Section 14(a)(ix)(M) states: (M) Infants shall be placed on a firm flat surface, on their back to sleep, without anything over their head or face. Lighting in the sleep area shall be sufficient;**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **n/a**

5.3.3 Administration of medication, consistent with standards for parental consent health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the administration of medication for the following CCDF-eligible providers:
- i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standard related to administration of medication:** (a) Medications shall only be given in child care when the facility has agreed to administer medications and adheres to the following: (i) Staff who administers medication has received the training approved by the Department on administration of medication; and (ii) A medication consent form has been completed and signed by the parent or legal guardian and includes: Name of child and parent or guardian; and (B) Specific instructions for the date and time to be administered and dosage; or (C) A standing order from a parent or health professional for commonly used nonprescription medication that defines what medication and when a medication should be used. (b) Prescription medications and pharmaceutical samples prescribed by a physician or licensed health professional and all over the counter medications shall bear the original prescription label or written instructions to include the following information: (i) Child's name printed on the container; (ii) Amount and frequency of dosage; and (iii) Name of prescribing physician or other health professional, with the exception of over-the-counter medications. (c) All medications shall be stored per manufacturer's instructions and: (i) In a safety lock container; (ii) In an enclosed space that is inaccessible to children; or (iii) In a refrigerator separated from food in a sealed plastic container, inaccessible to children. (d) The facility shall keep a written record of all medication, including over-the-counter medication given to children. This record shall include: (i) Name of child; (ii) Name of medication; (iii) Date and time the medication was administered; (iv) Amount of medication given; and (v) Signature or initials of person administering medication. (e) Notification of medication administration shall be given to the parent or guardian on the day it was administered. (f) Any deviation from recommended dosage on the label shall be accompanied by a physician's written instructions. (g) Medications shall not be used beyond the date of expiration and shall not be stored on premises when no longer needed. (h) The use of sunscreen, insect repellent, essential oils and over the counter topical medications shall not be subject to the training requirements of this Section. (i) The sunscreen, insect repellent, essential oils and over the counter topical medications shall be stored in the original container and the manufacturer's instructions for use shall be followed; and (ii) A consent form, signed by the parent or legal guardian, which allows the application of sunscreen, insect repellent, essential oils and over the counter topical medications on his/her child and indicates the brands of sunscreen unless supplied by parent for his/her child only. Non-relative license-exempt providers are required to store all medications and administer according to manufacturer's instructions.
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standard related to administration of medication:** (a) Medications shall only be given in child care when the facility has agreed to administer medications and adheres to the following: (i) Staff who administers medication has received the training approved

by the Department on administration of medication; and (ii) A medication consent form has been completed and signed by the parent or legal guardian and includes: Name of child and parent or guardian; and (B) Specific instructions for the date and time to be administered and dosage; or (C) A standing order from a parent or health professional for commonly used nonprescription medication that defines what medication and when a medication should be used. (b) Prescription medications and pharmaceutical samples prescribed by a physician or licensed health professional and all over the counter medications shall bear the original prescription label or written instructions to include the following information: (i) Child's name printed on the container; (ii) Amount and frequency of dosage; and (iii) Name of prescribing physician or other health professional, with the exception of over-the-counter medications. (c) All medications shall be stored per manufacturer's instructions and: (i) In a safety lock container; (ii) In an enclosed space that is inaccessible to children; or (iii) In a refrigerator separated from food in a sealed plastic container, inaccessible to children. (d) The facility shall keep a written record of all medication, including over-the-counter medication given to children. This record shall include: (i) Name of child; (ii) Name of medication; (iii) Date and time the medication was administered; (iv) Amount of medication given; and (v) Signature or initials of person administering medication. (e) Notification of medication administration shall be given to the parent or guardian on the day it was administered. (f) Any deviation from recommended dosage on the label shall be accompanied by a physician's written instructions. (g) Medications shall not be used beyond the date of expiration and shall not be stored on premises when no longer needed. (h) The use of sunscreen, insect repellent, essential oils and over the counter topical medications shall not be subject to the training requirements of this Section. (i) The sunscreen, insect repellent, essential oils and over the counter topical medications shall be stored in the original container and the manufacturer's instructions for use shall be followed; and (ii) A consent form, signed by the parent or legal guardian, which allows the application of sunscreen, insect repellent, essential oils and over the counter topical medications on his/her child and indicates the brands of sunscreen unless supplied by parent for his/her child only. Non-relative license-exempt providers are required to store all medications and administer according to manufacturer's instructions.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **Wyoming Purchases of Service Rules Section 14(a) (ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **Wyoming Purchases of Service Rules Section 14(a) (ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **Wyoming Purchases of Service Rules Section 14(a) (ix)(G) states: The provider shall keep a**

- medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **Wyoming Purchases of Service Rules Section 14(a) (ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
  - b. Provide the standards, appropriate to the provider setting and age of children, that address obtaining permission from parents to administer medications to children for the following CCDF-eligible providers:
    - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standard related to administration of medication: (a) Medications shall only be given in child care when the facility has agreed to administer medications and adheres to the following: (i) Staff who administers medication has received the training approved by the Department on administration of medication; and (ii) A medication consent form has been completed and signed by the parent or legal guardian and includes: Name of child and parent or guardian; and (B) Specific instructions for the date and time to be administered and dosage; or (C) A standing order from a parent or health professional for commonly used nonprescription medication that defines what medication and when a medication should be used.**
    - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standard related to administration of medication: (a) Medications shall only be given in child care when the facility has agreed to administer medications and adheres to the following: (i) Staff who administers medication has received the training approved by the Department on administration of medication; and (ii) A medication consent form has been completed and signed by the parent or legal guardian and includes: Name of child and parent or guardian; and (B) Specific instructions for the date and time to be administered and dosage; or (C) A standing order from a parent or health professional for commonly used nonprescription medication that defines what medication and when a medication should be used.**
    - iii. All CCDF-eligible licensed in-home care. Provide the standard:  

**[x]Not applicable.**
    - iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
    - v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to**

directions;

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(G) states: The provider shall keep a medical consent form signed by the parent or a legal guardian of the child. All medications shall be safely stored and administered according to directions;**

5.3.4 Prevention of and response to emergencies due to food and allergic reactions health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the *prevention* of emergencies due to food and allergic reactions for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard in terms of requirements for staff and parents: Individual child's records shall include health information including allergies, chronic physical problems and pertinent social information on the child and her/his family. Special dietary needs and/or food allergies shall be posted in the food preparation area and in the area the child eats.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard in terms of requirements for staff and parents: Individual child's records shall include health information including allergies, chronic physical problems and pertinent social information on the child and her/his family. Special dietary needs and/or food allergies shall be posted in the food preparation area and in the area the child eats.**
  - iii. All CCDF-eligible licensed in-home care. Provide the standard:  
**[x] Not applicable.**
  - iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the *response* to emergencies due to food and allergic reactions for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Child Care Licensing Rules(xviii) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any**

other allergy. All persons who come in contact with the children who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed;

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Child Care Licensing Rules(xviii) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the children who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed;**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:  

**[x] Not applicable.**
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific**

symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchases of Service Rules Section 14(a)(ix)(Q)(6.)states: (6) All children with food and other allergies should have an emergency care plan in place. For food allergies, the plan shall provide detailed instructions about which food(s) the child is allergic to and what to do if an allergic reaction occurs, including the names, doses, and methods of administration of any medications that the child should receive in the event of a reaction. The plan shall also include specific symptoms that would indicate the need to administer one or more medications. The same shall be developed and in place for children with any other allergy. All persons who come in contact with the child(ren) who have a plan for emergencies, shall be fully aware of the plan and the plan shall be followed.**

5.3.5 Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from building and physical premises hazards for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard related to building and physical premises safety in the Health and Safety Requirements section: The overall condition of the child care facility and grounds, including play areas, equipment, and toys, shall be maintained in a clean, uncluttered, safe condition and free of hazards. Decks, porches, steps, stairs and walkways shall be maintained in good repair and safe condition. Stairs, decks and elevated porches shall have sturdy railings, child safety gates or guardrails. Children shall not have access to cords or ropes, including but not limited to, window treatment cords or electrical cords. Spaces that could entrap children, including but not limited to , openings in guardrails or banisters, shall measure 3.5 inches or less, or more than 9 inches to prevent entrapment. Potentially dangerous or unsafe items shall be made inaccessible to children. Electrical outlets shall be tamper resistant or covered with safety caps when not in use. Any item which may present a burn hazard including heating units and appliances, shall be made inaccessible to children unless its use is for an activity directly supervised by an adult. Electric fans shall be out of the reach of children or shall be fitted with an appropriate mesh to prevent access to the blades by children. In addition, Outdoor Play Space: The outdoor play area shall be enclosed with a fence. The fence shall be at least 4 feet in height and the bottom edge shall be no more than 3.5 inches off the ground. Equipment shall be sturdy, stable, and free of hazards that are accessible to children during normal supervised play and all pieces of equipment shall be installed as directed by the manufacturer's instructions and specifications.**

Outdoor play equipment with a fall height of more than 24 inches shall be installed over a resilient surface covering the appropriate use zones. Window wells shall be covered, but shall not impede egress or allow for entrapment. Trampolines over 3 feet in diameter shall not be used on or off the premises and shall be fenced or otherwise made inaccessible to child care children. Commercial constant air inflatable devices shall ONLY be used in accordance with the Consumer Product Safety Commission (CPSC) standards (and other conditions). In addition, Fire Standards for Family Child Care Home and Fire Standards for Child Care Centers and Family Child Care Centers. The fire standards are basic requirements and include a fire inspection to ensure compliance with minimum requirements that will provide a reasonable level of fire and life safety, property protection and public welfare from actual and potential hazards created by fire, explosions and other hazardous conditions.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard related to building and physical premises safety in the Health and Safety Requirements section: The overall condition of the child care facility and grounds, including play areas equipment, and toys, shall be maintained in a clean, uncluttered, safe condition and free of hazards. Decks, porches, steps, stairs and walkways shall be maintained in good repair and safe condition. Stairs, decks and elevated porches shall have sturdy railings, child safety gates or guardrails. Children shall not have access to cords or ropes, including but not limited to, window treatment cords or electrical cords. Spaces that could entrap children, including but not limited to , openings in guardrails or banisters, shall measure 3.5 inches or less, or more than 9 inches to prevent entrapment. Potentially dangerous or unsafe items shall be made inaccessible to children. Electrical outlets shall be tamper resistant or covered with safety caps when not in use. Any item which may present a burn hazard including heating units and appliances, shall be made inaccessible to children unless its use is for an activity directly supervised by an adult. Electric fans shall be out of the reach of children or shall be fitted with an appropriate mesh to prevent access to the blades by children. In addition, Outdoor Play Space: The outdoor play area shall be enclosed with a fence. The fence shall be at least 4 feet in height and the bottom edge shall be no more than 3.5 inches off the ground. Equipment shall be sturdy, stable, and free of hazards that are accessible to children during normal supervised play and all pieces of equipment shall be installed as directed by the manufacturer's instructions and specifications. Outdoor play equipment with a fall height of more than 24 inches shall be installed over a resilient surface covering the appropriate use zones. Window wells shall be covered, but shall not impede egress or allow for entrapment. Trampolines over 3 feet in diameter shall not be used on or off the premises and shall be fenced or otherwise made inaccessible to child care children. Commercial constant air inflatable devices shall ONLY be used in accordance with the Consumer Product Safety Commission (CPSC) standards (and other conditions). In addition, Fire Standards for Family Child Care Home and Fire Standards for Child Care Centers and Family Child Care Centers. The fire standards are basic requirements and include a fire inspection to ensure compliance with minimum

requirements that will provide a reasonable level of fire and life safety, property protection and public welfare from actual and potential hazards created by fire, explosions and other hazardous conditions.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Services Rules Section 14(a)(ix)state: Meet the minimum health and safety standards which shall include the following: (A) An operable smoke alarm; (B) The use of tobacco, illegal drugs and or consumption of alcohol is prohibited during of hours of operation; (C) An operable telephone shall be available where the child care takes place; (D)Weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children; (H)The overall condition of the child care facility and grounds, including play areas, equipment, and toys shall be maintained in a clean, uncluttered, safe condition and free of hazards, including items that may cause heat injuries; (I) Unused electrical outlets shall be covered with safety caps; (J) Fire exits shall be clear and exit doors remain unlocked or have locks allowing all parties to safely exit; (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license;**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Services Rules Section 14(a)(ix)state: Meet the minimum health and safety standards which shall include the following: (A) An operable smoke alarm; (B) The use of tobacco, illegal drugs and or consumption of alcohol is prohibited during of hours of operation; (C) An operable telephone shall be available where the child care takes place; (D)Weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children; (H)The overall condition of the child care facility and grounds, including play areas, equipment, and toys shall be maintained in a clean, uncluttered, safe condition and free of hazards, including items that may cause heat injuries; (I) Unused electrical outlets shall be covered with safety caps; (J) Fire exits shall be clear and exit doors remain unlocked or have locks allowing all parties to safely exit; (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license;**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Services Rules Section 14(a)(ix)state: Meet the minimum health and safety standards which shall include the following: (A) An operable smoke alarm; (B) The use of tobacco, illegal drugs and or consumption of alcohol is prohibited during of hours of operation; (C) An operable telephone shall be available where the child care takes place; (D)Weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children; (H)The overall condition of the child care facility and**

grounds, including play areas, equipment, and toys shall be maintained in a clean, uncluttered, safe condition and free of hazards, including items that may cause heat injuries; (I) Unused electrical outlets shall be covered with safety caps; (J) Fire exits shall be clear and exit doors remain unlocked or have locks allowing all parties to safely exit; (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license;

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Services Rules Section 14(a)(ix)state: Meet the minimum health and safety standards which shall include the following: (A) An operable smoke alarm; (B) The use of tobacco, illegal drugs and or consumption of alcohol is prohibited during of hours of operation; (C) An operable telephone shall be available where the child care takes place; (D)Weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children; (H)The overall condition of the child care facility and grounds, including play areas, equipment, and toys shall be maintained in a clean, uncluttered, safe condition and free of hazards, including items that may cause heat injuries; (I) Unused electrical outlets shall be covered with safety caps; (J) Fire exits shall be clear and exit doors remain unlocked or have locks allowing all parties to safely exit; (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license;**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from bodies of water for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **When water hazards are present within the approved play area, the following shall apply: shall be enclosed by a fence no less than 4 feet high; facility policy shall include written safety procedures outlining conditions for use of a swimming pool, wading pool or other bodies of water and be given to parents and staff; written parental consent is required for use of a swimming pool or wading pool; an adult staff member shall be in the immediate vicinity at all times when a water hazard is available and accessible; an adult shall remain in direct physical contact with infants at all times; the shall be at least 1 certified lifeguard present when swimming pool is in use when there is more than 3 feet of water; children are to be instructed on the safe use of a swimming pool; and children shall not be allowed to use hot tubs or spas and they shall be made inaccessible. When using a public or private pool, staff:child ratios for infants and toddlers, birth to 36 months, shall be 1:1; for children 3 to 5 years old shall be 1:4; for children who have completed kindergarten or are enrolled in first grade or higher or are 6 years or older shall be 1:6 while swimming. Certified lifeguards may be used to meet these staff:child ratios when the lifeguard is age 16 or older and assigned only to that group of children.**

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **When water hazards are present within the approved play area, the following shall apply: shall be enclosed by a fence no less than 4 feet high; facility policy shall include written safety procedures outlining conditions for use of a swimming pool, wading pool or other bodies of water and be given to parents and staff; written parental consent is required for use of a swimming pool or wading pool; an adult staff member shall be in the immediate vicinity at all times when a water hazard is available and accessible; an adult shall remain in direct physical contact with infants at all times; the shall be at least 1 certified lifeguard present when swimming pool is in use when there is more than 3 feet of water; children are to be instructed on the safe use of a swimming pool; and children shall not be allowed to use hot tubs or spas and they shall be made inaccessible. When using a public or private pool, staff:child ratios for infants and toddlers, birth to 36 months, shall be 1:1; for children 3 to 5 years old shall be 1:4; for children who have completed kindergarten or are enrolled in first grade or higher or are 6 years or older shall be 1:6 while swimming. Certified lifeguards may be used to meet these staff:child ratios when the lifeguard is age 16 or older and assigned only to that group of children.**
  - iii. All CCDF-eligible licensed in-home care. Provide the standard:  

☒ Not applicable.
  - iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Exempt Provider Inspection Form includes inspections to ensure bodies of water need to be enclosed by a fence no less than four (4) feet high.**
  - v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Exempt Provider Inspection Form includes inspections to ensure bodies of water need to be enclosed by a fence no less than four (4) feet high.**
  - vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Exempt Provider Inspection Form includes inspections to ensure bodies of water need to be enclosed by a fence no less than four (4) feet high.**
  - vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Exempt Provider Inspection Form includes inspections to ensure bodies of water need to be enclosed by a fence no less than four (4) feet high.**
- c. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from vehicular traffic hazards for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard related to identification of and protection from vehicular traffic hazards standard in the Outdoor Play Space**

section: The outdoor play area shall be enclosed with a fence. The fence shall be at least four (4) feet in height and the bottom edge shall be no more than three and one-half (3 ½) inches off the ground. AND Section: Transportation and Field Trips: when children are taken off site, there shall be direct staff supervision at all times, with a written plan for supervision maintenance at all times and physical boundaries identified for children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard related to identification of and protection from vehicular traffic hazards standard in the Outdoor Play Space section: The outdoor play area shall be enclosed with a fence. The fence shall be at least four (4) feet in height and the bottom edge shall be no more than three and one-half (3 ½) inches off the ground. AND Section: Transportation and Field Trips: when children are taken off site, there shall be direct staff supervision at all times, with a written plan for supervision maintenance at all times and physical boundaries identified for children.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Services Rules state: Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Services Rules state: Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Services Rules state: Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Services Rules state: Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**

#### 5.3.6 Prevention of shaken baby syndrome, abusive head trauma, and maltreatment health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the prevention of shaken baby syndrome and abusive head trauma and indicate the age of children it applies to for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center**

(FCCC) or Child Care Center (CCC) address Discipline and Guidance as it relates to appropriate interaction with children in care. The following behavior shall be prohibited in all child care settings: punishment associated with food, rest or toilet training; rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain; inappropriate use of language, including but not limited to profanity, name calling, derogatory or demeaning terminology or screaming related to disciplinary purposes; any form of humiliation including threats of physical punishment; any form of emotional maltreatment including rejecting, terrorizing, corrupting, isolating or ignoring a child - a child can be removed from a group, but not isolated - behavior of a child may be ignored, but not the child; and any form of confining a child's movement or restraining a child as a means of punishment. In addition, all staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) address Discipline and Guidance as it relates to appropriate interaction with children in care. The following behavior shall be prohibited in all child care settings: punishment associated with food, rest or toilet training; rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain; inappropriate use of language, including but not limited to profanity, name calling, derogatory or demeaning terminology or screaming related to disciplinary purposes; any form of humiliation including threats of physical punishment; any form of emotional maltreatment including rejecting, terrorizing, corrupting, isolating or ignoring a child - a child can be removed from a group, but not isolated - behavior of a child may be ignored, but not the child; and any form of confining a child's movement or restraining a child as a means of punishment. In addition, all staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:  

**[x] Not applicable.**
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical**

pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v)

Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.

- b. Provide the standards, appropriate to the provider setting and age of children, that address the prevention of child maltreatment and indicate the age of children it applies to for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) address Discipline and Guidance as it relates to appropriate interaction with children in care. The following behavior shall be prohibited in all child care settings: punishment associated with food, rest or toilet training; rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain; inappropriate use of language, including but not limited to profanity, name calling, derogatory or demeaning terminology or screaming related to disciplinary purposes; any form of humiliation including threats of physical punishment; any form of emotional maltreatment including rejecting, terrorizing, corrupting, isolating or ignoring a child - a child can be removed from a group, but not isolated - behavior of a child may be ignored, but not the child; and any form of confining a child's movement or restraining a child as a means of punishment. In addition, all staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) address Discipline and Guidance as it relates to appropriate interaction with children in care. The following behavior shall be prohibited in all child care settings: punishment associated with food, rest or toilet training; rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain; inappropriate use of language, including but not limited to profanity, name calling, derogatory or demeaning terminology or screaming related to disciplinary purposes; any form of humiliation including threats of physical punishment; any form of emotional maltreatment including rejecting, terrorizing, corrupting, isolating or ignoring a child - a child can be removed from a group, but not isolated - behavior of a child may be ignored, but not the child; and any form of confining a child's movement or restraining a child as a means of punishment. In addition, all staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the**

local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard:

**The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to**

hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules state: (n) Written guidance, discipline and prevention of child maltreatment policy shall be followed and shall: (i) Not include any discipline that is in violation of applicable laws; (ii) Outline methods of guidance appropriate to the ages of the children enrolled; (iii) Explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; (iv) Be included in orientation; and (v) Identify behaviors which shall be prohibited in all child care settings: rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain. (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**

#### 5.3.7 Emergency preparedness and response planning standard

Identify by checking below that the emergency preparedness and response planning due to natural disasters and human-caused events standard includes procedures in the following areas:

- i. ☒ Evacuation
- ii. ☒ Relocation
- iii. ☒ Shelter-in-place
- iv. ☒ Lock down
- v. Staff emergency preparedness
  - ☒ Training
  - ☒ Practice drills
- vi. Volunteer emergency preparedness
  - ☒ Training
  - ☒ Practice drills
- vii. ☒ Communication with families
- viii. ☒ Reunification with families
- ix. ☒ Continuity of operations

- x. Accommodation of
  - ☒ Infants
  - ☒ Toddlers
  - ☒ Children with disabilities
  - ☒ Children with chronic medical conditions

xi. If any of the above are not checked, describe:

5.3.8 Handling and storage of hazardous materials and the appropriate disposal of biocontaminants health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the handling and storage of hazardous materials for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines the standard for handling and storage of hazardous materials and the appropriate disposal of bio-contaminants: Chemicals shall not be used around children and in a manner that contaminates surfaces such as tables, carpets, lawns, food, or food preparation areas. Hazardous compounds, such as insecticides and rodenticides and other chemicals bearing the skull and crossbones or "Danger" designation shall be kept under lock and key. Poisonous or toxic chemicals shall not be stored above or adjacent to food, food items(utensils), food contact surfaces, or toys and playthings. They shall not be used in a manner that could contaminate these articles. Containers of poisonous or toxic material shall be prominently and distinctly labeled for easy identification of contents. The Centers for Disease Control (CDC) Precautions shall be adopted to handle potential exposure to blood and other potentially infectious fluids (biocontaminants) and disposal of biocontaminants. Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines the standard for handling and storage of hazardous materials and the appropriate disposal of bio-contaminants: Chemicals shall not be used around children and in a manner that contaminates surfaces such as tables, carpets, lawns, food, or food preparation areas. Hazardous compounds, such as insecticides and rodenticides and other chemicals bearing the skull and crossbones or "Danger" designation shall be kept under lock and key. Poisonous or toxic chemicals shall not be stored above or adjacent to food, food items(utensils), food contact surfaces, or toys and playthings. They shall not be used in a manner that could contaminate these articles. Containers of poisonous or toxic material shall be prominently and distinctly labeled for easy identification of contents. The Centers for Disease Control (CDC) Precautions shall be adopted to handle potential exposure to blood and other potentially infectious**

fluids (biocontaminants) and disposal of biocontaminants. Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
[x] Not applicable.
  - iv. All CCDF-eligible license-exempt center care. Provide the standard: **Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.**
  - v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.**
  - vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.**
  - vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the disposal of bio contaminants for the following CCDF-eligible providers:
- i. All CCDF-eligible licensed center care. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines the standard for handling and storage of hazardous materials and the appropriate disposal of bio-contaminants: Chemicals shall not be used around children and in a manner that contaminates surfaces such as tables, carpets, lawns, food, or food preparation areas. Hazardous compounds, such as insecticides and rodenticides and other chemicals bearing the skull and crossbones or "Danger" designation shall be kept under lock and key. Poisonous or toxic chemicals shall not be stored above or adjacent to food, food items(utensils), food contact surfaces, or toys and playthings. They shall not be used in a manner that could contaminate these articles. Containers of poisonous or toxic material shall be prominently and distinctly labeled for easy identification of contents. The Department is currently out of compliance with this requirement as the Child Care Licensing Rules do not explicitly state "biocontaminants" per the Preliminary Notice of Non-Compliance dated 3/08/24. In order to come into compliance, the Department's Rules require a change in language; however, the Department needs additional time to meet this requirement.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines the standard for handling and**

storage of hazardous materials and the appropriate disposal of bio-contaminants: Chemicals shall not be used around children and in a manner that contaminates surfaces such as tables, carpets, lawns, food, or food preparation areas. Hazardous compounds, such as insecticides and rodenticides and other chemicals bearing the skull and crossbones or "Danger" designation shall be kept under lock and key. Poisonous or toxic chemicals shall not be stored above or adjacent to food, food items(utensils), food contact surfaces, or toys and playthings. They shall not be used in a manner that could contaminate these articles. Containers of poisonous or toxic material shall be prominently and distinctly labeled for easy identification of contents. The Department is currently out of compliance with this requirement as the Child Care Licensing Rules do not explicitly state **biocontaminants** per the Preliminary Notice of Non-Compliance dated 3/08/24. In order to come into compliance, the Department's Rules require a change in language; however, the Department needs additional time to meet this requirement.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
[x] Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules, Section 14 (ix)(D) Handling, storage and disposal of all hazardous material and of bio contaminants must follow label instructions.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Service Rules, Section 14 (ix)(D) Handling, storage and disposal of all hazardous material and of bio contaminants must follow label instructions.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules, Section 14 (ix)(D) Handling, storage and disposal of all hazardous material and of bio contaminants must follow label instructions.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules, Section 14 (ix)(D) Handling, storage and disposal of all hazardous material and of bio contaminants must follow label instructions.**

#### 5.3.9 Precautions in transporting children health and safety standard

Provide the standards, appropriate to the provider setting and age of children, that address precautions in transporting children for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC),Section 8. Transportation and Field Trips. (a) Vehicles used to transport children shall be maintained in safe condition and comply with applicable motor vehicle laws. (b) Operators of vehicles used to transport children shall have the appropriate type of driver's license and be at least 18 years of age. (c) The number of persons in a vehicle used to transport children shall not exceed the manufacturer's recommended capacity nor the**

number of seat belts installed when the vehicle was manufactured (d) Each child who is a passenger shall be properly secured in a child safety restraint system or seat belt as required by law. The child safety restraint system shall conform to Federal Motor Vehicle Safety Standards for child restraint systems. (e) When children are taken off site, there shall be: (i) A first aid kit; (ii) Emergency medical release forms on all children; (iii) A current and updated attendance record (which documents periodic counts of children to include when getting on and off the mode of transportation; (iv) Direct staff supervision at all times, with a written plan for supervision maintenance at all times; and (v) Physical boundaries identified for children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC), Section 8. Transportation and Field Trips.** (a) Vehicles used to transport children shall be maintained in safe condition and comply with applicable motor vehicle laws. (b) Operators of vehicles used to transport children shall have the appropriate type of driver's license and be at least 18 years of age. (c) The number of persons in a vehicle used to transport children shall not exceed the manufacturer's recommended capacity nor the number of seat belts installed when the vehicle was manufactured (d) Each child who is a passenger shall be properly secured in a child safety restraint system or seat belt as required by law. The child safety restraint system shall conform to Federal Motor Vehicle Safety Standards for child restraint systems. (e) When children are taken off site, there shall be: (i) A first aid kit; (ii) Emergency medical release forms on all children; (iii) A current and updated attendance record (which documents periodic counts of children to include when getting on and off the mode of transportation; (iv) Direct staff supervision at all times, with a written plan for supervision maintenance at all times; and (v) Physical boundaries identified for children.
- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license; and Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Service Rules state: (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license; and Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical**

contact with infants at all times.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules state: (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license; and Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules state: (P) Vehicles used to transport children shall be maintained in safe condition, with appropriate child safety restraint systems and shall comply with applicable motor vehicle laws. Operators of vehicles used to transport children shall have the appropriate and valid motor vehicle license; and Where vehicular traffic is present, an adult staff member shall be in the immediate vicinity at all times. An adult shall remain in direct physical contact with infants at all times.**

#### 5.3.10 Pediatric first aid and pediatric cardiopulmonary resuscitation (CPR) health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address pediatric first aid for all staff for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. Adult and Pediatric CPR and Adult and Pediatric First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Licensing Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. Adult and Pediatric CPR and Adult and Pediatric First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary**

Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Licensing Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
[x] Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Rules for Child Care Purchase of Service requires infant/child CPR and First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Purchase of Service Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Rules for Child Care Purchase of Service requires infant/child CPR and First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Purchase of Service Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Rules for Child Care Purchase of Service requires infant/child CPR and First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Purchase of Service Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Rules for Child Care Purchase of Service requires infant/child CPR and First Aid to be kept current at all times. The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing rules not specifically identifying "pediatric" for its first aid requirement. In order to**

come into full compliance with this requirement, the Department is required to make changes to its Child Care Purchase of Service Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.

- b. Provide the standards, appropriate to the provider setting and age of children, that address pediatric cardiopulmonary resuscitation for all staff for the following CCDF-eligible providers:
- i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. Adult and Pediatric CPR and Adult and Pediatric First Aid to be kept current at all times.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. Adult and Pediatric CPR and Adult and Pediatric First Aid to be kept current at all times.**
  - iii. All CCDF-eligible licensed in-home care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. Adult and Pediatric CPR and Adult and Pediatric First Aid to be kept current at all times.**

[x] Not applicable.
  - iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (E) Current certification in infant/child Adult and Pediatric CPR and Adult and Pediatric first aid training shall be maintained; (I) Verification shall be submitted to the local DFS office within 90 days of initial registration as a legally exempt provider; and (II) Verification shall be submitted to the local DFS office prior to approval as a legally exempt provider when the provider was previously terminated for failure to submit required verification.**
  - v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Service Rules state: (E) Current certification in infant/child Adult and Pediatric CPR and Adult and Pediatric first aid training shall**

be maintained; (I) Verification shall be submitted to the local DFS office within 90 days of initial registration as a legally exempt provider; and (II) Verification shall be submitted to the local DFS office prior to approval as a legally exempt provider when the provider was previously terminated for failure to submit required verification.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules state: (E) Current certification in infant/child Adult and Pediatric CPR and Adult and Pediatric first aid training shall be maintained; (I) Verification shall be submitted to the local DFS office within 90 days of initial registration as a legally exempt provider; and (II) Verification shall be submitted to the local DFS office prior to approval as a legally exempt provider when the provider was previously terminated for failure to submit required verification.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules state: (E) Current certification in infant/child Adult and Pediatric CPR and Adult and Pediatric first aid training shall be maintained; (I) Verification shall be submitted to the local DFS office within 90 days of initial registration as a legally exempt provider; and (II) Verification shall be submitted to the local DFS office prior to approval as a legally exempt provider when the provider was previously terminated for failure to submit required verification.**

#### 5.3.11 Identification and reporting of child abuse and neglect health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the identification of child abuse and neglect for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define recognition and reporting of child abuse and neglect in terms of requirements of all staff: All Staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect AND Wyoming State Statute defines all persons as mandatory reporters.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define recognition and reporting of child abuse and neglect in terms of requirements of all staff: All Staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect AND Wyoming State Statute defines all persons as mandatory reporters.**
  - iii. All CCDF-eligible licensed in-home care. Provide the standard:

[x] Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- b. Provide your standards, appropriate to the provider setting and age of children, that address the reporting of child abuse and neglect for the following CCDF-eligible providers:
  - i. All CCDF-eligible licensed center care. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define recognition and reporting of child abuse and neglect in terms of requirements of all staff: All Staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect AND Wyoming State Statute defines all persons as mandatory reporters.**
  - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define recognition and reporting of child abuse and neglect in terms of requirements of all staff: All Staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect AND Wyoming State Statute defines all persons as mandatory reporters.**

- iii. All CCDF-eligible licensed in-home care. Provide the standard:  
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **The Wyoming Purchase of Service Rules state: (o) All persons are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect by a person inside or outside of a program.**
- c. Confirm if child care providers must comply with the [Lead Agency's](#) procedures for reporting child abuse and neglect as required by the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)(2)(B)(i):  
☒ Yes, confirmed.  
☐ No. If no, describe:

#### 5.3.12 Additional optional standards

In addition to the required health and safety standards, does the Lead Agency require providers to comply with the following optional standards?

☒ Yes.

☐ No. If no, skip to Section 5.4

If yes, describe the standard(s).

- i. Nutrition. Describe: **For licensed providers, the Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center**

(FCCC) or Child Care Center (CCC) define nutrition requirements:(a) Nutritionally balanced snacks, meals and appropriate portions for the needs and ages of children shall be provided; (i) Adequate fluids shall be provided and encouraged; and (ii) Special dietary needs and/or food allergies shall be posted in food preparation areas and in the area the child eats. (b) If a child is in attendance for five (5) or more hours, a meal shall be provided, unless a child arrives after lunchtime and an evening meal is not provided by the facility. In this case, a nutritious snack shall be provided. (c) Pasteurized milk shall be made available at all meals, unless written documentation is provided by the parent and is on file. Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 18.

- ii. Access to physical activity. Describe: For licensed providers, the Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define access to physical activity: (a) There shall be a minimum of 75 square feet of outdoor play space for each child when ages of children are combined, except as provided in Section 15. and (c) This space shall be used at least one (1) time per day for at least 30 minutes when weather and environmental conditions do not pose a significant health or safety risk. Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 16(a) & (c).
- iii. Caring for children with special needs. Describe: For licensed providers, the Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define caring for children with special needs by requiring reasonable accommodations made for children with special needs based on the child's ability. Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 2(g).
- iv. Any other areas determined necessary to promote child development or to protect children's health and safety. Describe: **No other areas addressed.**

## 5.4 Pre-Service or Orientation Training on Health and Safety Standards

Lead Agencies must have requirements for all caregivers, teachers, and directors at CCDF providers to complete pre-service or orientation training (within 3 months of starting) on all CCDF health and safety standards and child development. The training must be appropriate to the setting and the age of children served. This training must address the required health and safety standards and the content area of child development. Lead Agencies have flexibility in determining the minimum number of training hours to require, and are encouraged to consult with Caring for our Children Basics for best practices.

Exemptions for relative providers' training requirements are addressed in question 5.8.1.

### 5.4.1 Health and safety pre-service/orientation training requirements

Lead Agencies must certify staff have pre-service or orientation training on each standard that is appropriate to different settings and age groups. Lead Agencies may require pre-service or orientation to be completed before staff can care for children unsupervised. In the table below, check the boxes for which you have training requirements.

|                                                                                                                                           | Is this standard addressed in the pre-service or orientation training? | Is the pre-service or orientation training on this standard appropriate to different settings and age groups? | Does the Lead Agency require staff to complete the training before caring for children unsupervised? |
|-------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| a. Prevention and control of infectious diseases (including immunizations)                                                                | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |
| b. SIDS prevention and use of safe sleep practices                                                                                        | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |
| c. Administration of medication                                                                                                           | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |
| d. Prevention and response to food and allergic reactions                                                                                 | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |
| e. Building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |
| f. Prevention of shaken baby syndrome, abusive                                                                                            | [x]                                                                    | [x]                                                                                                           | [x]                                                                                                  |

|                                                                                                                                |                                     |                                     |                                     |
|--------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|-------------------------------------|-------------------------------------|
| head trauma and child maltreatment                                                                                             |                                     |                                     |                                     |
| g. Emergency preparedness and response planning and procedures                                                                 | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| h. Handling and storage of hazardous materials and disposal of biocontaminants                                                 | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| i. Appropriate Precautions in transporting children, if applicable                                                             | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| j. Pediatric first aid and pediatric CPR (age-appropriate)                                                                     | <input checked="" type="checkbox"/> | <input type="checkbox"/>            | <input checked="" type="checkbox"/> |
| k. Child abuse and neglect recognition and reporting                                                                           | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| l. Child development including major domains of cognitive, social, emotional, physical development and approaches to learning. | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |

m. If the Lead Agency does not certify implementation of all the health and safety pre-service/orientation training requirements for staff in programs serving children receiving CCDF assistance, please describe: **The Department currently has an outstanding non-compliance for this requirement pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. The non-compliance stems from the current Child Care Licensing and Child Care Purchase of Service rules not specifically identifying “pediatric” for its first aid and CPR requirements. In order to come into full compliance with this requirement, the Department is required to make changes to its Child Care Licensing and Child Care Purchase of Service Rules and needs additional time to complete this change as it may not be completed prior to October 1, 2024.**

n. Are there any provider categories to whom the above pre-service or orientation training requirements do not apply?

☒ No

☐ Yes. If yes, describe:

## 5.5 Monitoring and Enforcement of Licensing and Health and Safety Requirements

#### 5.5.1 Inspections for licensed CCDF providers

Licensing inspectors must perform at least one annual, unannounced inspection of each licensed CCDF provider for compliance with all child care licensing standards, including an inspection for compliance with health and safety and fire standards. Lead Agencies must conduct at least one pre-licensure inspection for compliance with health, safety, and fire standards of each child care provider and facility in the State/Territory.

##### a. Licensed CCDF center-based providers

- i. Does your pre-licensure inspection for licensed center-based providers assess compliance with health standards, safety standards, and fire standards?  
☐ Yes.  
☒ No. If no, describe: **The Department currently has a standing non-compliance for this item due to the inspection reports and rules not specifically using the terms "pediatric first aid" and "biocontaminants" as identified in the Preliminary Notice of Non-Compliance dated 3/08/2024. In order to fully implement this requirement for the referenced items, a rule change is required and will not be completed prior to October 1, 2024. As such, the Department requires additional time to meet this requirement.**
- ii. Identify the frequency of annual unannounced inspections for licensed center-based providers addressing compliance with health, safety, and fire standards:  
☒ Annually.  
☐ More than once a year. If more than once a year, describe:  
☐ Other. If other, describe:
- iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed center-based providers?  
☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.  
☒ No. If no, describe: **The Department does not use a differential monitoring approach as its licensing staff is able to monitor all licensed providers regularly and at least twice annually.**
- iv. Identify which department or agency is responsible for completing the inspections for licensed center-based providers. **The Wyoming Department of Family Services (lead agency), the Wyoming Fire Marshal's Office, Wyoming Department of Agriculture, and Local Public Health Agencies conduct pre-licensure inspections, unannounced inspections and/or renewal inspections of all licensed childcare providers in Wyoming, including both CCDF and non-CCDF.**

##### b. Licensed CCDF family child care providers

- i. Does your pre-licensure inspection for licensed family child care homes assess compliance with health standards, safety standards, and fire standards?  
☐ Yes.  
☒ No. If no, describe: **The Department currently has a standing non-compliance**

for this item due to the inspection reports and rules not specifically using the terms "pediatric first aid" and "biocontaminants" as identified in the Preliminary Notice of Non-Compliance dated 3/08/2024. In order to fully implement this requirement for the referenced items, a rule change is required and will not be completed prior to October 1, 2024. As such, the Department requires additional time to meet this requirement.

- ii. Identify the frequency of annual unannounced inspections for licensed family child care homes addressing compliance with health, safety, and fire standards:

☒ Annually.

☐ More than once a year. If more than once a year, describe:

☐ Other. If other, describe:

- iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed family child care providers?

☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.

☒ No. If no, describe: **The Department does not use a differential monitoring approach as its licensing staff is able to monitor all licensed providers regularly and at least twice annually.**

- iv. Identify which department or agency is responsible for completing the inspections for licensed family child care providers. **The Wyoming Department of Family Services (lead agency), the Wyoming Fire Marshal's Office and Local Public Health Agencies conduct pre-licensure inspections, unannounced inspections and/or renewal inspections of all licensed childcare providers in Wyoming, including both CCDF and non-CCDF.**

c. Licensed in-home CCDF child care providers

- i. Does your Lead Agency license CCDF in-home child care (care in the child's own home) providers?

☒ No.

☐ Yes. If yes, does your pre-licensure inspection for licensed in-home providers assess compliance with health, safety, and fire standards?

☐ Yes.

☐ No. If no, describe:

- ii. Identify the frequency of annual unannounced inspections for licensed in-home child care providers for compliance with health, safety, and fire standards completed:

☐ Annually.

☐ More than once a year. If more than once a year, describe:

☒ Other. If other, describe: **Wyoming does not license in home CCDF child care providers**

- iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed in-home child care providers?  
☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.  
☒ No.
- iv. Identify which department or agency is responsible for completing the inspections for licensed in-home providers. **Wyoming does not license in home CCDF child care providers.**

#### 5.5.2 Inspections for license-exempt providers

Licensing inspectors must perform at least one annual monitoring visit of each license-exempt CCDF provider for compliance with health, safety, and fire standards. Inspections for relative providers will be addressed in subsection 5.8.

Describe the policies and practices for the annual monitoring of:

- a. License-exempt CCDF center-based child care providers
  - i. Identify the frequency of inspections for compliance with health, safety, and fire standards for license-exempt center-based providers:  
☐ Annually.  
☐ More than once a year. If more than once a year, describe:  
☒ Other. If other, describe: **The Department currently has a standing non-compliance for this item due to the inspection reports and rules not specifically using the terms "pediatric first aid" as identified in the Preliminary Notice of Non-Compliance dated 3/08/2024. In order to fully implement this requirement for the referenced items, a rule change is required and will not be completed prior to October 1, 2024. As such, the Department requires additional time to meet this requirement.**
  - ii. Does the Lead Agency implement a differential monitoring approach when monitoring license-exempt center-based providers?  
☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.  
☒ No.
  - iii. Identify which department or agency is responsible for completing the inspections for license-exempt center-based CCDF providers. **The Wyoming Department of Family Services is responsible for conducting inspections of license-exempt CCDF providers.**
- b. License-exempt CCDF family child care providers
  - i. Identify the frequency of the inspections of license-exempt family child care providers to determine compliance with health, safety, and fire standards:  
☐ Annually.  
☐ More than once a year. If more than once a year, describe:

☒ Other. If other, describe: **The Department currently has a standing non-compliance for this item due to the inspection reports and rules not specifically using the terms "pediatric first aid" as identified in the Preliminary Notice of Non-Compliance dated 3/08/2024. In order to fully implement this requirement for the referenced items, a rule change is required and will not be completed prior to October 1, 2024. As such, the Department requires additional time to meet this requirement.**

- ii. Does the Lead Agency implement a differential monitoring approach when monitoring license-exempt family child care providers?

☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.

☒ No.

- iii. Identify which department or agency is responsible for completing the inspections for license-exempt family child care providers. **The Wyoming Department of Family Services is responsible for conducting inspections of license-exempt CCDF providers.**

#### 5.5.3 Inspections for CCDF license-exempt in-home child care providers

Lead Agencies may develop alternate monitoring requirements for care provided in the child's home that are appropriate to the setting. This flexibility cannot be used to bypass the monitoring requirement altogether.

- a. Describe the requirements for the annual monitoring of CCDF license-exempt in-home child care (care in the child's own home) providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, and if differential monitoring procedures are used. **The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form(Provider Registration Form) describe the annual monitoring visit requirements, which includes fire requirements: fire exits are clear and exit doors remain unlocked or have locks allowing all parties to safely exit. The Department runs a report for non-relative providers, including license-exempt in-home care, the verifiers(inspectors) contact the providers and child's parent(s), schedules a time to meet in the home or the license-exempt center, to conduct the inspection and complete the checklist, which includes provider and child file reviews and health and safety inspections. Upon completion of the inspection, the provider is provided an assessment of compliance to the requirements and a corrective action plan may be required to remedy any non-compliance issues. The verifiers enter the information into the electronic tracking system. The results will be available to parents and consumers by the deadline required in these rules. The Department currently has a standing non-compliance for this item due to the inspection reports and rules not specifically using the terms "pediatric first aid" as identified in the Preliminary Notice of Non-Compliance dated 3/08/2024. In order to fully implement this requirement for the referenced items, a rule change is required and will not be completed prior to October 1, 2024. As such, the Department requires additional time to meet this requirement.**
- b. List the entity(ies) in your State/Territory responsible for conducting inspections of license-exempt CCDF in-home child care (care in the child's own home) providers: **The**

**Wyoming Department of Family Services is responsible for conducting inspections of license-exempt CCDF providers.**

**5.5.4 Posting monitoring and inspection reports**

Lead Agencies must post monitoring and inspection reports on their consumer education website for each licensed and CCDF child care provider, except in cases where the provider is related to all the children in their care. These reports must include the results of required annual monitoring visits and visits due to major substantiated complaints about a provider's failure to comply with health and safety requirements and child care policies. A full report covers everything in the monitoring visit, including areas of compliance and non-compliance. If the Lead Agency does not produce any reports that include areas of compliance, the website must include information about all areas covered by a monitoring visit.

The reports must be in plain language or provide a plain language summary Lead Agency and be timely to ensure that the results of the reports are available and easily understood by parents when they are deciding on a child care provider. Lead Agencies must post at least 3 years of monitoring and inspection reports.

- a. Does the Lead Agency post:
  - i. ☒ Pre-licensing inspection reports for licensed programs.
  - ii. ☐ Full monitoring and inspection reports that include areas of compliance and non-compliance for all non-relative providers eligible to provide CCDF services.
  - iii. ☐ Monitoring and inspection reports that include areas of non-compliance only, with information about all areas covered by a monitoring visit posted separately on the website (e.g., a blank checklist used by monitors) for all non-relative providers eligible to provide CCDF services. If checked, provide a direct URL/website link to the website where a blank checklist is posted:
  - iv. ☒ Other. Describe: **The Lead Agency does not currently post complete results of unannounced licensing inspections, as well as monitoring reports for health and safety licensing requirements inspected by State Department of Agriculture and Fire inspectors. This practice is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department is revising its forms and processes to comply with this requirement; however, these changes will not be available for implementation until after October 1, 2024 so the Department will need additional time to meet this requirement.**
- b. Check if the monitoring and inspection reports and any related plain language summaries include:
  - i. ☒ Date of inspection.
  - ii. ☒ Health and safety violations, including those violations that resulted in fatalities or serious injuries occurring at the provider. Describe how these health and safety violations are prominently displayed: **The Department's monitoring and inspection reports identify all violations of non-compliance, including the specific Child Care Licensing Rules citation related to the non-compliance. In**

**addition, the monitoring and inspection reports indicate whether corrective action was achieved or still outstanding to remedy the non-compliance.**

- iii. ☒ Corrective action plans taken by the Lead Agency and/or child care provider.  
Describe: **The Department's monitoring and inspection reports indicate what corrective action is required and timelines for corrections.**
  - iv. ☒ A minimum of 3 years of results, where available.
  - v. If any of the components above are not selected, please explain:
  - c. Lead Agencies must post monitoring and inspection reports and/or any related summaries in a timely manner.
    - i. Provide the direct URL/website link to where the reports are posted:  
**<https://findchildcarewy.org/maps/>**
    - ii. Identify the Lead Agency's established timeline for posting monitoring reports and describe how it is timely: **The Department's Child Care Licensing case management system is programmed to automatically make the reports available on our search page after the 10 day period to request a contested case hearing has passed provided there was no request for a hearing. In those instances where a contested case hearing has been requested, the specific provider's reports will not be public until the conclusion of the contested case hearing.**
  - d. Does the Lead Agency certify that the monitoring and inspection reports or the summaries are in plain language that is understandable to parents and other consumers?  
☒ Yes.  
☐ No. If no, describe:
  - e. Does the Lead Agency certify that there is a process for correcting inaccuracies in the monitoring and inspection reports?  
☒ Yes.  
☐ No. If no, describe:
  - f. Does the Lead Agency maintain monitoring and inspection reports on the consumer education website?  
☒ Yes.  
☐ No. If no, describe:
- 5.5.5 Qualifications and training of licensing inspectors

Lead Agencies must ensure that individuals who are hired as licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care providers and facilities and have received health and safety training appropriate to the provider setting and age of the children served.

Describe how the Lead Agency ensures that licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified and have received training on health and safety requirements that are appropriate to the age of the children in care and the type of provider setting. **The Department's Child Care Licensing hiring qualifications are established by the State's lead human resource agency, Administration and Information. The licenser position requires a minimum of a Bachelor's degree or combined experience and education will be considered. Priority given to those with a Bachelor's degree in early childhood, child development, social work, or criminal investigation. The child care licensers are required to complete a minimum of 16 training hours per year, which includes the federally required health and safety training and the Early Learning Guideline and Early Learning Foundations (which meet the child development requirement). The training completed by a licenser should fall within the recommended National Standards as stated by Caring for Our Children. Through a program within the Department of Family Services, child care licensers are encouraged to take advantage of the assistance to achieve a higher education.**

#### 5.5.6 Ratio of licensing inspectors

Lead Agencies must ensure the ratio of licensing inspectors to child care providers and facilities in the State/Territory are maintained at a level sufficient to enable the Lead Agency to conduct effective inspections of child care providers and facilities on a timely basis in accordance with federal, State, and local laws.

Provide the ratio of licensing inspectors to child care providers (i.e., number of inspectors per number of child care providers) and facilities in the State/Territory and include how the ratio is sufficient to conduct effective inspections on a timely basis. **Currently, child care licensers maintain an average ratio of 1:50 and in some cases 1:60. The licenser caseloads are evaluated on a regular basis taking into account the amount of travel for the territory. Child care licensers are assigned "County" territories.**

### 5.6 Ongoing Health and Safety Training

Lead Agencies must have ongoing training requirements for all caregivers, teachers, and directors of eligible CCDF providers for health and safety standards but have discretion on frequency and training content (e.g., pediatric CPR refresher every year and recertification every 2 years). Lead Agencies have discretion on which health and safety standards are subject to ongoing training. Lead Agencies may exempt relative providers from these requirements.

#### 5.6.1 Required ongoing training of health and safety standards

Describe any required ongoing training of health and safety standards for caregivers, teachers, and directors of the following CCDF eligible provider types.

- a. Licensed child care centers: **The Department currently requires 16 hours annually of ongoing training for all providers, directors and staff. This training meets the health and safety requirements as required by CCDF Reauthorization rules.**
- b. License-exempt child care centers:  
**Wyoming requires 8 hours of annual health and safety training for license-exempt providers, not including relatives. This training meets the health and safety requirements as required by CCDF Reauthorization rules. The topics required include: Infectious Disease Control & Sanitation; Emergency Preparedness, Emergency Management and Fire Safety; Recognizing and Reporting Suspect Child Abuse and Neglect; The following components**

do not need to be completed if the program does not provide care for infants and/or transport children: Safe Sleep Practices & Shaken Baby Syndrome and Transportation Safety.

- c. Licensed family child care homes: **The Department currently requires 16 hours annually of on-going training for all providers, directors and staff. This training meets the health and safety requirements as required by CCDF Reauthorization rules.**
- d. License-exempt family child care homes: **Wyoming requires 8 hours of annual health and safety training for license-exempt providers, not including relatives. This training meets the health and safety requirements as required by CCDF Reauthorization rules. The topics required include: Infectious Disease Control & Sanitation; Emergency Preparedness, Emergency Management and Fire Safety; Recognizing and Reporting Suspect Child Abuse and Neglect; The following components do not need to be completed if the program does not provide care for infants and/or transport children: Safe Sleep Practices & Shaken Baby Syndrome and Transportation Safety.**
- e. Regulated or registered in-home child care: **Wyoming requires 8 hours of annual health and safety training for license-exempt providers, not including relatives. This training meets the health and safety requirements as required by CCDF Reauthorization rules. The topics required include: Infectious Disease Control & Sanitation; Emergency Preparedness, Emergency Management and Fire Safety; Recognizing and Reporting Suspect Child Abuse and Neglect; The following components do not need to be completed if the program does not provide care for infants and/or transport children: Safe Sleep Practices & Shaken Baby Syndrome and Transportation Safety.**
- f. Non-regulated or registered in-home child care: **Non-regulated or registered in-home child care is not monitored by the Department as it is exempt under Wyoming Statute 14-4-101 through 14-4-111.**

## 5.7 Comprehensive Background Checks

Lead Agencies must conduct comprehensive background checks for all child care staff members (including prospective staff members) of all child care providers that are (1) licensed, regulated, or registered under State/Territory law, regardless of whether they receive CCDF funds; or (2) all other child care providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible child care providers). Family child care home providers must also submit background check requests for all household members age 18 or older.

A comprehensive background check must include: three in-state checks, two national checks, and three interstate checks if the individual resided in another State or Territory in the preceding 5 years. The background check components must be completed at least once every five years.

All child care staff members must receive a qualifying result from either the FBI criminal background check or an in-state fingerprint criminal history check before working (under supervision) with or near children. Lead Agencies must apply a CCDF-specific list of disqualifying crimes for child care providers serving families participating in CCDF.

These background check requirements do not apply to individuals who are related to all children for whom child care services are provided. Exemptions for relative providers will be addressed in subsection 5.8.

#### 5.7.1 In-state criminal history check with fingerprints

- a. Does the Lead Agency conduct in-state criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct in-state criminal background checks with fingerprints.
- b. Does the Lead Agency conduct in-state criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers) other than relative providers?
- ☒ Yes.
- ☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct in-state criminal background checks with fingerprints.
- c. Does the Lead Agency conduct the in-state criminal background check with fingerprints for all individuals age 18 or older who reside in a family child care home?
- ☒ Yes.
- ☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an in-state criminal background check with fingerprints.

#### 5.7.2 National Federal Bureau of Investigation (FBI) criminal history check with fingerprints

- a. Does the Lead Agency conduct FBI criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct FBI criminal background checks with fingerprints.
- b. Does the Lead Agency conduct FBI criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?
- ☒ Yes.
- ☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct FBI criminal background checks.
- c. Does the Lead Agency conduct the FBI criminal background check with fingerprints for all individuals age 18 or older who reside in a family child care home?
- ☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an FBI criminal background check with fingerprints.

5.7.3 National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) name-based check

The majority of NCIC NSOR records are fingerprint records and are automatically included in the FBI fingerprint criminal background check. But a small percentage of NCIC NSOR records are only name-based records and must be accessed through the required name-based search of the NCIC NSOR.

- a. Does the Lead Agency conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct NCIC NSOR name-based background checks.
- b. Does the Lead Agency conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?
- ☒ Yes.
- ☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct NCIC NSOR name-based background checks.
- c. Does the Lead Agency conduct the NCIC NSOR name-based background check for all individuals age 18 or older who reside in a family child care home?
- ☒ Yes.
- ☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive a NCIC NSOR name-based background check.

5.7.4 In-state sex offender registry (SOR) check

- a. Does the Lead Agency conduct in-state SOR checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct in-state SOR background checks.
- b. Does the Lead Agency conduct in-state SOR background checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?
- ☒ Yes.
- ☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct in-state SOR background checks.

- c. Does the Lead Agency conduct the in-state SOR background check for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an in-state SOR background check.

#### 5.7.5 In-state child abuse and neglect (CAN) registry check

- a. Does the Lead Agency conduct CAN registry checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct CAN registry checks.

- b. Does the Lead Agency conduct CAN registry checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct CAN registry checks.

- c. Does the Lead Agency conduct the CAN registry check for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive a CAN registry check.

#### 5.7.6 Interstate criminal history check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☐ Yes.

☒ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate criminal history background checks. **The Department currently has an outstanding non-compliance for Out-of-State Background Checks for all licensed/regulated/registered child care providers pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. The Department does not currently perform the out-of-state criminal history checks for any child care providers thus this is the basis for the non-compliance. The Department is finalizing its processes and**

procedures for completing these out-of-state criminal history checks for all child care providers; however, the Department needs additional time as this requirement will not be met by October 1, 2024.

- b. Does the Lead Agency conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☐ Yes.

☒ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate criminal history background checks. **The Department currently has an outstanding non-compliance for Out-of-State Background Checks for staff of all child care providers pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. The Department does not currently perform the out-of-state criminal history checks for any child care providers thus this is the basis for the non-compliance. The Department is finalizing its processes and procedures for completing these out-of-state criminal history checks for all child care providers; however, the Department needs additional time as this requirement will not be met by October 1, 2024.**

- c. Does the Lead Agency conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years.

☐ Yes.

☒ No. If no, describe why individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive an interstate criminal history background check. **The Department currently has an outstanding non-compliance for Out-of-State Background Checks for all child care providers including residents of family child care homes pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. The Department does not currently perform the out-of-state criminal history checks for any child care providers thus this is the basis for the non-compliance. The Department is finalizing its processes and procedures for completing these out-of-state criminal history checks for all child care providers; however, the Department needs additional time as this requirement will not be met by October 1, 2024.**

#### 5.7.7 Interstate Sex Offender Registry (SOR) check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate SOR checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate SOR checks.

- b. Does the Lead Agency conduct interstate SOR checks for any staff member (or prospective

staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate SOR checks.

- c. Does the Lead Agency conduct the interstate SOR checks for all individuals age 18 or older who resided in other state(s) in the past 5 years who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive an interstate SOR check.

#### 5.7.8 Interstate child abuse and neglect (CAN) registry check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate CAN registry checks for any staff member (or prospective staff member) that resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate CAN registry checks.

- b. Does the Lead Agency conduct interstate CAN registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate CAN registry checks.

- c. Does the Lead Agency conduct the interstate CAN registry checks for all individuals age 18 or older who resided in other state(s) in the past 5 years who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive interstate CAN registry checks.

#### 5.7.9 Disqualifications for child care employment

The Lead Agency must prohibit employment of individuals with child care providers receiving CCDF subsidy payment if they meet any of the following disqualifying criteria:

- Refused to consent to a background check.

- Knowingly made materially false statements in connection with the background check.
  - Are registered, or are required to be registered, on the State/Territory sex offender registry or repository or the National Sex Offender Registry.
  - Have been convicted of a felony consisting of murder, child abuse or neglect, crimes against children (including child pornography), spousal abuse, crimes involving rape or sexual assault, kidnapping, arson, physical assault, or battery.
  - Have a violent misdemeanor committed as an adult against a child, including the following crimes: child abuse, child endangerment, sexual assault, or any misdemeanor involving child pornography.
  - Convicted of a felony consisting of a drug-related offense committed during the preceding 5 years.
- a. Does the Lead Agency disqualify the employment of child care staff members (including prospective staff members) by child care providers receiving CCDF subsidy payment for CCDF-identified disqualifying criteria?
- ☒ Yes.
- ☐ No. If no, describe the disqualifying criteria:
- b. Does the Lead Agency use the same criteria for licensed, regulated, and registered child care providers regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any disqualifying criteria used for licensed, regulated, and registered child care providers:
- c. How does the Lead Agency use results from the in-state child abuse and neglect registry check?
- ☐ Does not use them to disqualify employment.
- ☒ Uses them to disqualify employment. If checked, describe: **The Wyoming Child Care Licensing Rules state: Before the owner, director, their staff, household member, employee, substitute or volunteer assume responsibility for children, provide direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center, the following shall be on file: A Central Registry or child abuse/neglect check which does not reveal any disqualifying information shall be completed in Wyoming and in all states lived in for the past five (5) years for staff and all adult household members including any adult who intends to move into the home;**
- d. How does the Lead Agency use results from the interstate child abuse and neglect registry check?
- ☐ Does not use them to disqualify employment.
- ☒ Uses them to disqualify employment. If checked, describe: **The Wyoming Child Care Licensing Rules state: Before the owner, director, their staff, household member, employee, substitute or volunteer assume responsibility for children, provide direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center, the following shall be on file: A Central Registry or child abuse/neglect check**

which does not reveal any disqualifying information shall be completed in Wyoming and in all states lived in for the past five (5) years for staff and all adult household members including any adult who intends to move into the home;

#### 5.7.10 Privacy

Lead Agencies must ensure the privacy of a prospective staff member by notifying child care providers of the individual's eligibility or ineligibility for child care employment based on the results of the comprehensive background check without revealing any documentation of criminal history or disqualifying crimes or other related information regarding the individual.

Does the Lead Agency certify they ensure the privacy of child care staff members (including prospective child care staff member) when providing the results of the comprehensive background check?

☒ Yes.

☐ No. If no, describe the current process of notification:

#### 5.7.11 Appeals processes for background checks

Lead Agencies must provide for a process that allows child care provider staff members (and prospective staff members) to appeal the results of a background check to challenge the accuracy or completeness of the information contained in the individual's background check report.

Does the appeals process:

- i. Provide the affected individual with information related to each disqualifying crime in a report, along with information/notice on the opportunity to appeal.

☒ Yes.

☐ No. Describe:

- ii. Provide the affected individual with clear instructions about how to complete the appeals process for each background check component if they wish to challenge the accuracy or completeness of the information contained in such individual's background report.

☒ Yes.

☐ No. Describe:

- iii. Ensure the Lead Agency attempts to verify the accuracy of the information challenged by the individual, including making an effort to locate any missing disposition information related to the disqualifying crime.

☒ Yes.

☐ No. Describe:

- iv. Get completed in a timely manner.

☒ Yes.

☐ No. Describe:

- v. Ensure the affected individual receives written notice of the decision. In the case of a negative determination, the decision must indicate (1) the Lead Agency's efforts to verify the accuracy of information challenged by the individual, (2) any additional appeals rights available to the individual, and (3) information on how the individual can correct the federal or State records at issue in the case.

☒ Yes.

☐ No. Describe:

- vi. Facilitate coordination between the Lead Agency and other agencies in charge of background check information and results (such as the Child Welfare office and the State Identification Bureau), to ensure the appeals process is conducted in accordance with the Act.

☒ Yes.

☐ No. Describe:

#### 5.7.12 Provisional hiring of prospective staff members

Lead Agencies must at least complete and receive a qualifying result for either the FBI criminal background check or a fingerprint-based in-state criminal background check where the individual resides before prospective staff members may provide services or be in the vicinity of children.

Until all the background check components have been completed, the prospective staff member must be supervised at all times by someone who has already received a qualifying result on a background check within the past five years.

Check all background checks for which the Lead Agency requires a qualifying result before a prospective child care staff member begins work with children.

- a. FBI criminal background check.

☒ Yes.

☐ No. If no, describe:

- b. In-state criminal background check with fingerprints.

☒ Yes.

☐ No. If no, describe:

- c. In-state Sex Offender Registry.

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- d. In-state child abuse and neglect registry.

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state**

**fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- e. Name-based national Sex Offender Registry (NCIC NSOR).

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- f. Interstate criminal background check, as applicable.

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- g. Interstate Sex Offender Registry check, as applicable.

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- h. Interstate child abuse and neglect registry check, as applicable.

☐ Yes.

☒ No. If no, describe: **A prospective staff member may begin working with children only after they receive qualifying results for either the FBI fingerprint check or the in-state fingerprint check and are supervised by a staff member with a complete and qualifying background check.**

- i. Does the Lead Agency require provisional hires to be supervised by a staff member who received a qualifying result on the comprehensive background check while awaiting results from the provisional hire's full comprehensive background check?

☒ Yes.

☐ No. If no, describe:

#### 5.7.13 Completing the criminal background check within a 45-day timeframe

The Lead Agency must carry out a request from a child care provider for a criminal background check as expeditiously as possible, and no more than 45 days after the date on which the provider submitted the request

- a. Does the Lead Agency ensure background checks are completed within 45 days (after the date on which the provider submits the request)?

☒ Yes.

☐ No. If no, describe the timeline for completion for categories of providers, including which background check components take more than 45 days.

- b. Does the Lead Agency ensure child care staff receive a comprehensive background check when they work in your State but reside in a different State?

☒ Yes.

☐ No. If no, describe the current policy:

#### 5.7.14 Responses to interstate background check requests

Lead Agencies must respond as expeditiously as possible to requests for interstate background checks from other States/Territories/Tribes in order to meet the 45-day timeframe.

- a. Does your State participate in the National Crime Prevention and Privacy Compact or National Fingerprint File programs?

☒ Yes.

☐ No.

- b. Describe how the State/Territory responds to interstate criminal history, Sex Offender Registry, and Child Abuse and Neglect Registry background check requests from another state. **The Department processes child abuse and neglect registry and sex offender registry requests and processes for all other states.**

- c. Does your State/Territory have a law or policy that prevents a response to CCDF interstate background check requests from other States/Territories/Tribes?

☐ Yes. If yes, describe the current policy.

☒ No.

#### 5.7.15 Consumer education website links to interstate background check processes

Lead Agencies must include on their consumer education website and the website of local Lead Agencies if the CCDF program is county-run, the policies and procedures related to comprehensive background checks. This includes the process by which a child care provider or other State or Territory may submit a background check request.

- a. Provide the direct URL/website link that contains instructions on how child care providers and other States and Territories should initiate background check requests for prospective and current child care staff members: **<https://dfs.wyo.gov/providers/child-care-support/>**

Check to certify that the required elements are included on the Lead Agency's consumer and provider education website for each interstate background check component.

- b. Interstate criminal background check:

i. ☐ Agency name

ii. ☐ Address

- iii. ☐ Phone number
- iv. ☐ Email
- v. ☐ Website
- vi. ☐ Instructions
- vii. ☐ Forms
- viii. ☐ Fees
- ix. ☒ Is the State a National Fingerprint File (NFF) State?
- x. ☒ Is the State a National Crime Prevention and Privacy Compact State?
- xi. If not all boxes above are checked, describe: **The Department currently has an outstanding non-compliance for Out-of-State Background Checks for all child care providers pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. The Department does not currently perform the out-of-state criminal history checks for any child care providers thus this is the basis for the non-compliance. The Department is finalizing its processes and procedures for completing these out-of-state criminal history checks for all child care providers; however, the Department needs additional time as this requirement will not be met by October 1, 2024.**

c. Interstate sex offender registry (SOR) check:

- i. ☐ Agency name
- ii. ☐ Address
- iii. ☐ Phone number
- iv. ☐ Email
- v. ☐ Website
- vi. ☐ Instructions
- vii. ☐ Forms
- viii. ☐ Fees
- ix. If not all boxes above are checked, describe: **The Department conducts interstate sex offender registry checks on behalf of a child care provider and prospective staff. This interstate sex offender registry check is name based and completed as part of the interstate abuse/neglect registry check process.**

d. Interstate child abuse and neglect (CAN) registry check:

- i. ☒ Agency name
- ii. ☒ Is the CAN check conducted through a county administered registry or centralized registry?
- iii. ☒ Address
- iv. ☒ Phone number
- v. ☒ Email

- vi. ☒ Website
- vii. ☒ Instructions
- viii. ☒ Forms
- ix. ☒ Fees
- x. If not all boxes above are checked, describe:

#### 5.7.16 Background check fees

The Lead Agency must ensure that fees charged for completing the background checks do not exceed the actual cost of processing and administration.

Does the Lead Agency certify that background check fees do not exceed the actual cost of processing and administering the background checks?

☒ Yes.

☐ No. If no, describe what is currently in place and what elements still need to be implemented:

#### 5.7.17 Renewal of the comprehensive background check

Does the Lead Agency conduct the background check at least every 5 years for all components?

☐ Yes.

☒ No. If no, what is the frequency for renewing each component? **The Department conducts a background check on all components of the comprehensive background check with the exception of the out-of-state criminal history checks every 5 years. The Department currently has an outstanding non-compliance for Out-of-State Background Checks for staff of all child care providers pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. The Department does not currently perform the out-of-state criminal history checks for any child care providers thus this is the basis for the non-compliance. The Department is finalizing its processes and procedures for completing these out-of-state criminal history checks for all child care providers; however, the Department needs additional time as this requirement will not be met by October 1, 2024.**

### 5.8 Exemptions for Relative Providers

Lead Agencies may exempt relatives (defined in CCDF regulations as grandparents, great-grandparents, siblings if living in a separate residence, aunts, and uncles) from certain health and safety requirements. This exception applies only if the individual cares only for relative children.

#### 5.8.1 Exemptions for relative providers

Does the Lead Agency exempt any federally defined relative providers from licensing requirements, the CCDF health and safety standards, preservice/orientation training, ongoing training, inspections, or background checks?

☐ No.

☒ Yes. If yes, which type of relatives do you exempt, and from what requirements (licensing requirements, CCDF health and safety standards, preservice/orientation

training, ongoing training, inspections, and/or background checks) do you exempt them?  
**Wyoming exempts relatives caring for children inside the child's home and relatives caring for children outside the child's home. These relative providers are only exempt from licensing requirements and annual inspections.**

## 6 Support for a Skilled, Qualified, and Compensated Child Care Workforce

A skilled child care workforce with adequate wages and benefits underpins a stable high-quality child care system that is accessible and reliable for working parents and that meets their needs and promotes equal access. Positive interactions between children and caregivers provide the cornerstone of quality child care experiences. Responsive caregiving and rich interactions support healthy socio-emotional, cognitive, and physical development in children. Strategies that successfully support the child care workforce address key challenges, including low wages, poor benefits, and difficult job conditions. Lead Agencies can help mitigate some of these challenges through various CCDF policies, including through ongoing professional development and supports for all provider types and embedded in the payment policies and practices covered in Section 4. Lead Agencies must have a framework for training, professional development, and post-secondary education. They must also incorporate health and safety training into their professional development. Lead Agencies should also implement policies that focus on improving wages and access to benefits for the child care workforce. When implemented as a cohesive approach, the initiatives support the recruitment and retention of a qualified and effective child care workforce, and improve opportunities for caregivers, teachers, and directors to advance on their progression of training, professional development, and postsecondary education.

This section addresses Lead Agency efforts to support the child care workforce, the components and implementation of the professional development framework, and early learning and developmental guidelines.

### 6.1 Supporting the Child Care Workforce

Lead Agencies have broad flexibility to implement policies and practices to support the child care workforce.

#### 6.1.1 Strategies to improve recruitment, retention, compensation, and well-being

- a. Identify any Lead Agency activities related to strengthening workforce recruitment and retention of child care providers. Check all that apply:
  - i. ☐ Providing program-level grants to support investments in staff compensation.
  - ii. ☐ Providing bonuses or stipends paid directly to staff, like sign-on or retention bonuses.
  - iii. ☐ Connecting family child care providers and center-based child care staff to health insurance or supporting premiums in the Marketplace.
  - iv. ☐ Subsidizing family child care provider and center-based child care staff retirement benefits.
  - v. ☐ Providing paid sick, personal, and parental leave for family child care providers and center-based child care staff.
  - vi. ☐ Providing student loan debt relief or loan repayment for family child care

providers and center-based child care staff.

- vii. ☐ Providing scholarships or tuition support for center-based child care staff and family child care providers.
- viii. ☒ Other. Describe: **The Department is working with the State Capacity Building Center through an Impact Project Grant to develop a Provider Toolkit to assist interested persons in becoming a licensed child care provider in Wyoming and to also assist those already licensed with maintaining licensure. The Toolkit once completed will be available in both English and Spanish. Additionally, the Department is working in coordination with the Wyoming Department of Workforce Services for referrals of individuals seeking their employment services who may be interested in working in child care or becoming a licensed child care provider. The Department's Child Care Resource and Referral Program Manager or Child Care Technical Assistance Coach then works with these individuals to complete the necessary background checks and credentialing requirements so that they are immediately available to work unsupervised upon hiring by a licensed or registered child care provider or facility.**

- b. Describe any Lead Agency ongoing efforts and future plans to assess and improve the compensation of the child care workforce in the State or Territory, including increasing wages, bonuses, and stipends. **The Department is currently in the process of gathering proposed initiatives to improve the compensation of the child care workforce in Wyoming.**
- c. Describe any Lead Agency ongoing efforts and future plans to expand access to benefits, including health insurance, paid sick, personal, and parental leave, and retirement benefits. **The Department is currently in the process of gathering proposed initiatives to improve the compensation of the child care workforce in Wyoming.**
- d. Describe any Lead Agency ongoing efforts and future plans to support the mental health and well-being of the child care workforce. **The Wyoming Early Childhood Behavioral Consultants (WYECBC) are working to provide behavioral resources for early childhood professionals. WYECBC consultants work with educators, children and families to enhance children's early childhood years. The WYECBC provides specific staff training and teacher support in mental health related concerns. Early Childhood Behavioral Consultants use best practices to work alongside early childhood professionals in the learning/care environment, with respect to the early childhood professional's schedule and experience and knowledge. The WYECBC consultants share strategies, look at and model evidence-based practices, and help implement individual plans for care for your most challenging children. In addition, WYECBC works with early childhood professionals to address and hopefully prevent behaviors from children going forward that are taxing on teaching staff and interfering with classroom guidance and instruction.**
- e. Describe any other strategies the Lead Agency is developing and/or implementing to support providers' recruitment and retention of the child care workforce.

#### 6.1.2 Strategies to support provider business practices

- a. Describe other strategies that the Lead Agency is developing and/or implementing to strengthen child care providers' business management and administrative practices. **The Department is not currently developing or implementing strategies to strengthen child care providers' business management and administrative practices.**

- b. Check the topics addressed in the Lead Agency’s strategies for strengthening child care providers’ administrative business practices. Check all that apply:
- i. ☐ Fiscal management.
  - ii. ☒ Budgeting.
  - iii. ☐ Recordkeeping.
  - iv. ☒ Hiring, developing, and retaining qualified staff.
  - v. ☐ Risk management.
  - vi. ☐ Community relationships.
  - vii. ☐ Marketing and public relations.
  - viii. ☐ Parent-provider communications.
  - ix. ☐ Use of technology in business administration.
  - x. ☐ Compliance with employment and labor laws.
  - xi. ☐ Other. Describe any other efforts to strengthen providers’ administrative business:

#### 6.1.3 Strategies to support provider participation

Lead Agencies must facilitate participation of child care providers and staff with limited English proficiency and disabilities in the child care subsidy system. Describe how the Lead Agency will facilitate this participation, including engagement with providers to identify barriers and specific strategies used to support their participation:

- a. Providers and staff with limited English proficiency: **The Department is aware that having the required documents, forms, and licensing rules in the provider’s preferred language could be a barrier to becoming and/or staying licensed. Currently the Department’s staff works with translators, translator hotline, and the Latino Resource Center to assist with the recruitment of providers, registration of providers and technical assistance to providers. The Department is also working with the State Capacity Building Center through an Impact Project Grant to develop a Provider Toolkit to assist interested persons in becoming a licensed child care provider in Wyoming and to also assist those already licensed with maintaining licensure. The Toolkit once completed will be available in both English and Spanish. Additionally, the Department is currently reviewing all of its licensing rules and regulations and will have finalized rules available in English as well as Spanish. These rules and regulations are also available online and can be translated into the provider’s preferred language through the selected browser options.**
- b. Providers and staff who have disabilities: **The Department’s rules, regulations are available online to the public and can be accessed through assistive technology such as e-readers and enlarged print. The required documents, forms and licensing rules could also be provided in large print format if requested. Additionally, Department staff can work with TDD and other available interpreter services to better assist providers with hearing and/or visual limitations.**

## 6.2 Professional Development Framework

A Lead Agency must have a professional development framework for training, professional development, and post-secondary education for caregivers, teachers, and directors in child care programs that serve children of all ages. The framework must include these components:

(1) professional standards and competencies, (2) career pathways, (3) advisory structures, (4) articulation, (5) workforce information, and (6) financing. CCDF provides Lead Agencies flexibility on the strategies, breadth, and depth of the framework. The professional development framework must be developed in consultation with the State Advisory Council on Early Childhood Education and Care or a similar coordinating body.

#### 6.2.1 Updates and consultation

- a. Did the Lead Agency make any updates to the professional development framework since the FFY 2022-2024 CCDF Plan was submitted?

☐ Yes. If yes, describe the elements of the framework that were updated and describe if and how the State Advisory Council on Early Childhood Education and Care (if applicable) or similar coordinating body was consulted:

☒ No.

- b. Did the Lead Agency consult with other key groups in the development of their professional development framework?

☒ Yes. If yes, identify the other key groups: **Wyoming Early Childhood State Advisory Council (WY ESCAC), University of Wyoming Professional Learning Collaborative, Child Care Providers, WY Kids First**

☐ No.

#### 6.2.2 Description of the professional development framework

- a. Describe how the Lead Agency's framework for training and professional development addresses the following required elements:

- i. Professional standards and competencies. For example, Lead Agencies can include information about which roles in early childhood education are included (such as teachers, directors, infant and toddler specialists, mental health consultants, coaches, licensors, QIS assessors, family service workers, home visitors). **The Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires professionals to take specific training for pre-service orientation and ongoing training. Federal and state requirements determine ongoing training. Providers are allowed to determine their own training plan. Specialized professional development opportunities are identified specific to the developmental stage and age of the children in care recognizing that children have distinct needs in behavioral supports, mental, physical, social and academic development. Providers, directors, and staff invest time and funding into completing training requirements which helps stabilize the workforce and provides guidance to enhance quality. The Wyoming Early Childhood Professional Learning Collaborative (PLC) provides professional development opportunities to the early childhood workforce. All the work of the PLC aligns with the National Association for the Education of Young Children (NAEYC) teacher preparation standards and competencies. In addition, the work**

of the PLC also aligns with the Council of Exceptional Children's Practice-Based Standards for Early Interventionists/Early Childhood Special Educators.

- ii. Career pathways. For example, Lead Agencies can include information about professional development registries, career ladders, and levels. **Wyoming has a revised Career Lattice that encompasses changes to professional development. The Career Lattice has various levels to help providers move from one level to the next. As providers move up the Career Lattice they acquire more flexibility and discretion in the ways they can receive training credit. The Department and early childhood partners anticipate that flexibility will incentivize movement up the Career Lattice. Wyoming has communicated this revised Career Lattice with both providers and families alike. The Career Lattice allows providers on higher levels to acquire training credit beyond the face-to-face, online or book trainings. Credit can also be obtained by providing documentation of implementing ideas into their program, writing research articles and advocacy work. Through the Preschool Development Grant (PDG), the State will be consulting with NAEYC to align the Career Lattice with the Power to Professionals levels.**
- iii. Advisory structure. For example, Lead Agencies can include information about how the professional development advisory structure interacts with the State Advisory Council on Early Childhood Education and Care. **The Department coordinates with the Wyoming Early Childhood State Advisory Council in the development, revision, and implementation of the professional development system or framework**
- iv. Articulation. For example, Lead Agencies can include information about articulation agreements, and collaborative agreements that support progress in degree acquisition. **The University of Wyoming and the community colleges have degree programs in place and credit is shared between institutions. In addition, they offer some professional development outside of getting a college credit. Sheridan College, Casper College hosts professional development workshops. There is ongoing work to identify how college credit might be offered for the professional development workshops hosted by community colleges and other approved STARS trainers.**
- v. Workforce information. For example, Lead Agencies can include information about workforce demographics, educator well-being, retention/turnover surveys, actual wage scales, and/or access to benefits. **Wyoming has 3 integrated systems in place (STARS training registry, Child Care case management and CCR&R) which collect workforce information on providers, directors and staff. Over the course of the next 3 years, the Department in Collaboration with the Wyoming Early Childhood State Advisory Council will begin to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality.**
- vi. Financing. For example, Lead Agencies can include information about strategies including scholarships, apprenticeships, wage enhancements, etc. **WY Quality Counts! provides scholarships and grants to providers to offset the cost of training**

and/or education travel. In addition, the Department is exploring enhancement of professional development opportunities for providers which may include access to national Professional Development Systems.

- b. Does the Lead Agency use additional elements?

☒ Yes.

If yes, describe the element(s). Check all that apply.

- i. ☒ Continuing education unit trainings and credit-bearing professional development. Describe: **Through the PDG, the State will continue to consult with NAEYC to align the Career Lattice with the Power to Professionals levels. In addition, the University of Wyoming will continue to consult with NAEYC to develop new credentials which will lead to the new early childhood bachelor's degree. This will include development of professional learning opportunities that align to both efforts.**
- ii. ☒ Engagement of training and professional development providers, including higher education, in aligning training and educational opportunities with the Lead Agency's framework. Describe: **Through the PDG, the State will continue to consult with NAEYC to align the Career Lattice with the Power to Professionals levels. In addition, the University of Wyoming will continue to consult with NAEYC to develop new credentials which will lead to the new early childhood bachelor's degree. This will include development of professional learning opportunities that align to both efforts.**
- iii. ☐ Other. Describe:
- ☐ No.

#### 6.2.3 Impact of the Professional Development Framework

Describe how the framework improves the quality, stability, and retention of caregivers, teachers, and directors and identify what data are available to assess the impact.

- a. Professional standards and competencies. For example, do the professional standards and competencies reflect the range of providers across role, child care setting, or age of children served? **The Department's Rules for Certification of Family Child Care Home(FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires professionals to take specific training for pre-service orientation and ongoing training. Federal and state requirements determine ongoing training. Providers are allowed to determine their own training plan. Specialized professional development opportunities are identified specific to the developmental stage and age of the children in care recognizing that children have distinct needs in behavioral supports, mental, physical, social and academic development. Providers, directors, and staff invest time and funding into completing training requirements which helps stabilize the workforce and provides guidance to enhance quality. The Wyoming Early Childhood Professional Learning Collaborative (PLC) provides professional development opportunities to the early childhood workforce. All the work of the PLC aligns with the National Association for the Education of Young Children (NAEYC) teacher preparation standards and competencies.**

In addition, the work of the PLC also aligns with the Council of Exceptional Children's Practice-Based Standards for Early Interventionists/Early Childhood Special Educators.

- b. Career pathways. For example, has the Lead Agency developed a wage ladder that provides progressively higher wages as early educators gain more experience and credentials? What types of child care settings and staff roles are addressed in career pathways, such as licensed centers and family child care homes? **Wyoming has a revised Career Lattice that encompasses changes to professional development. The Career Lattice has various levels to help providers in both licensed centers and family child care homes, move from one level to the next. As providers move up the Career Lattice they acquire more flexibility and discretion in the ways they can receive training credit. The Department and early childhood partners anticipate that flexibility will incentivize movement up the Career Lattice. Wyoming has communicated this revised Career Lattice with both providers and families alike. The Career Lattice allows providers on higher levels to acquire training credit beyond the face-to-face, online or book trainings. Credit can also be obtained by providing documentation of implementing ideas into their program, writing research articles and advocacy work. Through the Preschool Development Grant (PDG), the State will be consulting with NAEYC to align the Career Lattice with the Power to Professionals levels.**
- c. Advisory structure. For example, has the advisory structure identified goals for child care workforce compensation, including types of staff and target compensation levels? Does the Lead Agency have a Preschool Development Birth-to-Five grant and is part of its scope of work child care compensation activities? Are they represented in the advisory structure? **The Department coordinates with the Wyoming Early Childhood State Advisory Council (WYEC SAC) in the development, revision, and implementation of the professional development system or framework. The WYEC SAC has not focused on workforce compensation.**
- d. Articulation. For example, how does the advisory structure include training and professional development for providers, including higher education, to assist in aligning training and education opportunities? **The University of Wyoming and the community colleges have degree programs in place and credit is shared between institutions. In addition, they offer some professional development outside of getting a college credit. Sheridan College, Casper College hosts professional development workshops. There is ongoing work to identify how college credit might be offered for the professional development workshops hosted by community colleges and other approved STARS trainers.**
- e. Workforce information. For example, does the Lead Agency have data on the existing wages and benefits available to the child care workforce? Do any partners such as the Quality Improvement System, child care resource and referral agencies, Bureau of Labor Statistics, and universities and research organizations collect compensation and benefits data? Does the Lead Agency monitor child care workforce wages and access to benefits through ongoing data collection and evaluation? Can the data identify any disparities in the existing compensation and benefits (by geography, role, child care setting, race,

ethnicity, gender, or age of children served)? **Wyoming has 3 integrated systems in place (STARS training registry, Child Care case management and CCR&R) which collect workforce information on providers, directors and staff, including compensation and benefits data (however, it is not a required element in the STARS). Over the course of the next 3 years, the Department will continue to collaborate with the Wyoming Early Childhood State Advisory Council (WYEC SAC) to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality. In addition, The Department is developing a comprehensive integrated early childhood system (Early Childhood Access, Resource and Eligibility System (ECARES). The ECARES will include a child care provider Learning Management System (LMS) and professional development registry which will provide a platform for collection of more specific workforce information including compensation and benefits information.**

- f. **Financing. For example, has the Lead Agency set a minimum or living wage as a floor for all child care staff? Do Lead Agency-provider subsidy agreements contain requirements for staff compensation levels? Do Lead Agencies provide program-level compensation grants to support staff base salaries and benefits? Does the Lead Agency administer bonuses or stipends directly to workers? WY Quality Counts! provides scholarships and grants to providers to offset the cost of training and/or education travel. In addition, the Department is exploring enhancement of professional development opportunities for providers which may include access to national Professional Development Systems. Wyoming has not set a minimum or living wage for child care staff. Wyoming did offer grants for bonuses or stipends for child care staff with ARP Stabilization funds, but has not been able to sustain the efforts.**

## 6.3 Ongoing Training and Professional Development

### 6.3.1 Required hours of ongoing training

Provide the number of hours of ongoing training required annually for CCDF-eligible providers in the following settings:

- a. **Licensed child care centers: 32 hours biannually. The 32 training credits requirement is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department is revising its rules to convert this to a 16 hour per year annual requirement; however, these rules will not be in effect until after October 1, 2024 so the Department will need additional time to meet this requirement.**
- b. **License-exempt child care centers: 8 hours per year. This requirements is clearly identified in the Wyoming Purchase of Service Rules for license-exempt providers, Section 14(a)vi) which states (a) the selected child care provider shall: (vi) complete a pre-service health and safety orientation training and eight (8) credits of health and safety training annually thereafter.**
- c. **Licensed family child care homes: 32 hours biannually. The 32 training credits**

requirement is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department is revising its rules to convert this to a 16 hour per year annual requirement; however, these rules will not be in effect until after October 1, 2024 so the Department will need additional time to meet this requirement.

- d. License-exempt family child care homes: **8 hours per year.** This requirements is clearly identified in the Wyoming Purchase of Service Rules for license-exempt providers, Section 14(a)vi) which states (a) the selected child care provider shall: (vi) complete a pre-service health and safety orientation training and eight (8) credits of health and safety training annually thereafter.
- e. Regulated or registered in-home child care: **8 hours per year.** This requirements is clearly identified in the Wyoming Purchase of Service Rules for license-exempt providers, Section 14(a)vi) which states (a) the selected child care provider shall: (vi) complete a pre-service health and safety orientation training and eight (8) credits of health and safety training annually thereafter.
- f. Non-regulated or registered in-home child care: **N/A**

#### 6.3.2 Accessibility of professional development for Tribal organizations

Describe how the Lead Agency's training and professional development are accessible to providers supported through Indian tribes or Tribal organizations receiving CCDF funds (as applicable). **All trainings that are state approved are placed on a training calendar accessible to all providers across the state, including providers from both Tribes. Surveys are conducted to analyze the training needs of providers across the state, including providers from both Tribes. Once specific trainings are identified to meet the needs, the Department works with STARS and other stakeholders to target trainings in areas across the state. Additionally, there are trainings offered around the state on a regular basis to meet required training subjects provided by state and local entities. There are approved web based training available on a regular basis. The training and professional development requirements are applicable to all providers across the state. The Department works with STARS and other stakeholders to identify specialized training opportunities addressing children with disabilities, Native Americans, and English language learners. In addition, the Department and other stakeholders (STARS, Parents As Teachers, Uplift, University of Wyoming, PIC/PEN, etc.) provide specialized training focusing on children of different age groups, including infant/toddler training. Training opportunities include face-to-face training as well as online training and books to ensure that the rural areas of Wyoming are covered.**

#### 6.3.3 Professional development appropriate for the children, families, and child care providers

Describe how the Lead Agency's training and professional development requirements reflect the range of children, families, and child care providers participating in CCDF. To the extent practicable, how does professional development include specialized training or credentials for providers who care for infants or school-age children; individuals with limited English proficiency; children who are bilingual; children with developmental delays or disabilities; and/or Native Americans, including Indians, as the term is defined in Section 900.6 in subpart B of the Indian

Self-Determination and Education Assistance Act (including Alaska Natives) and Native Hawaiians? **The Wyoming Statewide Training and Resource System (STARS) contains courses related to all of the identified groups of individuals; however, there is currently only one (1) approved course for Native Americans, including Indians. With the exception of the required health and safety training, providers develop training plans or identify needed training to meet their needs and the needs of the children they serve (elective hours for training). Specialized professional development opportunities are identified specific to the developmental stage and age of the children in care recognizing that children have distinct needs in behavioral supports, mental, physical, social and academic development, including infants, school age children and children with developmental delays or disabilities. As part of the Department’s development of its modernized ECARES system, the department is undergoing an extensive review of all currently approved courses to transition to the updated learning management system module as well as identifying courses to add that meet the remaining requirements for serving children with developmental delays or disabilities, children who are Native Americans, including Indians, as the term is defined in Section 900.6 in subpart B of the Indian Self-Determination and Education Assistance Act (including Alaska Natives) and Native Hawaiians. The Department will also be looking to include additional trainings related to the other identified categories of children and families.**

#### 6.3.4 Child developmental screening

Describe how all providers receive, through training and professional development, information about: (1) existing resources and services the State/Territory can make available in conducting developmental screenings and providing referrals to services when appropriate for children who receive assistance under this part, including the coordinated use of the Early and Periodic Screening, Diagnosis, and Treatment program (42 U.S.C. 1396 et seq.) and developmental screening services available under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.); and (2) how child care providers may utilize these resources and services to obtain developmental screenings for children who receive assistance and who may be at risk for cognitive or other developmental delays, which may include social, emotional, physical, or linguistic delays: **The Wyoming Department of Health is responsible for the Child Development Centers, which are the entities providing developmental screenings. The Department coordinates with the Wyoming Department of Health to ensure their recommendations about developmental screenings are readily accessible to all child care providers, parents, and consumers. All families and providers, regardless of CCDF, are able to utilize the resources and services available. As such, The Department does not describe a process or procedure in policy. However, the Department has developed a resource pamphlet for all parents and providers which contains information regarding developmental screening services including the entities providing the screenings across the state with their contact information and Medicaid (to access the EPSDT). These pamphlets are provided to all persons requesting a child care assistance application through the Department’s Child Care Assistance workers and/or support staff.**

**Additionally, Child Care Providers participate in annual statewide training and receive information related to developmental screening. The Department’s Child Care Resource & Referral staff also e-blasts the information to all providers, including licensing staff, on a quarterly basis.**

## 6.4 Early Learning and Developmental Guidelines

Lead Agencies must develop, maintain, or implement early learning and developmental guidelines appropriate for children from birth to kindergarten entry. Early learning and developmental guidelines should describe what children should know and be able to do at different ages and cover the essential domains of early childhood development, which at a minimum includes cognition, including language arts and mathematics; social, emotional, and physical development; and approaches toward learning.

#### 6.4.1 Early learning and developmental guidelines

- a. Check the boxes below to certify the Lead Agency's early learning and developmental guidelines are:
  - i. ☒ Research-based.
  - ii. ☒ Developmentally appropriate.
  - iii. ☒ Culturally and linguistically appropriate.
  - iv. ☒ Aligned with kindergarten entry.
  - v. ☒ Appropriate for all children from birth to kindergarten entry.
  - vi. ☒ Implemented in consultation with the educational agency and the State Advisory Council on Early Childhood Education and Care or similar coordinating body.
  - vii. If any components above are not checked, describe:
- b. Check the boxes below to certify that the required domains are included in the Lead Agency's early learning and developmental guidelines.
  - i. ☒ Cognition, including language arts and mathematics.
  - ii. ☒ Social development.
  - iii. ☒ Emotional development.
  - iv. ☒ Physical development.
  - v. ☒ Approaches toward learning.
  - vi. ☐ Other optional domains. Describe any optional domains:
  - vii. If any components above are not checked, describe:
- c. When were the Lead Agency's early learning and developmental guidelines most recently updated and for what reason? **The Wyoming Early Learning Standards were most recently updated in January 2022. The updates included consolidating the state's early learning guidelines and early learning foundations into the Early Learning Standards and were revised to include updated research and science related to early childhood development. Additionally, the Wyoming Early Learning Standards were aligned with the State's Early Childhood Strategic Plan (developed via the Preschool Development Planning Grant) and Coherent Path to Quality Guidelines.**
- d. Provide the Web link to the Lead Agency's early learning and developmental guidelines.  
**<https://wyqualitycounts.org/free-resources/early-learning-foundations/>**

#### 6.4.2 Use of early learning and developmental guidelines

- a. Describe how the Lead Agency uses its early learning and developmental guidelines. **In 2013, efforts to train on the Early Learning Guidelines and Early Learning Foundations began. In 2014, it became evident that Wyoming needed more than one (1) trainer across the State and the Early Learning Foundations and Guidelines Train the Trainer class began. Additionally, a college credit class was designed and implemented across the state (via electronic means). The Department in consultation with the Wyoming Early Childhood State Advisory Council and STARS, determined the Early Learning Guidelines and Foundations should be a required pre-service training for all licensed providers and staff. Consequently, the Department collaborated with the University of Wyoming and STARS to develop an introduction to the Early Learning Guidelines and Foundations for providers and staff. In 2022, utilizing the PDG structure and funding, the Wyoming Early Learning Guidelines and Foundations were updated and transitioned to the Wyoming Early Learning Standards and integrated language and content from Wyoming's Coherent Path to Quality. A curriculum guide and an assessment and documentation guide will be disseminated. In addition, the pre-service requirement was incorporated into the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center(CCC). Finally, the Department is working with the University of Wyoming and STARS to offer technical assistance, equip early care and education professionals to support and integrate the Wyoming Early Learning Standards in their early learning environments and to encourage early learning professionals to share the Wyoming Early Learning Standards with families through outreach and events.**
- b. Check the boxes below to certify that CCDF funds are not used to develop or implement an assessment for children that:
  - i. ☒ Will be the primary or sole basis to determine a child care provider ineligible to participate in the CCDF.
  - ii. ☒ Will be used as the primary or sole basis to provide a reward or sanction for an individual provider.
  - iii. ☒ Will be used as the primary or sole method for assessing program effectiveness.
  - iv. ☒ Will be used to deny children eligibility to participate in CCDF.
  - v. If any components above are not checked, describe: **All above components checked.**

## 7 Quality Improvement Activities

The quality of child care directly affects children's safety and healthy development while in care settings, and high-quality child care can be foundational across the lifespan. Lead Agencies may use CCDF for quality improvement activities for all children in care, not just those receiving child care subsidies. OCC will collect the most detailed Lead Agency information about quality improvement activities in annual reports instead of this Plan.

Lead Agencies must report on CCDF child care quality improvement investments in three ways:

1. In this Plan, Lead Agencies will describe the types of activities supported by quality investments over the 3-year period.
2. An annual expenditure report (the ACF-696). Lead Agencies will provide data on how much CCDF funding is spent on quality activities. This report will be used to determine compliance with the required quality and infant and toddler spending requirements.
3. An annual Quality Progress Report (the ACF-218). Lead Agencies will provide a description of activities funded by quality expenditures, the measures used to evaluate its progress in improving the quality of child care programs and services within the State/Territory, and progress or barriers encountered on those measures.

In this section of the Plan, Lead Agencies will describe their quality activities needs assessment and identify the types of quality improvement activities where CCDF investments are being made using quality set-aside funds.

## 7.1 Quality Activities Needs Assessment

### 7.1.1 Needs assessment process and findings

- a. Describe the Lead Agency needs assessment process for expending CCDF funds on activities to improve the quality of child care, including the frequency of assessment, how a range of parents and providers were consulted, and how their views are incorporated: **Wyoming conducts an information needs assessment by regularly assesses information from child care licensers related to areas of non-compliance or violations to direct technical assistance and training; data from the Technical Assistance Coach; and Child Care Resource and Referral to identify areas of focus for quality investments. This assessment is conducted (annually, ongoing, etc.). Most recently, the Department surveyed providers in February and March 2024 regarding the impact of the COVID funding initiatives on providers. The findings indicated that the Department's initiatives piloted with COVID funding had a positive impact on providers; however, they are still struggling with workforce recruitment and increased costs of running a child care business. Additionally, in early 2024 the Department began conducting exit surveys of providers leaving the industry to identify barriers to licensure and maintaining their operations. The Department also utilizes its annual inspections of providers to gather feedback on specific provider needs and offers technical assistance to help meet those needs. The Department has not conducted a formal assessment of the needs in the state to determine which quality activities to invest in. However, the Department was involved in the comprehensive needs assessment for the Preschool Development Grant (PDG) (Planning Grant) and the subsequent update, which included data from the Department's Child Care Gap Analysis conducted by the Bi-Partisan Policy Center. The PDG Needs Assessment and subsequent update, provides a foundation of information about Wyoming's young children and the services available to support them and their families and is the foundation for the Wyoming Early Childhood Strategic Plan. For this State Plan period, the Department will collect and analyze data and information regularly to inform funding decisions. Data and information shall be collected from child care licensers, licensed and license-exempt child care providers (center and homes), Family Resource**

Centers, Child Care Resource & Referral, parents & other consumers, the Professional Learning Collaborative, STARS and other early childhood stakeholders.

- b. Describe the findings of the assessment, including any findings related to needs of different populations and types of providers, and if any overarching goals for quality improvement were identified: **The Department has determined that supporting compliance with state requirements for licensing, inspection, monitoring, training, and health and safety is the area of focus for investment.** In addition, the Department regularly assesses information from child care licensors related to areas of non-compliance or violations to direct technical assistance and training; data from the Technical Assistance Coach; and Child Care Resource and Referral to identify areas of focus for quality investments. The Department utilizes CCDF discretionary funds to support the following quality activities: Supporting the training and professional development of the child care workforce; Developing, maintaining, or implementing early learning and developmental guidelines (Wyoming Early Learning Standards); Developing, implementing, or enhancing a tiered quality rating and improvement system; Improving the supply and quality of child care services for infants and toddlers; Facilitating compliance with state/territory requirements for inspection, monitoring, training, and health and safety standards. Most recently, the Department surveyed providers in February and March 2024 regarding the impact of the COVID funding initiatives on providers. The findings indicated that the Departments initiatives piloted with COVID funding had a positive impact on providers; however, they are still struggling with workforce recruitment (centers) and increased costs (rent, utilities, food, supplies, insurance, etc.) of running a child care business (centers & home providers). The provider exit survey findings indicated providers were leaving the industry due to increased costs & low profitability (centers & home providers); licensing and/or regulatory requirements (centers & home providers); and stress and workforce issues (centers).

## 7.2 Use of Quality Set-Aside Funds

Lead Agencies must use a portion of their CCDF expenditures for activities designed to improve the quality of child care services and to increase parental options for and access to high-quality child care. They must use the quality set-aside funds on at least one of 10 activities described in CCDF and the quality activities must be aligned with a Statewide or Territory-wide assessment of the State's or Territory's need to carry out such services and care.

### 7.2.1 Quality improvement activities

- a. Describe how the Lead Agency will make its Quality Progress Report (ACF – 218) and expenditure reports, available to the public. Provide a link if available. **The Department will post its annual Quality Progress Report to the following website for public access: <https://dfs.wyo.gov/services/family-services/child-care/>**
- b. Identify Lead Agency plans, if any, to spend CCDF funds for each of the following quality improvement activities. If an activity is checked “yes”, describe the Lead Agency's current and/or future plans for this activity.
  - i. Supporting the training and professional development of the child care workforce, including birth to five and school-age providers.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **With the exception of the required health and safety training, providers develop training plans or identify needed training to meet their needs and the needs of the children they serve (elective hours for training). Specialized professional development opportunities are identified specific to the developmental stage and age of the children in care recognizing that children have distinct needs in behavioral supports, mental, physical, social and academic development, including infants, school age children and children with developmental delays or disabilities.**

**The state will coordinate with the Wyoming STARS, Wyoming Professional Learning Collaborative, Wyoming Head Start Collaboration Office, the Statewide Afterschool Network, to ensure that appropriate professional development trainings exist specific to the specific workforce serving school-age, infants & toddlers, special needs, and other specific age & developmental stages.**

- ii. Developing, maintaining, or implementing early learning and developmental guidelines.

☒ No plans to spend in this category of activities at this time.

☐ Yes. If yes, describe current and future investments.

- iii. Developing, implementing, or enhancing a quality improvement system.

☒ No plans to spend in this category of activities at this time.

☐ Yes. If yes, describe current and future investments.

- iv. Improving the supply and quality of child care services for infants and toddlers.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Department will use the Infant/Toddler quality set aside to create some grants or contracts for slots for infants and toddlers; however, the Department intends to request a waiver for this requirement to allow time to implement full compliance with the requirement.**

- v. Establishing or expanding a statewide system of CCR&R services.

☒ No plans to spend in this category of activities at this time.

☐ Yes. If yes, describe current and future investments.

- vi. Facilitating compliance with Lead Agency child care licensing, monitoring, inspection and health and safety standards.

☒ No plans to spend in this category of activities at this time.

☐ Yes. If yes, describe current and future investments.

- vii. Evaluating and assessing the quality and effectiveness of child care services within the State/Territory.

☒ No plans to spend in this category of activities at this time.

- ☐ Yes. If yes, describe current and future investments.
- viii. Accreditation support.
  - ☒ No plans to spend in this category of activities at this time.
  - ☐ Yes. If yes, describe current and future investments.
- ix. Supporting State/Territory or local efforts to develop high-quality program standards relating to health, mental health, nutrition, physical activity, and physical development.
  - ☒ No plans to spend in this category of activities at this time.
  - ☐ Yes. If yes, describe current and future investments.
- x. Other activities determined by the Lead Agency to improve the quality of child care services and the measurement of outcomes related to improved provider preparedness, child safety, child well-being, or kindergarten entry.
  - ☒ No plans to spend in this category of activities at this time.
  - ☐ Yes. If yes, describe current and future investments.

## 8 Lead Agency Coordination and Partnerships to Support Service Delivery

Coordination and partnerships help ensure that the Lead Agency's efforts accomplish CCDF goals effectively, leverage other resources, and avoid duplication of effort. Such coordination and partnerships can help families better access child care, can assist in providing consumer education to parents, and can be used to improve child care quality and the stability of child care providers. Such coordination can also be particularly helpful in the aftermath of disasters when the provision of emergency child care services and the rebuilding and restoring of child care infrastructure are an essential part of ensuring the well-being of children and families in recovering communities.

This section identifies who the Lead Agency collaborates with to implement services, how match and maintenance-of-effort (MOE) funds are used, coordination with child care resource and referral (CCR&R) systems, and efforts for disaster preparedness and response plans to support continuity of operations in response to emergencies.

### 8.1 Coordination with Partners to Expand Accessibility and Continuity of Care

Lead Agencies must coordinate child care services supported by CCDF with other federal, State/Territory, and local level programs. This includes programs for the benefit of Indian children, infants and toddlers, children with disabilities, children experiencing homelessness, and children in foster care.

#### 8.1.1 Coordination with required and optional partners

Describe how the Lead Agency coordinates and the results of this coordination of the provision of child care services with the organizations and agencies to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services that meet the needs of working families.

The Lead Agency must coordinate with the following agencies:

- a. State Advisory Council on Early Childhood Education and Care or similar coordinating body (pursuant to 642B(b)(1)(A)(i) of the Head Start Act). Describe the coordination and results of the coordination: **Members of the Wyoming Early Childhood State Advisory Council were identified by expertise to focus on specific areas of the State Plan and were provided the opportunity to contribute to the content and review the final draft. Communication on the development of the Plan was via email and we received written recommendations from several individuals. In addition, the Department hosted two (2) teleconferences to review and take comments from Council members and received numerous comments of which many suggestions and changes were implemented in the CCDF.**
- b. Indian Tribe(s) and/or Tribal organization(s), at the option of the Tribe or Tribal organization. Describe the coordination and results of the coordination, including which Tribe(s) was (were) involved: **The Department makes its plan available to the Eastern Shoshone and the Northern Arapaho Tribes and solicits input to the plan. Both tribal entities were contacted via email and telephone on two occasions to discuss and review the Plan. The Department did not receive any response from either Tribe with regard to the state plan.**  

[ ] Not applicable. Check here if there are no Indian Tribes and/or Tribal organizations in the State/Territory.
- c. State/Territory agency(ies) responsible for programs for children with disabilities, including early intervention programs authorized under the Individuals with Disabilities Education Act. Describe the coordination and results of the coordination: **The Wyoming Early Childhood State Advisory and Wyoming Early Intervention Councils are made up of representatives from across the State including representatives from state and local governments. The Wyoming Early Intervention Council's mission is to advise and assist coordinated community-based programs for families, and their children from birth through age 5, who are identified as having development delays and/or disabilities. The Department provides information regarding services offered from the network of Child Development Centers across the state to parents, providers and other consumers. In addition, the Wyoming Early Intervention and Education Program's manager is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department, ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas.**
- d. State/Territory office/director for Head Start State collaboration. Describe the coordination and results of the coordination: **The Wyoming Head Start state collaboration director is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department, ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas.**
- e. State/Territory agency responsible for public health, including the agency responsible for immunizations. Describe the coordination and results of the coordination: **The Department partners with public health to ensure the Wyoming Rules for Certification of**

Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Centers (CCC) reflect the current requirements of the Wyoming Department of Health, Public Health. Specifically, the public health division staff consult with the Department on requirements regarding immunizations and TB testing and other health related content in the Rules. In addition, a representative from the public health division is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas.

- f. State/Territory agency responsible for employment services/workforce development. Describe the coordination and results of the coordination: **The Department and the Wyoming Department of Workforce Services shall collaborate and coordinate on specific projects related to development of the early childhood workforce, including making referrals and working with the prospective staff to meet all requirements for child care staff. In addition, the Department of Workforce Services is the legislatively mandated early childhood consumer education entity. The Departments coordinate activities related to provider training and consumer education.**
- g. State/Territory agency responsible for public education, including pre-Kindergarten. Describe the coordination and results of the coordination: **The Wyoming Department of Education (WDE) has both the Early Learning Specialist and the Head Start Collaboration Director as members of the Wyoming Early Childhood State Advisory Council. They have been active in the work with the WDE, ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas. The WDE partners with the Department's Economic Security Division on implementation of TANF Preschools.**
- h. State/Territory agency responsible for child care licensing. Describe the coordination and results of the coordination: **The Department is responsible for child care licensing.**
- i. State/Territory agency responsible for the Child and Adult Care Food Program (CACFP) and other relevant nutrition programs. Describe the coordination and results of the coordination: **The Department partners with Wyoming Department of Education, Nutrition Program, to ensure the Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Centers (CCC) reflect the current requirements of the Wyoming Department of Education, Nutrition Program. In addition, information regarding licensure status is provided to the Nutrition Program State Director, as changes in programs are received by Child Care Licensing to ensure only eligible programs are receiving assistance through CACFP.**
- j. McKinney-Vento State coordinators for homeless education and other agencies providing services for children experiencing homelessness and, to the extent practicable, local McKinney-Vento liaisons. Describe the coordination and results of the coordination: **The**

Department oversees the Wyoming State Homeless Program. The Program Manager coordinates with the Wyoming Continuum of Care and other state providers to include child care and other early childhood programs to identify families in need of services, and to prevent homelessness.

- k. State/Territory agency responsible for the TANF program. Describe the coordination and results of the coordination: **The Department is responsible for TANF. The CCDF Administrator and the TANF Administrator have continuous communication to ensure coordination across both programs.**
- l. State/Territory agency responsible for Medicaid and the State Children's Health Insurance Program. Describe the coordination and results of the coordination: **The Wyoming Department of Health is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department, ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas. In addition, the Department and the Wyoming Department of Health coordinate provision of information regarding Medicaid and CHIP to parents, providers and other consumers. The information is included in the Department's Family Resource sheet, website and the consumer education website. The two programs coordinate to ensure the Department has the most current program information to share with providers, parents and other consumers.**
- m. State/Territory agency responsible for mental health services. Describe the coordination and results of the coordination: **The Wyoming Department of Health is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department, ALIGN and WY Kids First on the Preschool Development Grant Birth through 5. The council is instrumental in providing input and recommendations on the strategic plan and subsequent activity in each of the 6 program areas.**
- n. Child care resource and referral agencies, child care consumer education organizations, and providers of early childhood education training and professional development. Describe the coordination and results of the coordination: **The Department is responsible for child care resource and referral. The CCDF Co-Administrator supervises the CCR&R program staff. The CCR&R program staff is included in all program development and implementation meetings. In addition, the CCR&R program staff provides monitoring and oversight of the professional development Registry vendor and reports to the CCDF Co-Administrator weekly. As a benefit to having CCR&R responsibilities, the Department has data regarding providers, utilization of child care services, and needs of families readily accessible.**
- o. Statewide afterschool network or other coordinating entity for out-of-school time care (if applicable). Describe the coordination and results of the coordination: **The Department coordinates with the Statewide Afterschool Network on a number of key areas mentioned additionally in other sections throughout this plan. Those areas include: collecting data on**

school-age supply, school-age workforce and school age rates and costs of care; encouraging school-age quality practices in school age settings; establishing professional development specific to the needs of school-age providers; and ensuring on-going staff trainings are relevant to school-age providers.

- p. Agency responsible for emergency management and response. Describe the coordination and results of the coordination: **The Department takes the whole community approach to crisis and emergency management. The Department coordinates planning, training, response coordination with each Wyoming county emergency management coordinator, public health response coordinator, state agencies ( ie. Wyoming Homeland Security, US Homeland Security, and Wyoming Department of Health), and non-government organizations (ie. Red Cross and Wyoming Volunteer Organizations After A Disaster). The intent of the ongoing coordination between all mentioned entities is to ensure Emergency Response and Preparedness plans are current and in alignment with FEMA goals. In addition, the Department provides access to critical location identification information for emergency response during an emergency or disaster. The Department has developed and manages location maps identifying the at risk populations overseen by the Department in addition to community services resources map and list. The Department distributes these lists and the information is also available on emergency management shared data drives.**
  
- q. The following are examples of optional partners a Lead Agency might coordinate with to provide services. Check which optional partners the Lead Agency coordinates with and describe the coordination and results of the coordination.
  - i. ☐ State/Territory/local agencies with Early Head Start – Child Care Partnership grants. Describe:
  
  - ii. ☒ State/Territory institutions for higher education, including community colleges. Describe: **The Department partners and contracts with the University of Wyoming to manage and operate the Wyoming Early Childhood Professional Learning Collaborative (PLC): to train and mentor Professional Learning facilitator to follow the framework including deepening knowledge, dispositions and practice in: principles of adult learning and evidence based transformative learning practices; NAEYC professional standards and competencies for early childhood educators; NAEYC developmentally appropriate practice position statement; whole leadership framework for early childhood program leaders; coaching with powerful interactions coaching modes; and 5 commitments of optimistic leadership The Professional Learning facilitators provide professional learning opportunities to all early childhood educators utilizing resources developed and researched available on the Wyoming Early Childhood Professional Learning Collaborative website. Additionally, the Professional Learning facilitators provide necessary training for the Wyoming Infant and Toddler Credential. The Department also contracts with Western States Learning Corporation, dba Align for management, coordination and operation of the Wyoming Statewide Training and Resource System (STARS) for early childhood professionals as well as coordination between the new STARS registry that integrates with the Department child care licensing and Child Care Resource & Referral.**

- iii. ☐ Other federal, State, local, and/or private agencies providing early childhood and school-age/youth-serving developmental services. Describe:
- iv. ☐ State/Territory agency responsible for implementing the Maternal, Infant, and Early Childhood Home Visiting (MIECHV) programs grant. Describe:
- v. ☐ Agency responsible for Early and Periodic Screening, Diagnostic, and Treatment Program. Describe:
- vi. ☐ State/Territory agency responsible for child welfare. Describe:
- vii. ☐ Child care provider groups or associations. Describe:
- viii. ☐ Parent groups or organizations. Describe:
- ix. ☐ Title IV B 21<sup>st</sup> Century Community Learning Center Coordinators. Describe:
- x. ☐ Other. Describe:

## 8.2 Optional Use of Combined Funds, CCDF Matching, and Maintenance-of-Effort Funds

Lead Agencies may combine CCDF funds with other Federal, State, and local child care and early childhood development programs, including those in 8.1.1. These programs include preschool programs, Tribal child care programs, and other early childhood programs, including those serving infants and toddlers with disabilities, children experiencing homelessness, and children in foster care.

Combining funds may include blending multiple funding streams, pooling funds, or layering funds from multiple funding streams to expand and/or enhance services for infants, toddlers, preschoolers, and school-age children and families to allow for the delivery of comprehensive quality care that meets the needs of children and families. For example, Lead Agencies may use multiple funding sources to offer grants or contracts to programs to deliver services; a Lead Agency may allow a county/local government to use coordinated funding streams; or policies may be in place that allow local programs to layer CCDF funds with additional funding sources to pay for full-day, full-year child care that meets Early Head Start/Head Start Program Performance Standards or State/Territory pre-Kindergarten requirements in addition to State/Territory child care licensing requirements.

As a reminder, CCDF funds may be used in collaborative efforts with Head Start and Early Head Start programs to provide comprehensive child care and development services for children who are eligible for both programs.

### 8.2.1 Combining funding for CCDF services

Does the Lead Agency combine funding for CCDF services with Title XX of the Social Services Block Grant (SSBG), Title IV B 21<sup>st</sup> Century Community Learning Center Funds, State-only child care funds, TANF direct funds for child care not transferred into CCDF, Title IV-B, IV-E funds, or other federal or State programs?

☒ No. (If no, skip to question 8.2.2)

☐ Yes.

- i. If yes, describe which funds you will combine. Combined funds may include, but are not limited to:

- ☐ Title XX (Social Services Block Grant, SSBG)
- ☐ Title IV B 21<sup>st</sup> Century Community Learning Center Funds (Every Student Succeeds Act)
- ☐ State- or Territory-only child care funds
- ☐ TANF direct funds for child care not transferred into CCDF
- ☐ Title IV-B funds (Social Security Act)
- ☐ Title IV-E funds (Social Security Act)
- ☐ Other. Describe:

- ii. If yes, what does the Lead Agency use combined funds to support, such as extending the day or year of services available (i.e., full-day, full-year programming for working families), smoothing transitions for children, enhancing and aligning quality of services, linking comprehensive services to children in child care, or developing the supply of child care for vulnerable populations?

#### 8.2.2 Funds used to meet CCDF matching and MOE requirements

Lead Agencies may use public funds and donated funds to meet CCDF match and maintenance of effort (matching MOE) requirements.

*Note:* Lead Agencies that use State pre-Kindergarten funds to meet matching requirements must check State pre-Kindergarten funds and public and/or private funds.

Use of private funds for match or maintenance-of-effort: Donated funds do not need to be under the administrative control of the Lead Agency to qualify as an expenditure for federal match. However, Lead Agencies must identify and designate in the State/Territory CCDF Plan the donated funds given to public or private entities to implement the CCDF child care program.

☐ Not applicable. The Lead Agency is a Territory (skip to 8.3.1).

- a. Does the Lead Agency use public funds to meet match requirements?

☒ Yes. If yes, describe which funds are used: **State General Funds.**

☐ No.

- b. Does the Lead Agency use donated funds to meet match requirements?

☐ Yes. If yes, identify the entity(ies) designated to receive donated funds:

- i. ☐ Donated directly to the state.

- ii. ☐ Donated to a separate entity(ies) designated to receive donated funds. If checked, identify the name, address, contact, and type of entities designated to receive private donated funds:

☒ No.

- c. Does the Lead Agency certify that, if State expenditures for pre-Kindergarten programs are used to meet the MOE requirements, the following is true:

- The Lead Agency did not reduce its level of effort in full-day/full-year child care services.

- The Lead Agency ensures that pre-Kindergarten programs meet the needs of working parents.
- The estimated percentage of the MOE requirement that will be met with pre-Kindergarten expenditures (does not to exceed 20 percent).
- If the percentage is more than 10 percent of the MOE requirement, the State will coordinate its pre-Kindergarten and child care services to expand the availability of child care.

Public pre-Kindergarten funds may also serve as MOE funds as long as the State can describe how it will coordinate pre-Kindergarten and child care services to expand the availability of child care while using public pre-Kindergarten funds as no more than 20 percent of the State's MOE or 30 percent of its matching funds in a single fiscal year.

If expenditures for pre-Kindergarten services are used to meet the MOE requirement, does the Lead Agency certify that the State or Territory has not reduced its level of effort in full-day/full-year child care services?

☒ Yes.

☐ No. If no, describe:

### 8.3 Coordination with Child Care Resource and Referral Systems

Lead Agencies may use CCDF funds to establish or support a system or network of local or regional child care resource and referral (CCR&R) organizations that is coordinated, to the extent determined by the Lead Agency, by a statewide public or private non-profit, community-based or regionally based, lead child care resource and referral organization (such as a statewide CCR&R network).

If Lead Agencies use CCDF funds for local CCR&R organizations, the local or regional CCR&R organizations supported by those funds must, at the direction of the Lead Agency:

- Provide parents in the State with consumer education information concerning the full range of child care options (including faith-based and community-based child care providers), analyzed by provider, including child care provided during non-traditional hours and through emergency child care centers, in their area.
- To the extent practicable, work directly with families who receive assistance to offer the families support and assistance to make an informed decision about which child care providers they will use to ensure that the families are enrolling their children in the most appropriate child care setting that suits their needs and one that is of high quality (as determined by the Lead Agency).
- Collect data and provide information on the coordination of services and supports, including services under Part B, Section 619 and Part C of the Individuals with Disabilities Education Act.
- Collect data and provide information on the supply of and demand for child care services in areas of the State and submit the information to the Lead Agency.
- Work to establish partnerships with public agencies and private entities, including faith-based and community-based child care providers, to increase the supply and quality of child care services in the State and, as appropriate, coordinate their activities with the activities of the

Lead Agency and local agencies that administer funds made available through CCDF.

#### 8.3.1 Funding a system or network of CCR&R organization(s)

Does the Lead Agency fund a system or network of local or regional CCR&R organization(s)?

☐ No. The Lead Agency does not fund a system or network of local or regional CCR&R organization(s) and has no plans to establish one.

☐ No, but the Lead Agency has plans to develop a system or network of local or regional CCR&R organization(s).

☒ Yes. The Lead Agency funds a system or network of local or regional CCR&R organization(s) with all the responsibilities outlined above. If yes, describe the activities outlined above carried out by the CCR&R organization(s), as directed by the Lead Agency: **CCR&R is available to assist families in selecting child care providers who best meet the needs of a child and their family, by providing information concerning the full range of child care options in the state. CCR&R also provides resources and consultation to licensed child care providers. CCR&R program staff collects data including the demand for child care services in the state. CCR&R offers to Families: Information about child care options, quality, and referrals to child care programs that are licensed, certified or registered; Questionnaire resource for guidance for selecting quality child care; newsletters; Information about financial assistance; and Health and Social Services resources and information. Providers: Listing on the CCR&R referral database; Referrals to program; Help with business, child care, and regulatory questions; Information about professional development opportunities; Technical assistance consultants; and Statewide training. In addition, the CCR&R collects data regarding the demand for child care across the state, including ages of children needing care, setting, hours, etc. The Department uses the data to work with child care licensers and others in the local Department field offices to develop strategies to meet the identified needs of consumers.**

### 8.4 Public-Private Partnerships

Lead Agencies must demonstrate how they encourage partnerships among other public agencies, Tribal organizations, private entities, faith-based organizations, businesses, or organizations that promote business involvement, and/or community-based organizations to leverage existing service delivery (i.e., cooperative agreement among providers to pool resources to pay for shared fixed costs and operation) to leverage existing child care and early education service delivery systems and to increase the supply and quality of child care services for children younger than age 13.

#### 8.4.1 Lead Agency public-private partnerships

Identify and describe any public-private partnerships encouraged by the Lead Agency to leverage public and private resources to further the goals of CCDF: **The Department has several partnerships among state agencies, local public agencies, private entities, and community-based organizations to leverage existing service delivery systems. The following describes those partnerships and outlines the goals of the partnerships: the Department and the WY Quality Counts! program partner to provide parents, providers and consumers current information related to early care and learning. This effort ensures the federal requirements are met by the state. The**

Department engages with the local county government in regards to Child Care Licensing. The Department partners and contracts with the University of Wyoming to manage and operate the Wyoming Early Childhood Professional Learning Collaborative (PLC): to train and mentor Professional Learning facilitator to follow the framework including deepening knowledge, dispositions and practice in: principles of adult learning and evidence based transformative learning practices; NAEYC professional standards and competencies for early childhood educators; NAEYC developmentally appropriate practice position statement; whole leadership framework for early childhood program leaders; coaching with powerful interactions coaching modes; and 5 commitments of optimistic leadership The Professional Learning facilitators provide professional learning opportunities to all early childhood educators utilizing resources developed and researched available on the Wyoming Early Childhood Professional Learning Collaborative website. Additionally, the Professional Learning facilitators provide necessary training for the Wyoming Infant and Toddler Credential. The Department is also involved with the University of Wyoming, Early Childhood program, to provide Wyoming Early Learning Standards training and support to child care providers across the state. The Department is involved with federal TA staff, providers and other early childhood professionals, including the University of Wyoming Professional Learning Collaborative, across the state to identify opportunities for providers and staff to receive Infant and Toddler training to meet the Infant and Toddler Director Credential requirements.

## 8.5 Disaster Preparedness and Response Plan

Lead Agencies must establish a Statewide Child Care Disaster Plan and demonstrate how they will address the needs of children—including the need for safe child care before, during, and after a state of emergency declared by the Governor or a major disaster or emergency (as defined by Section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, 42 U.S.C. 5122)—through a Statewide Disaster Plan.

### 8.5.1 Statewide Disaster Plan updates

- a. When was the Lead Agency’s Child Care Disaster Plan most recently updated and for what reason? **The Department’s Child Care Disaster Plan was most recently updated in April 2023 and was updated to ensure that all information included was still accurate and correct.**
- b. Please certify compliance by checking the required elements the Lead Agency includes in the current State Disaster Preparedness and Response Plan.
  - i. The plan was developed in collaboration with the following required entities:
    - ☒ State human services agency.
    - ☒ State emergency management agency.
    - ☒ State licensing agency.
    - ☒ State health department or public health department.
    - ☒ Local and State child care resource and referral agencies.
    - ☒ State Advisory Council on Early Childhood Education and Care or similar coordinating body.

- ii. ☒ The plan includes guidelines for the continuation of child care subsidies.
- iii. ☒ The plan includes guidelines for the continuation of child care services.
- iv. ☒ The plan includes procedures for the coordination of post-disaster recovery of child care services.
- v. The plan contains requirements for all CCDF providers (both licensed and license-exempt) to have in place:
  - ☒ Procedures for evacuation.
  - ☒ Procedures for relocation.
  - ☒ Procedures for shelter-in-place.
  - ☒ Procedures for communication and reunification with families.
  - ☒ Procedures for continuity of operations.
  - ☒ Procedures for accommodations of infants and toddlers.
  - ☒ Procedures for accommodations of children with disabilities.
  - ☐ Procedures for accommodations of children with chronic medical conditions.
- vi. ☒ The plan contains procedures for staff and volunteer emergency preparedness training.
- vii. ☐ The plan contains procedures for staff and volunteer practice drills.
- viii. If any of the above are not checked, describe: **The Department is missing the following components to the current CCDF State Emergency Disaster Preparedness, Response, and Recover Plan for CCDF Licensed providers: Procedures for continuity of operations and accommodations for infants and toddlers. CCDF License-exempt providers do not have in place procedures for evacuation; shelter-in-place; lockdown; staff and volunteer practice drills; and accommodations of infants and toddlers, children with disabilities and children with chronic medical conditions. This item is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 12/13/2021. As such, the department is making the necessary changes to its state plan; however, the changes will not be completed and available for submission as evidence of compliance prior to the October 1, 2024 state plan effective date, so the Department will need additional time to meet this requirement.**
- ix. If available, provide the direct URL/website link to the website where the Statewide Child Care Disaster Plan is posted:  
<https://drive.google.com/file/d/1xzeRAVvk4NAQa0yNiFUrDI0yh-YJxczl/view>

## 9 Family Outreach and Consumer Education

CCDF consumer education requirements facilitate parental choice in child care arrangements, support parents as child care consumers who need information to make informed choices regarding the services that best suit their family's needs, and the delivery of resources that can

support child development and well-being. Lead Agency consumer education activities must provide information for parents receiving CCDF assistance, the general public, and, when appropriate, child care providers. Lead Agencies should use targeted strategies for each group to ensure tailored consumer education information and take steps to ensure they are effectively reaching all individuals, including those with limited English proficiency and those with disabilities.

In this section, Lead Agencies address their consumer education practices, including details about their child care consumer education website, and the process for collecting and maintaining a record of parental complaints.

## 9.1 Parental Complaint Process

Lead Agencies must maintain a record of substantiated parental complaints against child care providers and make information regarding such complaints available to the public on request. Lead Agencies must also provide a detailed description of the hotline or similar reporting process for parents to submit complaints about child care providers; the process for substantiating complaints; the manner in which the Lead Agency maintains a record of substantiated parental complaints; and ways that the Lead Agency makes information on such parental complaints available to the public on request. Lead Agencies are not required to limit the complaint process to parents.

### 9.1.1 Parental complaint process

- a. Describe the Lead Agency’s hotline or similar reporting process through which parents can submit complaints about child care providers, including a link if it is a Web-based process: **If a parent, guardian or other concerned citizen thinks that a child care program is not meeting the licensing requirements, a complaint can be made to the local child care licenser. The Department’s website has available a map with all child care licensers, child care licensing supervisors and their contact information. The parent, guardian or other concerned citizen are able to call the child care licenser or supervisor with a complaint or submit the complaint in writing via email. The Department has the authority to investigate all of these areas. However, the Department has no authority over areas such as operational policies about payment, hours or days of operation, if a program chooses not to administer medication, or enrollment or termination policies. The Complaint Investigation Procedure for Licensing Requirements are as follows: File Complaint; and Contact the child care licenser for the area.**
- b. Describe how the parental complaint process ensures broad access to services for families that speak languages other than English: **The Department’s website can be translated to Spanish via Google Translate. The Department staff works with translators, translator hotline, and the Latino Resource Center to assist parents on the parental complaint process as needed.**
- c. Describe how the parental complaint process ensures broad access to services for persons with disabilities: **The Department’s website is powered by Google and is accessible to those with disabilities. In addition, the Department staff work to assist persons with disabilities on the parental complaint process as needed.**
- d. For complaints about providers, including CCDF providers and non-CCDF providers, does

the Lead Agency have a process and timeline for screening, substantiating, and responding to complaints, including information about whether the process includes monitoring?

**[x] Yes. If yes, describe: For all licensed providers, the Department investigates complaints involving violations of child care licensing rules. If complaints are related to non-licensing issues (i.e. rates charged and hours of operation), the complaint shall be rejected or referred when appropriate. The provider and/or director shall be notified in writing of the allegations made in the complaint. The Department makes an unannounced visit to discuss the complaint with the provider and/or director. Depending upon the nature of the complaint, various aspects of the program will be monitored. Upon completion of the investigation: The provider and/or director shall be notified in writing of the findings and any areas of non-compliance with the rules. The Child Care Licensing programs determines whether a complaint is substantiated or not substantiated based on evidence gathered throughout the course of the investigation; What corrections shall be made and a date by which compliance shall be expected; Who is responsible for the correction; What was done or will be done to correct the problem; The child care licenser may monitor to ensure that the situation does not develop again; and An appropriate date is given, not to exceed 14 days from the date of the notice, for all issues of non-compliance to be corrected. The Department shall review, within 14 days after receipt, the program's Corrective Action Plan and schedule. At that time, the Department shall: Approve the proposed Corrective Action Plan and completion schedule; Modify and approve the Corrective Action Plan and completion schedule; or Disapprove the Corrective Action Plan and completion schedule and revoke or suspend the prior certification of the program pursuant to Child Care Licensing Rules. For licensed-exempt providers, the Department investigates complaints of violations of the provider agreement. When a complaint is received by the Child Care Assistance worker or other Department staff, it is forwarded to the Child Care Assistance Program Manager. The Child Care Assistance Program Manager is responsible for contacting the licensed-exempt provider to gather information related to the complaint. Upon completion of the investigation, the Child Care Assistance Program Manager notifies the licensed-exempt provider of the outcome of the investigation. Depending on the type of complaint, negative action may be taken. For all licensed providers, the Department investigates complaints involving violations of child care licensing rules. If complaints related to non-licensing issues (i.e. rates charged and hours of operation), the complaint shall be rejected or referred when appropriate. The provider and/or director shall be notified in writing of the allegations made in the complaint. The Department makes an unannounced visit to discuss the complaint with the provider and/or director. Depending upon the nature of the complaint, various aspects of the program will be monitored. Upon completion of the investigation: The provider and/or director shall be notified in writing of the findings and any areas of non-compliance with the rules; What corrections shall be made and a date by which compliance shall be expected; Who is responsible for the correction; What was done or will be done to correct the problem; The child care licenser may monitor to ensure that the situation does not develop again; An appropriate date is given, not to exceed 14 days from the date of the notice, for the issues of non-compliance to be corrected. The Department shall review, within 14 days after receipt, the program's Corrective Action Plan and schedule. At that time, the Department shall: Approve the proposed Corrective Action Plan and completion schedule; Modify and approve the Corrective Action Plan and completion schedule; or Disapprove the**

Corrective Action Plan and completion schedule and revoke or suspend the prior certification of the program pursuant to Child Care Licensing Rules. The Department responds to concerns or allegations of child care providers operating without a license. The Department makes an unannounced visit to discuss the complaint with the identified person. The Department tries to establish whether or not child care is being provided and if it would require licensure. If licensure is required, the Department child care licenser explains to the person what needs to happen in regards to licensing. In addition, the child care licenser explains the person shall **“cease and desist”** in operating without a license. The Department’s child care licenser provides a referral to local law enforcement and the county attorney’s office for issuance of a citation or prosecution.

[ ] No.

- e. For substantiated parental complaints, who maintains the record for CCDF and non-CCDF providers? **The Department, Child Care Licensing, uses the Child Care Licensing database system to keep records of all substantiated complaints. The records are maintained indefinitely for all operating, licensed facilities and the hard copy records for all closed facilities are archived and maintained for three (3) years. The Department, Child Care Assistance, documents all records of substantiated complaints for license exempt providers. The records are maintained indefinitely for all operating license-exempt providers and the records for all non operating license exempt providers are archived and maintained for three (3) years.**
- f. Describe how information about substantiated parental complaints is made available to the public; this information can include the consumer education website discussed in subsection 9.2: **Child Care Licensing records are public records and anyone can access a provider’s history of licensing complaints on the Department’s public website (<https://findchildcarewy.org/maps/>) or call the Child Care Licensing office and ask if any licensing complaints have been substantiated against the provider. The public may also email a complaint and compliance history request to the Child Care Licenser and receive a copy of the substantiated allegations. All cases involving child abuse and neglect investigations are confidential and unavailable to the public.**

## 9.2 Consumer Education Website

Lead Agencies must provide information to parents, the general public, and child care providers through a State or Territory website, which is consumer-friendly and easily accessible for families who speak languages other than English and persons with disabilities. The website must:

- Include information to assist families in understanding the Lead Agency’s policies and procedures, including licensing child care providers;
- Include monitoring and inspection reports for each provider and, if available, the quality of each provider;
- Provide the aggregate number of deaths, serious injuries, and the number of cases of substantiated child abuse that have occurred in child care settings;
- Include contact information for local CCR&R organizations to help families access

additional information on finding child care; and

- Include information on how parents can contact the Lead Agency and other organizations to better understand the information on the website.

#### 9.2.1 Consumer-friendly website

Does the Lead Agency ensure that its consumer education website is consumer-friendly and easily accessible?

- Provide the URL for the Lead Agency's consumer education website homepage:  
**dfs.wyo.gov**
- Does the Lead Agency certify that the consumer education website ensures broad access to services for families who speak languages other than English?  
☒ Yes.  
☐ No. If no, describe:
- Does the Lead Agency certify that the consumer education website ensures broad access to services for persons with disabilities?  
☒ Yes.  
☐ No. If no, describe:

#### 9.2.2 Additional consumer education website links

Provide the direct URL/website link for the following:

- Provide the direct URL/website link to how the Lead Agency licenses child care providers: **<https://dfs.wyo.gov/providers/child-care/>**
- Provide the direct URL/website link to the processes for conducting monitoring and inspections of child care providers: **<https://dfs.wyo.gov/providers/child-care/>**
- Provide the direct URL/website link to the policies and procedures related to criminal background checks for staff members of child care providers: **<https://dfs.wyo.gov/providers/child-care-support/>**
- Provide the direct URL/website link to the offenses that prevent individuals from being employed by a child care provider: **<https://dfs.wyo.gov/providers/child-care/background-check-faqs/>**

#### 9.2.3 Searchable list of providers

- The consumer education website must include a list of all licensed providers searchable by ZIP code.
  - Does the Lead Agency certify that the consumer education website includes a list of all licensed providers searchable by ZIP code?  
☒ Yes.  
☐ No. If no, describe:

ii. Provide the direct URL/website link to the list of child care providers searchable by ZIP code: <https://findchildcarewy.org/maps/>

iii. In addition to the licensed child care providers that must be included in the searchable list, are there additional providers included in the Lead Agency's searchable list of child care providers? Check all that apply:

☒ License-exempt center-based CCDF providers.

☒ License-exempt family child care CCDF providers.

☐ License-exempt non-CCDF providers.

☐ Relative CCDF child care providers.

☐ Other (e.g., summer camps, public pre-Kindergarten). Describe:

b. Identify what additional (optional) information, if any, is available in the searchable results by ZIP code. Check the box when information is provided.

| Provider Information Available in Searchable Results |                                     |                                            |                                                      |                                   |                          |
|------------------------------------------------------|-------------------------------------|--------------------------------------------|------------------------------------------------------|-----------------------------------|--------------------------|
|                                                      | All licensed providers              | License-exempt CCDF center-based providers | License-exempt CCDF family child care home providers | License-exempt non-CCDF providers | Relative CCDF providers  |
| Contact information                                  | <input checked="" type="checkbox"/> | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Enrollment capacity                                  | <input checked="" type="checkbox"/> | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Hours, days, and months of operation                 | <input checked="" type="checkbox"/> | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Provider education and training                      | <input type="checkbox"/>            | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Languages spoken by the caregiver                    | <input type="checkbox"/>            | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Quality information                                  | <input type="checkbox"/>            | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Monitoring reports                                   | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/>        | <input checked="" type="checkbox"/>                  | <input type="checkbox"/>          | <input type="checkbox"/> |
| Willingness to accept CCDF certificates              | <input type="checkbox"/>            | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Ages of children served                              | <input checked="" type="checkbox"/> | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |
| Specialization or training for certain populations   | <input type="checkbox"/>            | <input type="checkbox"/>                   | <input type="checkbox"/>                             | <input type="checkbox"/>          | <input type="checkbox"/> |

|                                           |                                     |                          |                          |                          |                          |
|-------------------------------------------|-------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| Care provided during nontraditional hours | <input checked="" type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
|-------------------------------------------|-------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|

c. Identify any other information searchable on the consumer education website for the child care provider type listed below and then, if checked, describe the searchable information included on the website.

- i. ☐ All licensed providers. Describe:
- ii. ☐ License-exempt CCDF center-based providers. Describe:
- iii. ☐ License-exempt CCDF family child care providers. Describe:
- iv. ☐ License-exempt, non-CCDF providers. Describe:
- v. ☐ Relative CCDF providers. Describe:
- vi. ☐ Other. Describe:

#### 9.2.4 Provider-specific quality information

Lead Agencies must identify specific quality information on each child care provider for whom they have this information. Provider-specific quality information must only be posted on the consumer education website if it is available for the individual child care provider.

- a. What specific quality information does the Lead Agency provide on the website?
  - i. ☐ Quality improvement system.
  - ii. ☐ National accreditation.
  - iii. ☐ Enhanced licensing system.
  - iv. ☐ Meeting Head Start/Early Head Start Program Performance Standards.
  - v. ☐ Meeting pre-Kindergarten quality requirements.
  - vi. ☐ School-age standards.
  - vii. ☐ Quality framework or quality improvement system.
  - viii. ☒ Other. Describe: **The Department does not have a quality rating system; thus quality information for providers is not available.**
- b. For what types of child care providers is quality information available?
  - i. ☐ Licensed CCDF providers. Describe the quality information:
  - ii. ☐ Licensed non-CCDF providers. Describe the quality information:
  - iii. ☐ License-exempt center-based CCDF providers. Describe the quality information:
  - iv. ☐ License-exempt FCC CCDF providers. Describe the quality information:
  - v. ☐ License-exempt non-CCDF providers. Describe the quality information:
  - vi. ☐ Relative child care providers. Describe the quality information:
  - vii. ☒ Other. Describe: **The Department does not have a quality rating system; thus quality information for providers is not available.**

## 9.2.5 Aggregate data on serious injuries, deaths, and substantiated abuse

Lead Agencies must post aggregate data on serious injuries, deaths, and substantiated cases of child abuse that have occurred in child care settings each year on the consumer education website. This aggregate data must include information about any child in the care of a provider eligible to receive CCDF, not just children receiving subsidies.

This aggregate information on serious injuries and deaths must be separated by category of care (e.g., centers, family child care homes, and in-home care) and licensing status (i.e., licensed or license-exempt) for all eligible CCDF child care providers in the State/Territory. The information on instances of substantiated child abuse does not have to be organized by category of care or licensing status. Information must also include the total number of children in care by provider type and licensing status, so that families can better understand the data presented on serious injuries, deaths, and substantiated cases of abuse.

- a. Certify by checking below that the required elements are included in the Aggregate Data Report on serious incident data that have occurred in child care settings each year.
  - i. ☒ The total number of serious injuries of children in care by provider category and licensing status.
  - ii. ☒ The total number of deaths of children in care by provider category and licensing status.
  - iii. ☒ The total number of substantiated instances of child abuse in child care settings.
  - iv. ☐ The total number of children in care by provider category and licensing status.
  - v. If any of the above elements are not included, describe: **The Department does not post the total number of children in care by provider category and licensing status. This is currently considered to be non-compliant pursuant to the Preliminary Notice of Non-Compliance dated 3/08/2024. As such, the department conducting research on how best to obtain the required aggregate data to post to its consumer education website; however, the Department will be unable to fully implement this requirement prior to the state plan effective date of after October 1, 2024 so the Department will need additional time to meet this requirement.**
- b. Certify by providing:
  - i. The designated entity to which child care providers must submit reports of any serious injuries or deaths of children occurring in child care and describe how the Lead Agency obtains the aggregate data from the entity: **Any injury, illness or incident which occurs at the licensed facility and results in medical treatment, hospitalization or death shall be reported to the parents of the child(ren) immediately and to the child care licensor within three (3) days of the incident. The death of any child in care, regardless of cause, shall be reported to licensing immediately. Licensed-exempt providers shall report serious injuries and deaths to the Department and they shall be kept on file and included in the annual aggregate data.**
  - ii. The definition of “substantiated child abuse” used by the Lead Agency for this

requirement: **Any report of child abuse or neglect made pursuant to W.S. 14-3-201 through 14-3-216 that, upon investigation, is supported by a preponderance of the evidence which is the standard of proof which is met when evidence, based on the facts, indicates that it is more likely than not the child(ren)/vulnerable adult was abused or neglected (CPS Rules, Chapter 1, Section 4(k)). (Adult/Child Protection).**

iii. The definition of “serious injury” used by the Lead Agency for this requirement: **Injury, illness or incident which occurs at the facility and results in medical treatment, hospitalization or death.**

c. Provide the direct URL/website link to the page where the aggregate number of serious injuries, deaths, and substantiated child abuse, and the total number of children in care by provider category and licensing status are posted: <https://findchildcarewy.org/maps/>

#### 9.2.6 Contact information on referrals to local child care resource and referral organizations

The Lead Agency consumer education website must include contact information on referrals to local CCR&R organizations.

a. Does the consumer education website include contact information on referrals to local CCR&R organizations?

☐ Yes.

☐ No.

☒ Not applicable. The Lead Agency does not have local CCR&R organizations.

b. Provide the direct URL/website link to this information:

#### 9.2.7 Lead Agency contact information for parents

The Lead Agency consumer and provider education website must include information on how parents can contact the Lead Agency or its designee and other programs that can help the parent understand information included on the website.

a. Does the website provide directions on how parents can contact the Lead Agency or its designee and other programs to help them understand information included on the website?

☒ Yes.

☐ No.

b. Provide the direct URL/website link to this information:

<https://dfs.wyo.gov/services/family-services/child-care/resource-and-referral-parents/>

#### 9.2.8 Posting sliding fee scale, co-payment amount, and policies for waiving co-payments

The consumer education website must include the sliding fee scale for parent co-payments, including the co-payment amount a family may expect to pay and policies for waiving co-payments.

a. Does the Lead Agency certify that their consumer education website includes the sliding

fee scale for parent co-payments, including the co-payment amount a family may expect to pay and policies for waiving co-payments?

☒ Yes.

☐ No.

- b. Provide the direct URL/website link to the sliding fee scale.

<https://dfs.wyo.gov/services/family-services/child-care/>

**Scroll down to the section titled: "Is Child Care Subsidy an Option for My Family?" and click the link for "Financial Criteria Chart - April 1, 2024" to access the sliding fee scale.**

### 9.3 Increasing Engagement and Access to Information

Lead Agencies must collect and disseminate information about the full range of child care services to promote parental choice to parents of children eligible for CCDF, the general public, and child care providers.

#### 9.3.1 Information about CCDF availability and eligibility

Describe how the Lead Agency shares information with eligible parents, the general public, and child care providers about the availability of child care services provided through CCDF and other programs for which the family may be eligible. The description should include, at a minimum, what is provided (e.g., written materials, the website, and direct communications) and what approaches are used to tailor information to parents, the general public, and child care providers. **The Department provides child care resource and referral services to families in Wyoming. Parents can access CCR&R services through our toll free number or on the Department's website. The Department's website includes a searchable database and the phone numbers of licensing staff across the state. Licensing staff are trained to provide information on the components of quality early care and education and make additional referrals based on the needs of individual families. Child care licensers distribute materials to providers and parents. Parents can receive materials through the mail or electronically if requested. Additionally, the Department also provides brochures and newsletters to families receiving child care which provide information on the different child care options that are available to the family. One (1) full-time staff member at the Department helps families and providers navigate resources and referrals. The Department collaborates with local Head Start programs to create opportunities for receipt of child care assistance and to provide information regarding how families can access child care subsidy. The Department coordinates with WY Quality Counts!, Wyoming Workforce Services, the Department staff (including child welfare and foster care), Department of Education, Department of Health, local school districts, Child Support Program staff, and other public/private entities to disseminate information regarding child care assistance services available. There are several early childhood websites where parents, consumers, providers, prospective providers and others can find information. Over the course of the next year or two, the Department will convene the appropriate agencies and entities to coordinate content and access and determine how to streamline and consolidate how and where early childhood information is found. When parents are applying for other benefits, the Department's Benefit Specialists provide an application for child care assistance. Child care providers are also provided a supply of applications. The Department's Early Childhood website houses information about the application process and program availability. In addition, e-blasts are sent to pre-built listserv which includes all directors, providers and facility staff to be distributed to parents and families. Child Care Licensing assists in**

**the distribution of materials to child care providers and families by hand delivering and emailing information.**

9.3.2 Information about child care and other services available for parents

Does the Lead Agency certify that it provides information described in 9.3.1 for the following required programs?

- Temporary Assistance for Needy Families (TANF) program.
- Head Start and Early Head Start programs.
- Low Income Home Energy Assistance Program (LIHEAP)
- Supplemental Nutrition Assistance Program (SNAP).
- Women, Infants, and Children Program (WIC) program.
- Child and Adult Care Food Program (CACFP).
- Medicaid and Children's Health Insurance Program (CHIP).
- Programs carried out under IDEA Part B, Section 619 and Part C.

☒ Yes.

☐ No. If no, describe:

9.3.3 Consumer statement for parents receiving CCDF services

Lead Agencies must provide parents receiving CCDF services with a consumer statement in hard copy or electronically that contains general information about the CCDF program and specific information about the child care provider they select.

Please certify if the Lead Agency provides parents receiving CCDF services a consumer statement that contains the following 8 requirements:

1. Health and safety requirements met by the provider
2. Licensing or regulatory requirements met by the provider
3. Date the provider was last inspected
4. Any history of violations of these requirements
5. Any voluntary quality standards met by the provider
6. How CCDF subsidies are designed to promote equal access
7. How to submit a complaint through the hotline
8. How to contact a local resource and referral agency or other community-based organization to receive assistance in finding and enrolling in quality child care

Does the Lead Agency provide to families, either in hard copy or electronically, a consumer statement that contains the required information about the provider they have selected, including the eight required elements above?

☒ Yes.

☐ No. If no, describe:

9.3.4 Informing families about best practices on child development

Describe how the Lead Agency makes information available to parents, providers, and the general public on research and best practices concerning children's development, including physical health and development, and information about successful parent and family engagement. At a minimum, the description should include what information is provided; how the information is provided; any distinct activities for sharing this information with parents, providers, the general public; and any partners in providing this information. **The Department makes available information regarding early childhood development through the Department's website, CCR&R, Child Care Licensing, WY Quality Counts!, other state agencies, and public/private entities. The Department shares developmental milestones, resources to obtain information from nationally known programs, shares best practices, assists with arranging training opportunities, and distributes materials relating to Early Learning Guidelines and Early Learning Foundations through the Department's website, e-blasts, provider/family newsletters, CCR&R, Child Care Licensing and community booths. The Early Learning Guidelines and Early Learning Foundations are developed with child development as the foundation. The Early Learning Guidelines and Early Learning Foundations provide child development information as well as activities the parent or caregiver may implement with the child(ren) to enhance child development. The Department and the following State agencies and organizations collaborate with Wy Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood. In addition, the Department partners with the Department of Health, Early Childhood Comprehensive Systems Grant (ECCS), which has established a Help Me Grow resource to educate parents about childhood development. The Department of Health, ECCS, has also established the Parent Leadership Training Institute to train parent leaders to engage in authentic parent and family engagement regarding policies and procedure.**

9.3.5 Unlimited parental access to their children

Does the Lead Agency have procedures to ensure that parents have unlimited access to their children whenever their children are in the care of a provider who receives CCDF funds:

☒ Yes.

☐ No. If no, describe:

9.3.6 Informing families about best practices in social and emotional health

Describe how the Lead Agency shares information with families, providers, and the general public regarding the social-emotional and behavioral and mental health of young children, including positive behavioral intervention and support models based on research and best practices for those from birth to school age: **The following information is related to children from birth to school age. PARENTS: The Department makes information available through their website, e-blast newsletters and resources. The Department and the following State agencies and organizations collaborate with Wy Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges,**

University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with parent and provider pages where information is posted. In addition, WY Quality Counts! distributes child development milestones and activities to parents and providers. WY Quality Counts! uses various social media networks to share information statewide. In addition, the Department shares information with the Department of Health regarding barriers, including access, for children and families in the mental health system. The Department provides referrals to early childhood mental health consultation services on an as needed basis. PROVIDERS: The Department and the following State agencies and organizations collaborate with WY Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with consumers, stakeholders/general public and providers pages where information is posted. In addition, WY Quality Counts! distributes child development milestones and activities to consumers, stakeholders/general public and providers. WY Quality Counts! uses various social media networks to share information statewide. The Department provides social emotional and temperaments training through the Infant/Toddler Director Credential training available to child care providers. In addition, the Department shares information with the Department of Health regarding barriers, including access, for children and families in the mental health system. GENERAL PUBLIC: The Department and the following State agencies and organizations collaborate with WY Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with individual pages where information is posted for consumers, stakeholders/general public and providers. In addition, WY Quality Counts! distributes child development milestones and activities to consumers, stakeholders/general public and providers. WY Quality Counts! uses various social media networks to share information statewide. In addition, the Department shares information with the Department of Health regarding barriers

### 9.3.7 Policies on the prevention of the suspension and expulsion of children

- a. The Lead Agency must have policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds. Describe those policies and how those policies are shared with families, providers, and the general public: **The Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Centers and the Rules for Child Care Purchase of Service** require all licensed and license-exempt non-relative providers to develop a suspension and expulsion policy. The policy shall: promote the social and emotional and behavioral health of children and limit the use of expulsion, suspension and other expulsionary practices; define how the director, owner and/or staff shall communicate with a parent(s) or guardian(s) regarding child's behavior and intervention

implemented; and the program shall collaborate with the parents and engage available community resources to address challenging behaviors before a program determines whether an expulsion or suspension is appropriate. Additionally, the Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires that parents shall be given a copy of written program policies by the child care provider, initially, and when there are changes to the policy, this includes the suspension and expulsion policy. The child care providers (license and license-exempt) received copies of the Department's rules which detail the requirement for the suspension and expulsion policy. The Department's rules are accessible on the website and via the Wyoming Secretary of State's Office.

- b. Describe what policies, if any, the Lead Agency has to prevent the suspension and expulsion of school-age children from child or youth care settings receiving CCDF funds: The Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Centers and the Rules for Child Care Purchase of Service require all licensed and license-exempt non-relative providers to develop a suspension and expulsion policy. The policy shall: promote the social and emotional and behavioral health of children and limit the use of expulsion, suspension and other expulsionary practices; define how the director, owner and/or staff shall communicate with a parent(s) or guardian(s) regarding child's behavior and intervention implemented; and the program shall collaborate with the parents and engage available community resources to address challenging behaviors before a program determines whether an expulsion or suspension is appropriate. Additionally, the Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires that parents shall be given a copy of written program policies by the child care provider, initially, and when there are changes to the policy, this includes the suspension and expulsion policy. The child care providers (license and license-exempt) received copies of the Department's rules which detail the requirement for the suspension and expulsion policy. The Department's rules are accessible on the website and via the Wyoming Secretary of State's Office.

#### 9.4 Providing Information on Developmental Screenings

Lead Agencies must provide information on developmental screenings to parents as part of the intake process for families participating in CCDF and to child care providers through training and education. This information must include:

- Existing resources and services that the State can make available in conducting developmental screenings and providing referrals to services when appropriate for children who receive child care assistance, including the coordinated use of the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program carried out under Title XIX of the Social Security Act and developmental screening services available under IDEA Part B, Section 619 and Part C; and,
- A description of how a family or child care provider can use these resources and services to obtain developmental screenings for children who receive subsidies and who might be at risk of cognitive or other developmental delays, which can include social, emotional, physical, or linguistic delays.

Information on developmental screenings, as in other consumer education information, must be accessible for individuals with limited English proficiency and individuals with disabilities.

#### 9.4.1 Developmental screenings

Does the Lead Agency collect and disseminate information on the following:

- a. Existing resources and services available for obtaining developmental screening for parents receiving CCDF, the general public, and child care providers.  
☒ Yes.  
☐ No. If no, describe:
- b. Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program—carried out under Title XIX of the Social Security Act (42 U.S.C. 1396 et seq.)—and developmental screening services available under Part B, Section 619 and Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.).  
☒ Yes.  
☐ No. If no, describe:
- c. Developmental screenings to parents receiving a subsidy as part of the intake process.  
☒ Yes. If yes, include the information provided, ways it is provided, and any partners in this work: **The Department's Child Care Assistance workers or support staff provide information related to developmental screenings to all persons requesting a Child Care Assistance application. The information includes who provides developmental screenings across the state and how to contact the entity for a developmental screening. The Wyoming Department of Health is responsible for the Child Development Centers, which are the entities providing developmental screenings. The Department coordinates with the Wyoming Department of Health.**  
☐ No. If no, describe:
- d. How families receiving CCDF services or child care providers receiving CCDF can use the available resources and services to obtain developmental screenings for children at risk for cognitive or other developmental delays.  
☒ Yes.  
☐ No. If no, describe:

## 10 Program Integrity and Accountability

Program integrity and accountability activities are integral to the effective administration of the CCDF program. As stewards of federal funds, Lead Agencies must ensure strong and effective internal controls to prevent fraud and maintain continuity of services to meet the needs of children and families. In order to operate and maintain a strong CCDF program, regular evaluation of the program's internal controls as well as comprehensive training for all entities involved in the administration of the program are imperative. In this section, Lead Agencies will describe their internal controls and how those internal controls effectively ensure integrity and accountability. These accountability measures should address reducing fraud, waste, and abuse, including program violations and administrative errors and should apply to all CCDF funds.

## 10.1 Effective Internal Controls

Lead Agencies must ensure the integrity of the use of CCDF funds through effective fiscal management and must ensure that financial practices are in place. Lead Agencies must have effective fiscal management practices in place for all CCDF expenditures.

### 10.1.1 Organizational structure to support integrity and internal controls

Describe how the Lead Agency's organizational structure ensures the oversight and implementation of effective internal controls that promote and support program integrity and accountability. Describe: **The Department has established internal controls, including the segregation of duties to reduce the risk of errors and/or inappropriate actions; monitoring activities and reports to ensure accuracy of practices, policies and procedures; information processing controls to ensure activities comply with federal regulations; and ongoing communication of expectations, practices, policies, procedure, and duties to all CCDF staff as part of the control environment. The Department's Director has assigned the authority and responsibilities related to program integrity to the CCDF Administrator and Economic Security Administrator. The Department's entire CCDF program includes staff from the following divisions:**

**-Fiscal - budget allocation, provider invoice audits and payments;  
-Quality Control/Quality Assurance - program integrity, quality control and assurance and identification of potential fraud risks;  
-Child Care Assistance Program Manager, Child Care Benefits & Eligibility Supervisors and Staff - determine, verify, and manage eligibility of program participants; and  
-Child Care Licensing Manager, Licensing Supervisors and Child Care Licensers - compliance with CCDF licensing and health and safety requirements.**

**Each of these divisions have been delegated the identified duties related to administering the CCDF program and are coordinated to support each aspect of the program. Because each division only handles one aspect of the program, this ensures that there is segregation of duties among program staff. For example, provider invoices are audited by two fiscal staff members for accuracy and the staff member who audits the invoice does not enter the invoice for payment and payments are not processed by eligibility staff. Regular meetings are held with staff of the various divisions to review budgets, payments, error reports, licensing issues, and to provide updated training and guidance where appropriate.**

Include the following elements in your description:

1. Assignment of authority and responsibilities related to program integrity.
2. Delegation of duties.
3. Coordination of activities.
4. Communication between fiscal and program staff.
5. Segregation of duties.
6. Establishment of checks and balances to identify potential fraud risks.
7. Other activities that support program integrity.

### 10.1.2 Fiscal management practices

Describe how the Lead Agency ensures effective fiscal management practices for all CCDF expenditures, including:

- a. Fiscal oversight of CCDF funds, including grants and contracts. Describe: **For all Contracts utilizing CCDF funds, the expectations and outcomes for the Contractor are articulated thoroughly through the Contractor responsibilities. The Contractor submits invoices monthly along with required performance reports. The Department thoroughly reviews the itemized invoice to verify the expenditures are allowable and within the scope of the Contract as well as the performance reports show the outcomes of the Contract are being delivered. The invoice is approved and submitted for payment. In addition, the Department conducts monitoring visits, either in person or virtually, as well as having frequent communication via telephone and "Google Hangouts" with the Contractor and staff.**
- b. Tracking systems that ensure reasonable and allowable costs and allow for tracing of funds to a level of expenditure adequate to establish that such funds have not been used in violation of the provision of this part. Describe: **In the accounting system Wyoming On-Line Financial System (WOLFS), as part of our chart of accounts, there is a field that we call activity that determines what line on the federal report the expenditure will go on. There are also fields called program code and program period code that are used to know what federal fiscal year and grant the expense is to be charged. The public assistance cost allocation plan also has the formula for what will be charged to the programs for allocated costs or employees on time and effort.**
- c. Processes and procedures to prepare and submit required state and federal fiscal reporting. Describe: **Based on the above description regarding tracking systems that ensure reasonable and allowable costs, the fiscal reports are prepared by a fiscal staff and reviewed, verified, and approved by a fiscal supervisor. The fiscal reports are submitted to the federal system once reviewed, verified and approved by a fiscal supervisor.**
- d. Other. Describe:

#### 10.1.3 Effectiveness of fiscal management practices

Describe how the Lead Agency knows there are effective fiscal management practices in place for all CCDF expenditures, including:

- a. How the Lead Agency defines effective fiscal management practices. Describe: **DFS has an Accounting Policies & Procedures document that defines signature authority, documentation requirements, and separation of duties. The Department also has a Grants Management Policy & Procedures Manual that clearly identifies procedures for responsible management of its grant awards. These documents also describe our payment and expenditure process. The Department uses these two documents to ensure its CCDF program is administered within State and Federal guidelines. As such, effective fiscal management practices are defined as processes and procedures implemented that ensure payments using grant funds are accurate and timely and any overpayments identified quickly for recovery efforts. To determine whether these practices are effective, the Department also completes regular reconciliations between payments, invoices and**

financial tracking records.

- b. How the Lead Agency measures and tracks results of their fiscal management practices. Describe: **The fiscal staff reconcile accounting and payment records weekly. Any discrepancies identified are investigated and corrected immediately. If similar discrepancies occur on a regular basis, the Department works to identify the source of the problem and correct it to ensure further issues do not occur. Additionally, program managers are provided with these weekly reports to review for accuracy and notify fiscal of any discrepancies that are noted. The Department's CCDF Administrator and staff maintain cumulative records of expenditures to ensure compliance with grant payment requirements and adjustments are made as necessary.**
- c. How the results inform implementation. Describe: **The Department uses the results of its regularly weekly and quarterly expenditure reviews to identify areas where the Department may be deficient in meeting CCDF expenditure requirements. Any deficiencies are then discussed between the CCDF Administrator, CCDF staff, and fiscal staff to develop a plan of action to increase expenditures for the areas identified as deficient. This process is repeated regularly as needed to ensure the Department maintains compliance with CCDF requirements. The results are also used to identify areas of policies that may need to be updated and improvement of fiscal management practices.**
- d. Other. Describe:

#### 10.1.4 Identifying risk

Describe the processes the Lead Agency uses to identify risk in the CCDF program including:

- a. Each process used by the Lead Agency to identify risk (including entities responsible for implementing each process). Describe: **The Department has established internal controls, including the segregation of duties to reduce the risk of errors and/or inappropriate actions; monitoring activities and reports to ensure accuracy of practices, policies and procedures; information processing controls to ensure activities comply with federal regulations; and ongoing communication of expectations, practices, policies, procedure, and duties to all CCDF staff as part of the control environment. The Department's Director has assigned the authority and responsibilities related to program integrity to the CCDF Administrator and Economic Security Administrator. The Department's entire CCDF program includes staff from the following divisions:  
-Fiscal - budget allocation, provider invoice audits and payments;  
-Quality Control/Quality Assurance - program integrity, quality control and assurance and identification of potential fraud risks;  
-Child Care Assistance Program Manager, Child Care Benefits & Eligibility Supervisors and Staff - determine, verify, and manage eligibility of program participants; and  
-Child Care Licensing Manager, Licensing Supervisors and Child Care Licensers - compliance with CCDF licensing and health and safety requirements.**  
Each of these divisions have been delegated the identified duties related to administering the CCDF program and are coordinated to support each aspect of the program. Because each division only handles one aspect of the program, this ensures that there is segregation of duties among program staff. For example, provider invoices are audited by

two fiscal staff members for accuracy and the staff member who audits the invoice does not enter the invoice for payment and payments are not processed by eligibility staff. Regular meetings are held with staff of the various divisions to review budgets, payments, error reports, licensing issues, and to provide updated training and guidance where appropriate.

The duties assigned to each division identified above ensure that errors are identified before payments are made to providers. Additionally, another staff members completes random sampling and comparison of submitted invoices/attendance verifications to actual provider child attendance records to ensure previously issued payments were not made improperly or based on provider fraud.

- b. The frequency of each risk assessment. Describe: The Department has established internal controls, including the segregation of duties to reduce the risk of errors and/or inappropriate actions; monitoring activities and reports to ensure accuracy of practices, policies and procedures; information processing controls to ensure activities comply with federal regulations; and ongoing communication of expectations, practices, policies, procedure, and duties to all CCDF staff as part of the control environment. The Department's Director has assigned the authority and responsibilities related to program integrity to the CCDF Administrator and Economic Security Administrator. The Department's entire CCDF program includes staff from the following divisions:
- Fiscal - budget allocation, provider invoice audits and payments;
  - Quality Control/Quality Assurance - program integrity, quality control and assurance and identification of potential fraud risks;
  - Child Care Assistance Program Manager, Child Care Benefits & Eligibility Supervisors and Staff - determine, verify, and manage eligibility of program participants; and
  - Child Care Licensing Manager, Licensing Supervisors and Child Care Licensers - compliance with CCDF licensing and health and safety requirements.
- Each of these divisions have been delegated the identified duties related to administering the CCDF program and are coordinated to support each aspect of the program. Because each division only handles one aspect of the program, this ensures that there is segregation of duties among program staff. For example, provider invoices are audited by two fiscal staff members for accuracy and the staff member who audits the invoice does not enter the invoice for payment and payments are not processed by eligibility staff. Regular meetings are held with staff of the various divisions to review budgets, payments, error reports, licensing issues, and to provide updated training and guidance where appropriate.

The duties assigned to each division identified above ensure that errors are identified before payments are made to providers. Additionally, another staff members completes random sampling and comparison of submitted invoices/attendance verifications to actual provider child attendance records to ensure previously issued payments were not made improperly or based on provider fraud.

The Department, through the processes detailed above, assesses risk regularly (weekly & monthly).

- c. How the Lead Agency uses risk assessment results to inform program improvement.

**Describe:** The Department has established internal controls, including the segregation of duties to reduce the risk of errors and/or inappropriate actions; monitoring activities and reports to ensure accuracy of practices, policies and procedures; information processing controls to ensure activities comply with federal regulations; and ongoing communication of expectations, practices, policies, procedure, and duties to all CCDF staff as part of the control environment. The Department's Director has assigned the authority and responsibilities related to program integrity to the CCDF Administrator and Economic Security Administrator. The Department's entire CCDF program includes staff from the following divisions:

- Fiscal - budget allocation, provider invoice audits and payments;
- Quality Control/Quality Assurance - program integrity, quality control and assurance and identification of potential fraud risks;
- Child Care Assistance Program Manager, Child Care Benefits & Eligibility Supervisors and Staff - determine, verify, and manage eligibility of program participants; and
- Child Care Licensing Manager, Licensing Supervisors and Child Care Licensers - compliance with CCDF licensing and health and safety requirements.

Each of these divisions have been delegated the identified duties related to administering the CCDF program and are coordinated to support each aspect of the program. Because each division only handles one aspect of the program, this ensures that there is segregation of duties among program staff. For example, provider invoices are audited by two fiscal staff members for accuracy and the staff member who audits the invoice does not enter the invoice for payment and payments are not processed by eligibility staff. Regular meetings are held with staff of the various divisions to review budgets, payments, error reports, licensing issues, and to provide updated training and guidance where appropriate.

The duties assigned to each division identified above ensure that errors are identified before payments are made to providers. Additionally, another staff members completes random sampling and comparison of submitted invoices/attendance verifications to actual provider child attendance records to ensure previously issued payments were not made improperly or based on provider fraud.

The Department, through the processes detailed above, assesses risk regularly (weekly & monthly).

The Department uses the results of the above processes to identify changes and adjustments that need to be made to mitigate risk. Policy & Procedures, Rules, processes and training may be updated to ensure program improvement

- d. How the Lead Agency knows that the risk assessment processes utilized are effective.
- Describe:** The Department has established internal controls, including the segregation of duties to reduce the risk of errors and/or inappropriate actions; monitoring activities and reports to ensure accuracy of practices, policies and procedures; information processing controls to ensure activities comply with federal regulations; and ongoing communication of expectations, practices, policies, procedure, and duties to all CCDF staff as part of the control environment. Based on the established internal controls and subsequent adjustments, the Department believes the risk assessment/evaluation process is effective

e. Other. Describe:

#### 10.1.5 Processes to train about CCDF requirements and program integrity

Describe the processes the Lead Agency uses to train staff of the Lead Agency and other agencies engaged in the administration of CCDF, and child care providers about program requirements and integrity.

- a. Describe how the Lead Agency ensures that all staff who administer the CCDF program (including through MOUs, grants, and contracts) are informed and trained regarding program requirements and integrity.
  - i. Describe the training provided to staff members around CCDF program requirements and program integrity: **The Department has a specialized trainer within the Child Care Assistance Program who is responsible for all training related to the program policy. The Child Care Assistance Program Manager also is actively involved and supports the trainer with any needs they may have. Training is delivered in person, webinar, or a combination of both, and via email. Additionally, the Child Care Assistance Program Manager holds weekly huddles with child care eligibility staff and supervisors to review performance measures and quality assurance reports to identify and discuss errors and compliance with program requirements to ensure integrity of the program. Training is also provided to staff during these weekly huddles as needed.**
  - ii. Describe how staff training is evaluated for effectiveness: **The Department has an employee to conduct quality assurance of cases. The quality assurance staff reviews an average of 13 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's Child Care Assistance Program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's Child Care Assistance Program Manager is responsible for reviewing all findings from the Child Care Assistance supervisors and quality assurance staff.**
  - iii. Describe how the Lead Agency uses program integrity data (e.g., error rate results, risk assessment data) to inform ongoing staff training needs: **The Department has an employee to conduct quality assurance of cases. The quality assurance staff reviews an average of 13 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's Child Care Assistance Program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's Child Care Assistance Program Manager is responsible for reviewing all findings from the Child Care Assistance supervisors and quality assurance staff.**
- b. Describe how the Lead Agency ensures all providers for children receiving CCDF funds are informed and trained regarding CCDF program requirements and program integrity:
  - i. Describe the training for providers around CCDF program requirements and program integrity: **Providers must complete a 203b Registration Form For**

Unlicensed Child Care Providers which includes CCDF program requirements and responsibilities to receive child care assistance on behalf of a child. No formal training sessions are held for CCDF providers; however, the field fiscal staff are most often the first point of contact for potential license-exempt providers and these staff provide detailed information and explanations of the requirements of CCDF as well as their responsibilities relating to time and attendance of CCDF-eligible children. If additional training is needed, the provider is referred to the Child Care Assistance Program Manager or the Department's Licensing Technical Assistance Coach. The Department's Licensing staff provide regular and ongoing training and guidance to licensed providers about the CCDF program requirements and responsibilities.

- ii. Describe how provider training is evaluated for effectiveness: **The Department's fiscal staff audit all child care invoices submitted by providers monthly or bi-monthly. Following the fiscal audit of the invoice, a different fiscal staff enters the billing information into the child care payment system and payment is generated.**
- iii. Describe how the Lead Agency uses program integrity data (e.g., error rate results, risk assessment data) to inform ongoing provider training needs: **The Department uses the results of the above processes to identify changes and adjustments that need to be made to ensure providers receive the appropriate training. Policy & Procedures, Rules, and processes may be updated to ensure program improvement and to meet the needs of the providers.**

#### 10.1.6 Evaluate internal control activities

Describe how the Lead Agency uses the following to regularly evaluate the effectiveness of Lead Agency internal control activities for all CCDF expenditures.

- a. Error rate review triennial report results (if applicable). Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls: **The error rate review triennial report is shared with the Economic Security Division Senior Administrator, child care district manager, benefit specialist supervisors, and child care benefit specialists. The team reviews the results and assesses the rules, policy and procedures to identify areas of improvement. Additionally, training (individual and group) is developed to target specific areas where errors occurred.**
- b. Audit results. Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls: **Audit results are shared with the Economic Security Division Senior Administrator, child care district manager, benefit specialist supervisors, child care benefit specialists and the Department's fiscal team. The team reviews the results and assesses the rules, policy and procedures to identify areas of improvement (changes are made to rules, policy and/or procedures as a result of the review). Additionally, training (individual and group) is developed to target specific areas where errors occurred.**

- c. Other. Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls:

#### 10.1.7 Identified weaknesses in internal controls

Has the Lead Agency or other entity identified any weaknesses in its internal controls?

- a. ☐ No. If no, describe when and how it was most recently determined that there were no weaknesses in the Lead Agency's internal controls.
- b. ☒ Yes. If yes, what were the indicators? How did you use the information to strengthen your internal controls? **The Department fiscal policies were updated March 24, 2024.**

## 10.2 Fraud Investigation, Payment Recovery, and Sanctions

Lead Agencies must have the necessary controls to identify fraud and other program violations to ensure program integrity. Program violations can include both intentional and unintentional client and/or provider violations, as defined by the Lead Agency. These violations and errors, identified through the error-rate review process and other review processes, may result in payment or nonpayment (administrative) errors and may or may not be the result of fraud, based on the Lead Agency definition.

#### 10.2.1 Strategies used to identify and prevent program violations

Check the activities the Lead Agency employs to ensure program integrity, and for each checked activity, identify what type of program violations the activity addresses, describe the activity and the results of these activities based on the most recent analysis.

- a. ☒ Share/match data from other programs (e.g., TANF program, Child and Adult Care Food Program, Food and Nutrition Service (FNS), Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, Public Assistance Reporting Information System (PARIS)).
  - i. ☒ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's eligibility system includes TANF, SNAP and Child Care Assistance programs, which allows the Department to match eligibility information across programs. In addition, the Child Care Assistance workers have access to the State Directory of New Hires and access to the Department's social security interface. These interfaces allow the Department to identify and prevent fraud or intentional program violations.**
  - ii. ☒ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's eligibility system includes TANF, SNAP and Child Care Assistance programs, which allows the Department to match eligibility information across programs. In addition, the Child Care Assistance workers have access to the State Directory of New Hires and access to the Department's social security interface. These interfaces allow the Department to identify unintentional program violations.**

- iii. ☒ Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Department's eligibility system includes TANF, SNAP and Child Care Assistance programs, which allows the Department to match eligibility information across programs. In addition, the Child Care Assistance workers have access to the State Directory of New Hires and access to the Department's social security interface. These interfaces allow the Department to identify and prevent agency errors.**
- b. ☐ Run system reports that flag errors (include types).
  - i. ☐ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
  - ii. ☐ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
  - iii. ☐ Agency errors. Describe the activities, the results of these activities, and how they inform better practice:
- c. ☒ Review enrollment documents and attendance or billing records.
  - i. ☒ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's fiscal staff audit all child care invoices submitted by providers monthly or bi-monthly. Following the fiscal audit of the invoice, a different fiscal staff enters the billing information into the child care payment system and payment is generated. The process for review allows the Department to identify and prevent fraud or intentional program violations.**
  - ii. ☒ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's fiscal staff audit all child care invoices submitted by providers monthly or bi-monthly. Following the fiscal audit of the invoice, a different fiscal staff enters the billing information into the child care payment system and payment is generated. The process for review allows the Department to identify unintentional program violations.**
  - iii. ☒ Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Department's fiscal staff audit all child care invoices submitted by providers monthly or bi-monthly. Following the fiscal audit of the invoice, a different fiscal staff enters the billing information into the child care payment system and payment is generated. The process for review allows the Department to identify and prevent agency errors.**
- d. ☒ Conduct supervisory staff reviews or quality assurance reviews.
  - i. ☒ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department has an employee to conduct quality assurance of cases. The quality assurance staff reviews an average of 13 child care eligibility case files a month to ensure eligibility was**

determined correctly. In addition, the Department's Child Care Assistance Program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's Child Care Assistance Program Manager is responsible for reviewing all findings from the Child Care Assistance supervisors and quality assurance staff. These reviews allow the Department to identify and prevent fraud or intentional program violations.

- ii. **[x]** Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department has an employee to conduct quality assurance of cases. The quality assurance staff reviews an average of 13 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's Child Care Assistance Program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's Child Care Assistance Program Manager is responsible for reviewing all findings from the Child Care Assistance supervisors and quality assurance staff. These reviews allow the Department to identify unintentional program violations.**
  - iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Department has an employee to conduct quality assurance of cases. The quality assurance staff reviews an average of 13 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's Child Care Assistance Program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's Child Care Assistance Program Manager is responsible for reviewing all findings from the Child Care Assistance supervisors and quality assurance staff. These reviews allow the Department to identify and prevent agency errors.**
- e. **[x]** Audit provider records.
- i. **[x]** Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing Program monitors all licensed programs and conducts two (2) visits per year following certification. A sampling of the provider records are reviewed at a visit to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). The Department's Child Care Assistance Program uses monitors to conduct annual inspection of licensed-exempt non-relative providers to ensure compliance with the provider requirements as defined in the Child Care Purchase of Service Rules. These inspections and monitoring allow the Department to identify and prevent fraud or intentional program violations.**
  - ii. **[x]** Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing Program monitors all licensed programs and conducts two (2) visits per**

year following certification. A sampling of the provider records are reviewed at a visit to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). The Department's Child Care Assistance Program uses monitors to conduct annual inspection of license-exempt non-relative providers to ensure compliance with the provider requirements as defined in the Child Care Purchase of Service Rules. These inspections and monitoring allow the Department to identify and prevent unintentional program violations.

- iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing Program monitors all licensed programs and conducts two (2) visits per year following certification. A sampling of the provider records are reviewed at a visit to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). The Department's Child Care Assistance Program uses monitors to conduct annual inspection of licensed-exempt non-relative providers to ensure compliance with the provider requirements as defined in the Child Care Purchase of Service Rules. These inspections and monitoring allow the Department to identify and prevent agency errors.**
- f. **[x]** Train staff on policy and/or audits.
  - i. **[x]** Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing and Child Care Assistance programs conduct ongoing training with all staff that includes review of rules, policy and procedure. The training is provided monthly, at a minimum, or more frequently if needed, and is conducted through email, webcam, or in person. Staff have the opportunity to collaborate with each other which allows for consistency and integrity of the program. These trainings allow the Department to identify and prevent fraud or intentional program violations.**
  - ii. **[x]** Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing and Child Care Assistance programs conduct ongoing training with all staff that includes review of rules, policy and procedure. The training is provided monthly, at a minimum, or more frequently if needed, and is conducted through email, webcam, or in person. Staff have the opportunity to collaborate with each other which allows for consistency and integrity of the program. These trainings allow the Department to identify unintentional program violations.**
  - iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Department's Child Care Licensing and Child Care Assistance programs conduct ongoing training with all staff that includes review of**

rules, policy and procedure. The training is provided monthly, at a minimum, or more frequently if needed, and is conducted through email, webcam, or in person. Staff have the opportunity to collaborate with each other which allows for consistency and integrity of the program. These trainings allow the Department to identify and prevent agency errors.

- g. ☐ Other. Describe the activity(ies):
- i. ☐ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
  - ii. ☐ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
  - iii. ☐ Agency errors. Describe the activities, the results of these activities, and how they inform better practice:

#### 10.2.2 Identification and recovery of misspent funds

Lead Agencies must identify and recover misspent funds that are a result of fraud, and they have the option to recover any misspent funds that are a result of unintentional program violations or agency errors.

- a. Identify which agency is responsible for pursuing fraud and overpayments (e.g., State Office of the Inspector General, State Attorney): **The Department of Family Services Eligibility integrity Unit (EIU).**
- b. Check and describe all activities, including the results of such activity, that the Lead Agency uses to investigate and recover improper payments due to fraud. Consider in your response potential fraud committed by providers, clients, staff, vendors, and contractors. Include in the description how each activity assists in the investigation and recovery of improper payment due to fraud or intentional program violations. Activities can include, but are not limited to, the following:
  - i. ☒ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis: **The Department sets the improper payment minimum dollar amount at \$50.00. In instances where there are improper payments over the minimum, cases are referred to the EIU for investigation and collection.**
  - ii. ☒ Coordinate with and refer to the other State/Territory agencies (e.g., State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The EIU makes all necessary referrals (i.e. law enforcement, district attorney's office) based on their investigation after a Child Care Assistance program case is referred. This ensures proper action is taken based on the activities of the case.**
  - iii. ☒ Recover through repayment plans. Describe the activities and the results of these activities based on the most recent analysis: **The EIU may enter into a**

repayment agreement following the investigation and determination of an improper payment.

- iv. ☐ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis:
- v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
- vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
- vii. ☒ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis: **The Department has an established Unit for investigations and collections of improper payments. The EIU investigates and collects on the following programs: SNAP, TANF, Low income Energy Assistance Program (LIEAP) and Child Care Assistance. The Unit resides with the Economic Security Division, Programs branch, which is led by a Senior Administrator and a Programs Administrator. The Unit is composed of a Manager, four (4) investigators/collections and one (1) accountant.**
- viii. ☒ Other. Describe the activities and the results of these activities: **If a client is found guilty of an intentional program violation through a disqualification hearing, the client is sanctioned from receiving benefits for 12 months for the first violation, 24 months for a second violation and permanently for a third violation. The client has the opportunity to appeal the Department's decision through District Court.**

c. Does the Lead Agency investigate and recover improper payments due to unintentional program violations?

☐ No.

☒ Yes.

If yes, check and describe below any activities that the Lead Agency will use to investigate and recover improper payments due to unintentional program violations. Include in the description how each activity assists in the investigation and recovery of improper payments due to unintentional program violations. Include a description of the results of such activity.

- i. ☒ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis: **The Department sets the improper payment minimum dollar amount at \$50.00. In instances where there are improper payments over the minimum, cases are referred to the EIU for investigation and collection.**
- ii. ☒ Coordinate with and refer to the other State/Territory agencies (e.g.,

State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The EIU makes all necessary referrals (i.e. law enforcement, district attorney's office) based on their investigation after a Child Care Assistance program case is referred. This ensures proper action is taken based on the activities of the case.**

- iii. ☒ Recover through repayment plans. Describe the activities and the results of these activities based on the most recent analysis: **The EIU may enter into a repayment agreement following the investigation and determination of an improper payment.**
  - iv. ☐ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis:
  - v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
  - vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
  - vii. ☒ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis: **The Department has an established Unit for investigations and collections of improper payments. The EIU investigates and collects on the following programs: SNAP, TANF, Low income Energy Assistance Program (LIEAP) and Child Care Assistance. The Unit resides with the Economic Security Division, Programs branch, which is led by a Senior Administrator and a Programs Administrator. The Unit is composed of a Manager, four (4) investigators/collections, one (1) Intake Specialist, and one (1) accountant.**
  - viii. ☐ Other. Describe the activities and the results of these activities:
- d. Does the Lead Agency investigate and recover improper payments due to agency errors?
- ☐ No.
- ☒ Yes.
- If yes, check and describe all activities that the Lead Agency will use to investigate and recover improper payments due to agency errors. Include in the description how each activity assists in the investigation and recovery of improper payments due to administrative errors. Include a description of the results of such activity.
- i. ☒ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis: **The Department sets the improper payment minimum dollar amount at \$50.00. In instances where there are improper payments over the minimum, cases are referred to the EIU for investigation and collection.**

- ii. ☒ Coordinate with and refer to the other State/Territory agencies (e.g., State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The EIU makes all necessary referrals (i.e. law enforcement, district attorney's office) based on their investigation after a Child Care Assistance program case is referred. This ensures proper action is taken based on the activities of the case.**
- iii. ☒ Recover through repayment plans. Describe the activities and the results of these activities based on the most recent analysis: **The EIU may enter into a repayment agreement following the investigation and determination of an improper payment.**
- iv. ☐ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis:
- v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
- vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
- vii. ☒ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis: **The Department has an established Unit for investigations and collections of improper payments. The EIU investigates and collects on the following programs: SNAP, TANF, Low income Energy Assistance Program (LIEAP), Child Care Assistance, and Medicaid. The Unit resides with the Economic Security Division, Programs branch, which is led by a Senior Administrator and a Programs Administrator. The Unit is composed of a Manager, four (4) investigators/collections and one (1) accountant.**
- viii. ☐ Other. Describe the activities and the results of these activities:
- e. What type of sanction will the Lead Agency place on clients and providers to help reduce improper payments due to intentional program violations or fraud? Check and describe all that apply:
  - i. ☒ Disqualify the client. Describe this process, including a description of the appeal process for clients who are disqualified. Describe the activities and the results of these activities based on the most recent analysis: **If a client is found guilty of an intentional program violation through a disqualification hearing, the client is sanctioned from receiving benefits for 12 months for the first violation, 24 months for a second violation and permanently for a third violation. The client has the opportunity to appeal the Department's decision through District Court.**
  - ii. ☐ Disqualify the provider. Describe this process, including a description of the appeal process for providers who are disqualified. Describe the activities and the results of these activities based on the most recent analysis:

- iii. ☒ Prosecute criminally. Describe the activities and the results of these activities based on the most recent analysis: **If appropriate, the EIU will refer cases to the district attorney's office for prosecution based on their investigation after a Child Care Assistance program case is referred.**
- iv. ☐ Other. Describe the activities and the results of these activities based on the most recent analysis:

## Appendix 1: Lead Agency Implementation Plan

The Appendix will be available for Lead Agencies to use in CARS after the Plan approval letter is issued.

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
  - ***Responsible Entity:*** Indicate the entity (e.g., agency, team, etc.) responsible for completing the action step.
  - ***Expected Completion Date:*** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

## Appendix 1: Form

[Plan question with non-compliance and associated provision will pre-populate based on preliminary notice of non-compliance]

| A. Action Steps for Implementation    | B. Responsible Entity(ies) | C. Expected Completion Date |
|---------------------------------------|----------------------------|-----------------------------|
| Step 1:                               |                            |                             |
| Step 2 (as necessary):                |                            |                             |
| [Additional steps added as necessary] |                            |                             |
| Overall Target Date for Compliance:   |                            |                             |